Indian Penal Code 1860

Section 1. Title and extent of operation of the Code

Act No. 45 of 1860.

This Act shall be called the Indian Penal Code, and shall [1][extend to the whole of India [2][except the State of Jammu and Kashmir].]

1. The original words have successively been amended by Act 12 of 1891, sec. 2 and Sch. I, the A.O. 1937, the A.O. 1948 and the A.O. 1950 to read as above.

2. Subs. by Act 3 of 1951, sec. 3 and Sch., for "except Part B States".

Section 2. Punishment of offences committed within India

Every person shall be liable punishment under this Code and not otherwise for every act or omission contrary to the provisions thereof, of which, he shall be guilty within [1][India] [2][***].

1. The original words "the said territories" have successively been amended by the A.O. 1937, the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch., to read as above.

2. The words and figures "on or after the said first day of May, 1861" rep. by Act 12 of 1891, sec. 2 and Sch. I.

Section 3. Punishment of offences committed beyond, but which by law may be tried within, India

Any person liable, by any [1](Indian law) to be tried for an offence committed beyond [2](India) shall be dealt with according to the provisions of this Code for any act committed beyond [2](India) in the same manner as if such act had been committed within [3][India].

1. Subs. by the A.O. 1937 for "law passed by the Governor General of India in Council".

2. The original words "the limits of the said territories" have successively been amended by the A.O. 1937, the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch., to read as above.

3. The original words "the said territories" have successively been amended by the A.O. 1937, the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch., to read as above.

Section 4. Extension of Code to extra-territorial offences

[1][4. Extension of Code to extra-territorial offences.

The provisions of this Code apply also to any offence committed by

[2][(1) Any citizen of India in any place without and beyond India;
(2) Any person on any ship or aircraft registered in India wherever it may be.]

Explanation. -In this section the word "offence" includes every act committed outside [3][India] which, If committed in [3][India], would be punishable under this code.
[4][Illustration]
[5][*** A, [6][who is [7][a citizen of India]], commits a murder in Uganda. He can be tried and convicted of murder in any place in 3[India] in which he may be found.
[8][* * *]
1 Subs. by Act 4 of 1898, sec. 2, for the original section.

2 Subs. by the A.O. 1950, for clauses (1) to (4).

3 The words "British India" have been successively amended by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch. to read as above.

4 Subs. by Act 36 of 1957, sec. 3 and Sch. II, for "Illustrations" (w.e.f. 17-9-1957).

5 The brackets and letter "(a)" omitted by Act 36 of 1957, sec. 3 and Sch. II (w.e.f. 17-9-1957).

6 Subs. by the A.O. 1948, for "a coolie, who is a Native Indian subject".

7 Subs. by the A.O. 1950, for "a British subject of Indian domicile".

8 Illustrations (b), (c) and (d) omitted by the A.O. 1950.

Section 5. Certain laws not to be affected by this Act
'5. Certain laws not to be affected by this Act.- Nothing in this Act shall affect the provisions of any Act for punishing mutiny and desertion of officers, soldiers, sailors or airmen in the service of the Government of India or the provisions of any special or local law.
1. Subs. by the A.O. 1950, for the original section.

Section 6. Definitions in the Code to be understood subject to exceptions
Throughout this Code every definition of an offence, every penal provision, and every illustration of every such definition or penal provision shall be

understood subject to the exceptions contained in the Chapter entitled "General Exceptions", though those exceptions are not repeated in such definition, penal provision, or illustration.

Illustrations

(a) The sections, in this Code, which contain definitions of offences, do not express that a child under seven years of age can not commit such offences; but the definitions are to be understood subject to the general exception which provides that nothing shall be an offence which is done by a child under seven years of age.

(b) A, a police officer, without warrant, apprehends Z, who has committed murder. Here A is not guilty of the offence of wrongful confinement for he was bound by law to apprehend Z and therefore the case falls within the general exception which provides that "nothing is an offence which is done by a person who is bound by law to do it".

Section 7. Sense of expression once explained

Every expression, which is explained in any part of this Code, is used in every part of this Code in conformity with the explanation.

Section 8. Gender

The pronoun "he" and its derivatives are used of any person, whether male or female.

Section 9. Number

Unless the contrary appears from the context, words importing the singular number include the plural number, and words importing the plural number include the singular number.

Section 10. Man, Woman

The word "man" denotes a male human being of any age; the word "woman" denotes a female human being of any age.

Section 11. Person

The word "person" includes any Company or Association or body of persons, whether incorporated or not.

Section 12. Public

The word "public" includes any class of the public or any community.

Section 13. Queen
[Definition of "Queen".] Rep. by the A. O. 1950.

Section 14. Servant of Government
'14. "Servant of Government".- The words "servant of Government" denote any officer or servant continued, appointed or employed in India by or under the authority of Government.
1. Subs. by the A.O. 1950, for the original section.

Section 15. British India
[Definition of "British India".] Rep. by the A. O. 1937.

Section 16. Government of India
Rep. By the A.O. 1937.

Section 17. Government
'17. "Government".- The word "Government" denotes the Central Government or the Government of a [2][***] State.
1. Subs. by the A.O. 1950, for the original section.

2. The word and letter "Part A" omitted by Act 3 of 1951, sec. 3 and Sch.

Section 18. India
'18. India.- "India" means the territory of India excluding the State of Jammu and Kashmir.
1 Subs. by Act 3 of 1951, sec. 3 and Sch., for the former section which was ins. by the A.O. 1950. The original section 18 was rep. by the A.O. 1937.

Section 19. Judge
"Judge".–The word "Judge" denotes not only every person who is officially designated as a Judge, but also every person who is empowered by law to give, in any legal proceeding, civil or criminal, a definitive judgment, or a judgment which, if not appealed against, would be definitive, or a judgment which, if confirmed by some other authority, would be definitive, or

who is one of a body of persons, which body of persons is empowered by law to give such a judgment.

Illustrations
(a) A Collector exercising jurisdiction in a suit under Act 10 of 1859, is a judge.

(b) A Magistrate exercising jurisdiction in respect of a charge on which he has power to sentence to fine or imprisonment, with or without appeal, is a judge.

(c) A member of a Panchayat which has power, under [1]Regulation VII, 1816, of the Madras Code, to try and determine suits, is a judge.
(d) A Magistrate exercising jurisdiction in respect of a charge on which he has power only to commit for trial to another Court, is not a judge.

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1. Rep. by the Madras Civil Courts Act, 1873 (3 of 1873).

Section 20. Court of Justice

The words "Court of Justice" denote a judge who is empowered by law to act judicially alone, or a body of judges, which is empowered by law to act judicially as a body, when such judge or body of judges is acting judicially

Illustration

A panchayat acting under [1]Regulation VII, 1816, of the Madras Code, having power to try and determine suits, is a Court of Justice.
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1. Rep. by the Madras Civil Courts Act, 1873 (3 of 1873).

Section 21. Public Servant

The words "public servant" denote a person falling under any of the descriptions hereinafter following namely:-

[1][* ****]
Second.- Every Commissioned Officer in the Military, [2][Naval or Air] Forces [3][[1][* * *] of India];
[3][Third.- Every Judge including any person empowered by law to discharge, whether by himself or as a member of any body of persons, any adjudicatory function;]
Fourth.- Every officer of a Court of justice [6][(including a liquidator, receiver or commissioner)] whose duty it s, as such officer, to investigate or report on any matter of law or fact, or to make, authenticate, or keep any document, or to take charge or dispose of any property, or to execute any judicial process, or to administer any oath, or to interpret, or to preserve order in the Court, and every person specially authorized by a Court of Justice to perform any of such duties.

Fifth.- Every juryman, assessor, or member of a panchayat assisting a Court of justice or public servant;

Sixth.- Every arbitrator or other person to whom any cause or matter has been referred for decision or report by any Court of justice, or by any other competent public authority;

Seventh.- Every person who holds any office by virtue of which he is empowered to place or keep any person in confinement;

Eight. -Every officer of [7][the Government] whose duty it is, as such officer, to prevent offences, to give information of offences, to bring offenders to justice, or to protect the public health, safety or convenience;
Ninth.- Every officer whose duty it is, as such officer, to take, receive, keep or extend any property on behalf of [7][the Government], or to make any survey, assessment or contract on behalf of the [7][the Government], or to execute any revenue process, or to investigate, or to report, on any matter affecting the pecuniary interests of [7][the Government], or to make, authenticate or keep any document relating to the pecuniary interests of [7][the Government], or to prevent the infraction of any law for the protection of the pecuniary interests of [7][the Government][8][***];.
Tenth. – Every officer whose duty it is, as such officer, to take, receive, keep or expend any property, to make any survey or assessment or to levy any rate or tax for any secular common purpose of any village, town or district, or to make, authenticate or keep any document for the ascertaining of the rights of the people of any village, town or district;

[9][Eleventh.- Every persons who holds any office in virtue of which he is empowered to prepare, publish maintain or revise an electoral roll or to conduct an election or part of an election;]
[10][twelfth.- Every person.
(a) In the service or pay of the Government or remunerated by fees or commission for the performance of any public duty by the Government;

(b) In the service or pay of a local authority, a corporation established by or under a Central, Provincial or State Act or a Government company as defined in section 617 of the Companies Act, 1956 (1 of 1956.]

Illustration
A Municipal Commissioner is a public servant.

Explanation 1

Persons falling under any of the above descriptions are public servants, whether appointed by the Government or not.

Explanation 2

Wherever the words “public servant” occur, they shall be understood of every person who is in actual possession of the situation of a public servant, whatever legal defect there may be in his right to hold that situation.

[11]Explanation 3
The word “election” denotes an election for the purpose of selecting members of any legislative, municipal or other public authority, of whatever character, the method of selection to which is by, or under, any law prescribed as by election.

[12][***]

STATE AMENDMENT

State of Rajasthan

In Section 21 of the Indian Penal Code, 1860 (Central Act 45 of 1860), in its application to the State of Rajasthan, after clause twelfth, the following new clause shall be added namely: –

“Thirteenth.- Every person employed or engaged by any public body in the conduct and supervision of any examination recognized or approved under any law.

Explanation

The expression ‘Public Body’ includes:-

(a) A University, Board of Education, or other body, either established by or under a Central or State Act or under the provisions of the Constitution of India or constituted by the Government; and

(b) A local authority.”

[Vide Rajasthan Act, 1993 4 of 1993, Sec. 2 (w.e.f. 11-2-1993)].

1. Clause First omitted by the A.O. 1950.

2. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for “or Naval”.

3. The original words “of the Queen while serving under the Government of India, or any Government” have successively been amended by the A.O. 1937, the A.O. 1948 and the A.O. 1950 to read as above.

4. The words “of the Dominion” omitted by the A.O. 1950.

5. Subs. by Act 40 of 1964, sec. 2, for the former clause (w.e.f. 18-12-1964).

6. Ins. by Act 40 of 1964, sec. 2 (w.e.f. 18-12-1964).

7. Subs. by the A.O. 1950, for “the Crown” which had been subs. by the A.O. 1937, for “Government”.

8. Certain words omitted by Act 40 of 1964, sec. 2 (w.e.f. 18-12-1964).

9. Ins. by Act 39 of 1920, sec. 2.

10. Subs. by Act 40 of 1964, sec. 2, for the former clause (w.e.f. 18-12-1964).

11. Ins. by Act 39 of 1920, sec. 2.

12. Explanation 4 ins. by Act 2 of 1958, sec. 2 (w.e.f. 12-2-1958) and omitted by Act 40 of 1964, sec. 2 (w.e.f. 18-12-1964).

Section 22. Moveable property

The words “moveable property” are intended to include corporeal property of every description, except land and things attached to the earth or permanently fastened to anything, which is attached to the earth.

Section 23. Wrongful gain

23. “Wrongful gain”.–“Wrongful gain” is gain by unlawful meansof property to which the person gaining is not legally entitled.

“Wrongful loss”.–“Wrongful loss” is the loss by unlawful meansof property to which the person losing it is legally entitled. Gaining wrongfully.

Losing wrongfully.–A person is said to gainwrongfully when such person retains wrongfully, as well as when suchperson acquires wrongfully.

A person is said to lose wrongfully whensuch person is wrongfully kept out of any property, as well as whensuch person is wrongfully deprived of property.

Section 24. Dishonestly

Whoever does anything with the intention of causing wrongful gain to one person or wrongful loss to another person, is said to do that thing “dishonestly”.

Section 25. Fraudulently
A person is said to do a thing fraudulently if he does that thing with intent to defraud but not otherwise.

Section 26. Reason to believe
A person is said to have "reason to believe" a thing, if he has sufficient cause to believe that thing but not otherwise.

Section 27. Property in possession of wife, clerk or servant
When property is in the possession of a person's wife, clerk or servant, on account of that person, it is in that person's possession within the meaning of this Code.

Explanation

A person employed temporarily or on a particular occasion in the capacity of a clerk or servant, is a clerk or servant within the meaning of this section.

Section 28. Counterfeit
A person is said to "counterfeit" who causes one thing to resemble another thing, intending by means of that resemblance to practice deception, or knowing it to be likely that deception will thereby be practiced.

'Explanation 1
It is not essential to counterfeiting that the imitation should be exact.

Explanation 2

When a person causes one thing to resemble another thing, and the resemblance is such that a person might be deceived thereby, it shall be presumed, until the contrary is proved, that the person so causing the one thing to resemble the other thing intended by means of that resemblance to practice deception or knew it to be likely that deception would thereby be practiced.

1. Subs. by Act 1 of 1889, sec. 9, for the original Explanation.

Section 29. Document
The word "document" denotes any matter expressed or described upon any substance by means of letters, figures, or marks, or by more than one of those means, intended to be used, or which may be used, as evidence of that matter.

Explanation 1

It is immaterial by what means or upon what substance the letters, figures or marks are formed, or whether the evidence is intended for, or may be used in, a Court of Justice, or not.

Illustrations

A writing expressing the terms of a contract, which may be used as evidence of the contract, is a document.

A cheque upon a banker is a document.

A power-of-attorney is a document.

A map or plan which is intended to be used or which may be used as evidence, is a document.

A writing containing directions or instructions is a document.

Explanation 2

Whatever is expressed by means of letters, figures or marks as explained by mercantile or other usage, shall be deemed to be expressed by such letters, figures or marks within the meaning of this section, although the same may not be actually expressed.

Illustration

A writes his name on the back of a bill of exchange payable to his order. The meaning of the endorsement, as explained by mercantile usage, is that the bill is to be paid to the holder. The endorsement is a document, and must be construed in the same manner as if the words "pay to the holder" or words to that effect had been written over the signature.

Section 29A. Electronic record

'29A. Electronic record.- The words "electronic record" shall have the meaning assigned to them in clause (t) of sub-section (1) of section 2 of the Information Technology Act, 2000.

1. Ins. by Act 21 of 2000, sec. 91 and Sch. I, (w.e.f. 17-10-2000).

Section 30. Valuable security

The words "valuable security" denote a document which is, or purports to be, a document whereby any legal right is created, extended, transferred, restricted,

extinguished or released, or where by any person acknowledges that he lies under legal liability, or has not a certain legal right.

Illustration

A writes his name on the back of a bill of exchange. As the effect of this endorsement is transfer the right to the bill to any person who may become the lawful holder of it, the endorsement is a “valuable security”.

Section 31. A will

The words “a will” denote any testamentary document.

Section 32. Words referring to acts include illegal omissions

In every part of this Code, except where a contrary intention appears from the context, words which refer to acts done extend also to illegal omissions.

Section 33. Act Omission

The word “act” denotes as well a series of acts as a single act: the word “omission” denotes as well as series of omissions as a single omission.

Section 34. Acts done by several persons in furtherance of common intention

'34. Acts done by several persons in furtherance of common intention.- When a criminal act is done by several persons in furtherance of the common intention of all, each of such persons is liable for that act in the same manner as if it were done by him alone.

Distinction between ’common intention’ and ‘common object’

A clear distinction is made out between common intention and common object is that common intention denotes action in concert and necessarily postulates the existence of a pre-arranged plan implying a prior meeting of the minds, while common object does not necessarily require proof of prior meeting of minds or pre-concert. Though there is a substantial difference between the two sections namely 34 and 149, they also to some extent overlap and it is a question to be determined on the facts of each case; Chittarmal v. State of Rajasthan, AIR 2003 SC 796.

Difference in operation of section 34 and section 149

(i) Both sections 149 and 34 deal with a combination of persons who become liable to be punished as sharers in the commission of offences. The non-applicability of section is, therefore, no bar in convicting the accused under substantive section read with section 34 if the evidence discloses commission

of an offence in furtherance of the common intention of them all; Nethala Pothuraju v. State of Andhra Pradesh, (1991) Cr LJ 3133 (SC).

(ii) In order to convict a person vicariously liable under section 34 or section 149 it is not necessary to prove that each and everyone of them had indulged in overts acts; Ram Blias Singh v. State of Bihar, (1989) Cr LJ 1782: AIR 1989 SC 1593.

Ingredients

(i) When an offence is sought to be proved only on circumstantial evidence, the allegations of common intention under section 34 normally cannot be established in absence of meeting of mind, the overt act of the accused, by their conduct, by using the weapons by their utterance of words; Santosh Desai v. State of Goa, (1997) 2 Crimes 666 (Bom).

(ii) In order to bring a case under section 34 it is not necessary that there must be a prior conspiracy or pre-meditation, the common intention can be formed in the course of occurrence; Hari Om v. State of Uttar Pradesh, (1993) 1 Crimes 294 (SC).

(iii) Mere surrender by appellant alongwith accused before police does not show meeting of minds as to bring the case within ambit of section 34; Rangaswami v. State of Tamil Nadu, (1989) Cr LJ 875: AIR 1989 SC 1137.

(iv) It has been held that the requirement of statute is sharing the common intention upon being present at the place of occurrence. Mere distancing from the scene cannot absolve the accused; Lallan Bhai v. State of Bihar, AIR 2003 SC 333.

Participation in the Criminal Act

(i) To apply section 34, apart from the fact that there should be two or more accused, two factors must be established: (i) common intention, and (ii) participation of accused in the commission of an offence. If common intention is proved but no overt act is attributed to the individual accused, section 34 will be attracted as essentially it involves vicarious liability but if participation of the accused in the crime is proved and common intention is absent, section 34 cannot be invoked; Jai Bhagwan v. State of Haryana, AIR 1999 SC 1083.

(ii) It requires a pre-arranged plan and pre-supposes prior concert therefore there must be prior meeting of mind. It can also be developed at the spur of moment but there must be pre-arrangement or premeditated concert:

Ramashish Yadav v. State of Bihar, 1999 (8) SCC 555: 1999(6) JT 560: 1999 (2) JCC (SC) 471.

(iii) If some act is done by the accused person in furtherance of common intention of his co-accused, he is equally liable like his co-accused; State of Punjab v. Fauja Singh, (1997) 3 Crimes 170 (P&H).

(iv) In the instant case, there was a long standing enmity between two rival factions in a village, and proceedings under the Criminal Procedure Code were pending against members of both factions. On the day fixed for a hearing in the Magistrate's Court in a neighbouring town, members of both factions left their village armed with sticks and lathis. While one faction was waiting on the roadside for a bus, the other faction arrived and a fight ensued in which severe injuries were caused on both sides, as a result of which one man died. The members of the opposite faction were charged and convicted under sections 302/34 I.P.C. It was held that the mere presence of a person armed with a deadly weapon at the spot of a crime does not necessarily make him a participator in a joint crime in every case, because for the purpose of section 34 only such presence makes a man a participant in a joint crime as is established to be with the intention of lending weight to the commission of a joint crime; Jamun v. State of Punjab, AIR 1957 SC 469.

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1. Subs. by Act 27 of 1870, sec. 1, for the original section.>

Section 35. When such an act is criminal by reason of its being done with a criminal knowledge or intention

Whenever an act, which is criminal only be reason of its being done with a criminal knowledge or intention, is done by several persons, each of such persons who joins in the act with such knowledge or intention is liable for the act in the same manner as if the act were done by him alone with that knowledge or intention.

Section 36. Effect caused partly by act and partly by omission

Wherever the causing of a certain effect, or an attempt to cause that effect, by an act or by an omission, is an offence, it is to be understood that the causing of that effect partly by an act and partly by an omission is the same offence.

Illustration

A intentionally causes Z's death, partly by illegally omitting to give Z food, and partly by beating Z. A has committed murder.

Section 37. Co-operation by doing one of several acts constituting an offence
When an offence is committed by means of several acts, whoever intentionally co-operates in the commission of that offence by doing any one of those acts, either singly or jointly with any other person commits that offence.

Illustrations
(a) A and B agree to murder Z by severally and at different times giving him small doses of poison. A and B administer the poison according to the agreement with intent to murder Z. Z dies from the effects of the several doses of poison so administered to him. Here A and B intentionally co-operates in the commission of murder and as each of them does an act by which the death is caused, they are both guilty of the offence though their acts are separate.

(b) A and B are joint jailors, and as such have the charge of Z, a prisoner, alternately for six hours at a time. A and B, intending to cause Z's death, knowingly co-operate in causing that effect by illegally omitting, each during the time of his attendance, to furnish Z with food supplied to them for that purpose. Z dies of hunger. Both A and B are guilty of the murder of Z.

(c) A, a jailor, has the charge of Z, a prisoner. A, intending to cause Z's death illegally omits to supply Z with food in consequence of which Z is much reduced in strength, but the starvation is not sufficient to cause his death. A is dismissed from his office, and B succeeds him. B, without collusion or co-operation with A, illegally omits to supply Z with food, knowing that he is likely thereby to cause Z's death. Z dies of hunger. B is guilty of murder, but, as A did not co-operate with B. A is guilty only of an attempt to commit murder.

Section 38. Persons concerned in criminal act may be guilty of different offences
Where several persons are engaged or concerned in the commission of a criminal act, they may be guilty of different offences by means of that act.

Illustration
A attacks Z under such circumstances of grave provocation that his killing of Z would be only culpable homicide not amounting to murder. B, having ill-will towards Z and intending to kill him, and not having been subject to the provocation, assists A in killing Z. Here, though A and B are both engaged in causing Z's death, B is guilty of murder, and A is guilty only of culpable homicide.

Section 39. Voluntarily

A person is said to cause an effect "voluntarily" when he causes it by means whereby he intended to cause it, or by means which, at the time of employing those means, he knew or had reason to believe to be likely to cause it.

Illustration

A sets fire, by night, to an inhabited house in a large town, for the purpose of facilitating a robbery and thus causes the death of a person. Here, A may not have intended to cause death; and may even be sorry that death has been caused by his act; yet, if he knew that he was likely to cause death, he has caused death voluntarily.

Section 40. Offence

[1]40 "Offence".- Except in the [2][Chapters] and sections mentioned in clauses 2 and 3 of this section, the word "offence" denotes a thing made punishable by this code.

In Chapter IV, [3][Chapter V A] and in the following sections, namely Sections [1][64, 65, 66, [5][67], 71], 109, 110, 112, 114, 115, 116, 117, 187, 194, 195, 203, 211, 213, 214, 221, 222, 223, 224, 225, 327, 328, 329, 330, 331, 347, 348, 388, 389 and 445, the words "offence" denotes a thing punishable under this Code, or under any special or local law as hereinafter defined.

And in Sections 141, 176, 177, 201, 202, 212, 216 and 441, the word "offence" has the same meaning when the thing punishable under the special or local law is punishable under such law with imprisonment for a term of six months or upwards, whether with or without fine.

1. Subs. by Act 27 of 1870, sec. 1, for the original section.

2. Subs. by Act 8 of 1930, sec. 2 and Sch. I, for "Chapter".

3. Ins. by Act 8 of 1913, sec. 2.

4. Ins. by Act 8 of 1882, sec. 1.

5. Ins. by Act 10 of 1886, sec. 21(1).

Section 41. Special law

A "special law" is a law applicable to a particular subject.

Section 42. Local law

A "local law" is a law applicable only to a particular part of [1][[2][***] [3][India]].

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1. Subs. by the A.O. 1948, for “British India”.

2. The words “the territories comprised in” omitted by Act 48 of 1952, sec. 3 and Sch. II (w.e.f. 2-8-1952).

3. Subs. by Act 3 of 1951, sec. 3 and Sch., for “the States” which had been subs. by the A.O. 1950, for “the Provinces”.

Section 43. Illegal, Legally bound to do

The word “illegal” is applicable to everything which is an offence or which is prohibited by law, or which furnishes ground for a civil action; and a person is said to be “legally bound to do” whatever it is illegal in him to omit.

Section 44. Injury

The word “injury” denotes any harm whatever illegally caused to any person, in body, mind, reputation or property.

Section 45. Life

The word “life” denotes the life of a human being, unless the contrary appears from the context.

Section 46. Death

The word “death” denotes the death of a human being unless the contrary appears from the context.

Section 47. Animal

The word “animal” denotes any living creature, other than a human being.

Section 48. Vessel

The word “vessel” denotes anything made for the conveyance by water of human beings or of property.

Section 49. Year, Month

Wherever the word “year” or the word “month” is used, it is to be understood that the year or the month is to be reckoned according to the British calendar.

Section 50. Section

The word “section” denotes one of those portions of a chapter of this Code which are distinguished by prefixed numeral figures.

Section 51. Oath

The word “oath” includes a solemn affirmation substituted by law for an oath, and any declaration required or authorized by law to be made before a public servant or to be used for the purpose of proof, whether in a Court of Justice or not.

Section 52. Good faith

Nothing is said to be done or believed in “good faith” which is done or believed without due care and attention.

Section 52A. Harbour

[1]52A “Harbour”.- Except in Section 157, and in Section 130 in the case in which the harbour is given by the wife or husband of the person harboured, the word “harbour” includes the supplying a person with shelter, food, drink, money, clothes, arms, ammunition or means of conveyance, or the assisting a person by any means, whether of the same kind as those enumerated in this section or not, to evade apprehension.

1. Ins. by Act 8 of 1942, sec. 2 (w.e.f. 14-2-1942).

Section 53. Punishment

The punishments to which offenders are liable under the provisions of this Code are

First.— Death;

[1][Secondly.—Imprisonment for life;]

[2][***]

Fourthly. —Imprisonment, which is of two descriptions, namely:

(1) Rigorous, that is, with hard labour;

(2) Simple;

Fifthly. —Forfeiture of property;

Sixthly. —Fine.

Reformative theory

(i) The reformative approach to punishment should be the object of criminal law, in order to promote rehabilitation without offending communal

conscience and to secure social justice; Narotam Singh v. State of Punjab, AIR 1978 SC 1542.

(ii) The punishment till the rising of the Court, for the offence of grievous hurt and related offences, committed conjointly on a group by an accused person which had resulted in the hospitalisation of victim for four weeks, did not conform to any rational legal theory of behaviour, much less the reformatory theory of punishment; Raman v. Francis, (1988) Cr LJ 1359 (Ker).

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for “Secondly—Transportation” (w.e.f. 1-1-1956).

2. Clause “Thirdly” omitted by Act 17 of 1949, sec. 2 (w.e.f. 6-4-1949).

Section 53A. Construction of reference to transportation

'53A. Construction of reference to transportation.- (1) Subject to the provisions of sub-section (2) and sub-section (3), any reference to “transportation for life” in any other law for the time being in force or in any instrument or order having effect by virtue of any such law or of any enactment repealed shall be construed as a reference to “imprisonment for life”.

(2) In every case in which a sentence of transportation for a term has been passed before the commencement of the Code of Criminal Procedure (Amendment) Act, ²[1955] (26 of 1955), the offender shall be dealt with in the same manner as if sentenced to rigorous imprisonment for the same term.

(3) Any reference to transportation for a term or to transportation for any shorter term (by whatever name called) in any other law for the time being in force shall be deemed to have been omitted.

(4) Any reference to “transportation” in any other law for the time being in force shall,-

(a) If the expression means transportation for life, be construed as a reference to imprisonment for life;

(b) If the expression means transportation for any shorter term, be deemed to have been omitted.

1. Ins. by Act 26 of 1955, sec. 117 and Sch. (w.e.f. 1-1-1956).

2. Subs. by Act 36 of 1957, sec. 3 and Sch. II, for “1954” (w.e.f. 17-9-1957).

Section 54. Commutation of sentence of death

In every case in which sentence of death shall have been passed, [1][the appropriate Government] may, without the consent of the offender, commute the punishment for any other punishment provided by this code.

1. Subs. by the A.O. 1950, for "the Central Government or the Provincial Government of the Province within which the offender shall have been sentenced". The words in italics were subs. by the A.O. 1937, for "the Government of India or the Government of the place".

Section 55. Commutation of sentence of imprisonment for life

In every case in which sentence of [1][imprisonment] for life shall have been passed, [2][the appropriate Government] may, without the consent of the offender, commute the punishment for imprisonment of either description for a term not exceeding fourteen years.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation" (w.e.f. 1-1-1956).

2. Subs. by the A.O. 1950, for "the Provincial Government of the Province within which the offender shall have been sentenced". The words in italics were subs. by the A.O. 1937, for "the Government of India or the Government of the place".

Section 55A. Definition of appropriate Government

[1]55A. Definition of "appropriate Government".- In sections fifty-four and fifty-five the expression "appropriate Government" means, –

(a) In case where the sentence is a sentence of death or is for an offence against any law relating to a matter to which the executive power of the Union extends, the Central Government; and

(b) In case where the sentence (whether of death or not) is for an offence against any law relating to a matter to which the executive power of the State extends, the Government of the State within which the offender is sentenced.

1. Subs. by the A.O. 1950, for section 55A which had been ins. by the A.O. 1937.

Section 56. Sentence of Europeans and Americans to penal servitude.

Proviso as to sentence for term exceeding ten years but not for life

[Rep. by the Criminal Law (Removal of Racial Discriminations) Act, 1949 (17 of 1949) (w.e.f. 6-4-1949).]

Section 57. Fractions of terms of punishment

In calculating fractions of terms of punishment, [1][imprisonment] for life shall be reckoned as equivalent to [1][imprisonment] for twenty years.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation" (w.e.f. 1-1-1956).

Section 58. Offenders sentenced to transportation how dealt with until transported

[Rep. by the Code of Criminal Procedure (Amendment) Act, 1955 (26 of 1955), see. 117and Sch. (w.e.f. 1-1-1956).

Section 59. Transportation instead of imprisonment.

[Rep. by the Code of Criminal procedure(Amendment) Act, 1955(26 of 1955), s.117 and Sch.. (w.e.f. 1.1.1956).]

Section 60. Sentence may be (in certain cases of imprisonment) wholly or partly rigorous or simple

In every case in which an offender is punishable with imprisonment which may be of either description, it shall be competent to the Court which sentences such offender to direct in the sentence that such imprisonment shall be wholly rigorous, or that such imprisonment shall be wholly simple, or that any part of such imprisonment shall be rigorous and the rest simple

Section 61. Sentence of forfeiture of property

[Rep. by the Indian Penal Code (Amendment) Act, 1921 (16 of 1921), sec. 4.]

Section 62. Forfeiture of property, in respect of offenders punishable with death, transportation or imprisonment

Rep. by the Indian Penal Code (Amendment) Act, 1921 (16of 1921), sec. 4.

Section 63. Amount of fine

Where no sum is expressed to which a fine may extend, the amount of fine to which the offender is liable is unlimited, but shall not be excessive.

Section 64. Sentence of imprisonment for non-payment of fine

[1][In every case, of an offence punishable with imprisonment as well as fine, in which the offender is sentenced to a fine, whether with or without imprisonment,

and in every case of an offence punishable [2][with imprisonment or fine, or] with fine only, in which the offender is sentenced to a fine,]

it shall be competent to the Court which sentences such offender to direct by the sentence that, in default of payment of the fine, the offender shall suffer

imprisonment for a certain term, in which imprisonment shall be in excess of any other imprisonment to which he may have been sentenced or to which he may be liable under a commutation of a sentence.

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1. Subs. by Act 8 of 1882, sec. 2, for “In every case in which an offender is sentenced to a fine”.

2. Ins. by Act 10 of 1886, sec. 21(2).

Section 65. Limit to imprisonment for non-payment of fine, when imprisonment and fine awardable

The term for which the Court directs the offender to be imprisoned in default of payment of a fine shall not exceed one-fourth of the term of imprisonment which is the maximum fixed for the offence, if the offence be punishable with imprisonment as well as fine.

Section 66. Description of imprisonment for non-payment of fine

The imprisonment which the Court imposes in default of payment of a fine may be of any description to which the offender might have been sentenced for the offence.

Section 67. Imprisonment for non-payment of fine when offence punishable with fine only

If the offence be punishable with fine only, '[the imprisonment which the Court imposes in default of payment of the fine shall be simple, and] the term for which the Court directs the offender to be imprisoned, in default of payment of fine, shall not exceed the following scale, that is to say, for any terms not exceeding two months when the amount of the fine shall not exceed fifty rupees, and for any terms not exceeding four months when the amount shall not exceed one hundred rupees, and for any term not exceeding six months in any other case.

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1. Ins. by Act 8 of 1882, sec. 3.

Section 68. Imprisonment to terminate on payment of fine

The imprisonment which is imposed in default of payment of a fine shall terminate when ever that fine is either paid or levied by process of law.

Section 69. Termination of imprisonment on payment of proportional part of fine
If, before the expiration of the term of imprisonment fixed in default of payment, such a proportion of the fine be paid or levied that the term of imprisonment suffered in default of payment is not less than proportional to the part of the fine still unpaid, the imprisonment shall terminate.

Illustration
A is sentenced to a fine of one hundred rupees and to four month' imprisonment in default of payment. Here, if seventy-five rupees of the fine be paid or levied before the expiation of one month of the imprisonment. A will be discharged as soon as the first month has expired. If seventy-five rupees be paid or levied at the time of the expiration of the first month, or at any later time while A continues in imprisonment. A will be immediately discharged. If fifty rupees of the fine be paid or levied before the expiration of two months of the imprisonment, A will be discharged as soon as the two months are completed. If fifty rupees be paid or levied at the time of the expiration of those two months, or at any later time while A continues in imprisonment, A will be immediately discharged.

Section 70. Fine levied within six years, or during imprisonment- Death not to discharge property from liability
The fine, or any part thereof which remains unpaid, may e levied at any time within six years after the passing of the sentence, and if, under the sentence, the offender be liable to imprisonment for a longer period than six years, then at any time previous to the expiration of that period; and the death of the offender does not discharge from the liability any property which would, after his death, be legally liable for his debts.

Section 71. Limit of punishment of offence made up of several offences
Where anything which is an offence is made up of parts, any of which parts is itself an offence, the offender shall not be punished with the punishment of more than one of such his offences, unless it be so expressly provided.

'[Where anything is an offence falling within two or more separate definitions of any law in force for the time being by which offences are defined or punished, or
where several acts, of which one or more than one would by itself or themselves constitute an offence, constitute, when combined, a different offence,

the offender shall not be punished with a more severe punishment than the Court which tries him could award for any one of such offences.]

Illustrations

(a) A gives Z fifty strokes with a stick. Here A may have committed the offence of voluntarily causing hurt to Z by the whole beating, and also by each of the blows which make up the whole beating. If A were liable to punishment for every blow, he might be imprisoned for fifty years, one for each blow. But he is liable only to one punishment for the whole beating.

(b) But if, while A is beating Z, Y interferes, and A intentionally strikes Y, here, as the blow given to Y is no part of the act whereby A voluntarily causes hurt to Z, A is liable to one punishment for voluntarily causing hurt to Z, and to another for the blow given to Y.

1. Added by Act 8 of 1882, sec. 4.

Section 72. Punishment of person guilty of one of several offences, the judgment stating that it is doubtful of which

In all cases in which judgment is given that a person is guilty of one of several offences specified in the judgment, but that it is doubtful of which of these offences he is guilty, the offender shall be punished for the offence for which the lowest punishment is provided if the same punishment is not provided for all.

Section 73. Solitary confinement

Whenever any person is convicted of an offence for which under this Code the Court has power to sentence him to rigorous imprisonment, the Court may, by its sentence, order that the offender shall be kept in solitary confinement for any portion or portions of the imprisonment to which he is sentenced, not exceeding three months in the whole, according to the following scale, that is to say

a time not exceeding one month if the term of imprisonment shall not exceed six months;

a time not exceeding two months if the term of imprisonment shall exceed six months and '[shall not exceed one] year;

a time not exceeding three months if the term of imprisonment shall exceed one year.

1. Subs. by Act 8 of 1882, sec. 5, for “be less than a”.

Section 74. Limit of solitary confinement

In executing a sentence of solitary confinement, such confinement shall in no case exceed fourteen days at a time, with intervals between the periods of solitary confinement of not less duration than such periods: and when the imprisonment awarded shall exceed three months, the solitary confinement shall not exceed seven days in any one month of the whole imprisonment awarded, with intervals between the periods of solitary confinement of not less duration than such periods.

Section 75. Enhanced punishment for certain offences under Chapter XII or Chapter XVII after previous conviction

'75. Enhanced punishment for certain offences under Chapter XII or Chapter XVII after previous conviction.- Whoever, having been convicted,
(a) by a Court in [2][India], of an offence punishable under Chapter XII or Chapter XVII of this Code with imprisonment of either description for a term of three years or upwards, [3][***]
[3][***]
shall be guilty of any offence punishable under either of those Chapters with like imprisonment for the like term, shall be subject for every such subsequent offence to [1][imprisonment for life], or to imprisonment of either description for a term which may extend to ten years.]

1. Subs. by Act 3 of 1910, sec. 2, for the original section.

2. The words “British India” have successively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch., to read as above.

3. The word “or” at the end of clause (a) and clause (b) omitted by Act 3 of 1951, sec. 3 and Sch.

4. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 76. Act done by a person bound, or by mistake of fact believing himself bound, by law

Nothing is an offence which is done by a person who is, or who by reason of a mistake of fact and not by reason of a mistake of law in good faith believes himself to be, bound by law to do it.

Illustrations

(a) A, a soldier, fires on a mob by the order of his superior officer, in conformity with the commands of the law. A has committed no offence.

(b) A, an officer of a Court of Justice, being ordered by that Court to arrest Y, and, after due enquiry, believing Z to be Y, arrests Z. A has Committed no offence.

Section 77. Act of Judge when acting judicially

Nothing is an offence which is done by a Judge when acting judicially in the exercise of any power which is, or which in good faith he believes to be, given to him by law.

Section 78. Act done pursuant to the judgment or order of Court

Nothing which is done in pursuance of, or which is warranted by the judgment or order of, a Court of Justice ; if done whilst such judgment or order remains in force, is an offence, notwithstanding the Court may have had no jurisdiction to pass such judgment or order, provided the person doing the act in good faith believes that the Court had such jurisdiction.

Section 79. Act done by a person justified, or by mistake of fact believing himself justified, by law

Nothing is an offence which is done by any person who is justified by law, or who by reason of a mistake of fact and not by reason of a mistake of law in good faith, believes himself to be justified by law, in doing it.

Illustration

A sees Z commit what appears to A to be a murder. A, in the exercise, to the best of his judgment exerted in good faith, of the power which the law gives to all person of apprehending murderers in the fact, seizes Z, in order to bring Z before the proper authorities. A has committed no offence, though it may turn out that Z was acting in self-defence.

Section 80. Accident in doing a lawful act

Nothing is an offence which is done by accident or misfortune, and without any criminal intention or knowledge in the doing of a lawful act in a lawful manner by lawful means and with proper care and caution.

Illustration

A is at work with a hatchet; the head flies off and kills a man who is standing by. Here, if there was no want of proper caution on the part of A, his act is excusable and not an offence.

Section 81. Act likely to cause harm, but done without criminal intent, and to prevent other harm

Nothing is an offence merely by reason of its being done with the knowledge that it is likely to cause harm, it if be done without any criminal intention to cause harm, and in good faith for the purpose of preventing or avoiding other harm to person or property.

Explanation

It is question of fact in such a case whether the harm to be prevented or avoided was of such a nature and so imminent as to justify or excuse the risk of doing the act with the knowledge that it was likely to cause harm.

Illustrations

(a) A, the captain of a steam vessel, suddenly and without any fault or negligence on his part, finds himself in such a position that, before he can stop his vessel, he must inevitably run down a boat B, with twenty or thirty passengers on board, unless he changes the course of his vessel, and that, by changing his course, he must incur risk of running down a boat C with only two passengers on board, which he may possibly clear. Here, if A alters his course without any intention to run down the boat C and in good faith for the purpose of avoiding the danger to the passengers in the boat B, he is not guilty of an offence, though he may run down the boat C by doing an act which he knew was likely to cause that effect, if it be found as a matter of fact that the danger which he intended to avoid was such as to excuse him in incurring the risk of running down the boat C.

(b) A, in great fire, pulls down houses in order to prevent the conflagration from spreading. He does this with the intention in good faith of saving human life or property. Here, if it be found that the harm to be prevented was of such a nature and so imminent as to excuse A's act. A is not guilty of the offence.

Section 82. Act of a child under seven years of age

Nothing is an offence which is done by a child under seven years of age.

Section 83. Act of a child above seven and under twelve of immature understanding

Nothing is an offence which is done by a child above seven years of age and under twelve, who has not attained sufficient maturity of understanding to judge of the nature and consequences of his conduct on that occasion

Section 84. Act of a person of unsound mind

Nothing is an offence which is done by a person who, at the time of doing it, by reason of unsoundness of mind, is incapable of knowing the nature of the act, or that he is doing what is either wrong or contrary to law.

Section 85. Act of a person incapable of judgment by reason of intoxication caused against his will

Nothing is an offence which is done by a person who, at the time of doing it, is, by reason of intoxication, incapable of knowing the nature of the act, or that he is doing what is either wrong, or contrary to law: provided that the thing which intoxicated him was administered to him without his knowledge or against his will.

Section 86. Offence requiring a particular intent of knowledge committed by one who is intoxicated

In cases where an act done is not an offence unless done with a particular knowledge or intent, a person who does the act in a state of intoxication shall be liable to be dealt with as if he had the same knowledge as he would have had if he had not been intoxicated, unless the thing which intoxicated him was administered to him without his knowledge or against his will.

Section 87. Act not intended and not known to be likely to cause death or grievous hurt, done by consent

Nothing which is not intended to cause death, or grievous hurt, and which is not known by the doer to be likely to cause death or grievous hurt, is an offence by reason of any harm which it may cause, or be intended by the doer to cause, to any person, above eighteen years of age, who has given consent, whether express or implied, to suffer that harm; or by reason of any harm which it may be known by the doer to be likely to cause to any such person who has consented to take the risk of that harm.

Illustration

A and Z agrees to fence with each other for amusement. This agreement implies the consent of each to suffer any harm which, in the course of such

fencing, may be caused without foul play ; and if A, while playing fairly, hurts Z, A commits no offence.

Section 88. Act not intended to cause death, done by consent in good faith for person's benefit.

Nothing which is not intended to cause death, is an offence by reason of any harm which it may cause, or be intended by the doer to cause, or be known by the doer to be likely to cause, to any person for whose benefit it is done in good faith, and who has given a consent, whether express or implied, to suffer that harm, or to take the risk of that harm

Illustration

A, a surgeon, knowing that a particular operation is likely to cause the death of Z, who suffers under a painful complaint, but not intending to cause Z's death, and intending in good faith, Z's benefit performs that operation on Z, with Z's consent. A has committed no offence.

Section 89. Act done in good faith for benefit of child or insane person, by or by consent of guardian

Nothing which is done in good faith for the benefit of a person under twelve years of age, or of unsound mind, by or by consent, either express or implied, of the guardian or other person having lawful charge of that person, is an offence by reason of any harm which it may cause, or be intended by the doer to cause or be known by the doer to be likely to cause to that person :

Provisos—Provided

First.— That this exception shall not extend to the intentional causing of death, or to the attempting to cause death;

Secondly.—That this exception shall not extend to the doing of anything which the person doing it knows to be likely to cause death, for any purpose other than the preventing of death or grievous hurt, or the curing of any grievous disease or infirmity;

Thirdly.— That this exception shall not extend to the voluntary causing of grievous hurt, or to the attempting to cause grievous hurt, unless it be for the purpose of preventing death or grievous hurt, or the curing of any grievous disease or infirmity;

Fourthly.—That this exception shall not extend to the abetment of any offence, to the committing of which offence it would not extend.

Illustration
A, in good faith, for his child's benefit without his child's consent, has his child cut for the stone by a surgeon. Knowing it to be likely that the operation will cause the child's death, but not intending to cause the child's death. A is within the exception, inasmuch as his object was the cure of the child.

Section 90. Consent known to be given under fear or misconception
A consent is not such a consent as it intended by any section of this Code, if the consent is given by a person under fear of injury, or under a misconception of fact, and if the person doing the act knows, or has reason to believe, that the consent was given in consequence of such fear or misconception ; or

Consent of insane person
if the consent is given by a person who, from unsoundness of mind, or intoxication, is unable to understand the nature and consequence of that to which he gives his consent; or

Consent of child
unless the contrary appears from the context, if the consent is given by a person who is under twelve years of age.

Section 91. Exclusion of acts which are offences independently of harm caused
The exceptions in sections 87, 88 and 89 do not extend to acts which are offences independently of any harm which they may cause, or be intended to cause, or be known to be likely to cause, to the person giving the consent, or on whose behalf the consent is given.

Illustration
Causing miscarriage (unless caused in good faith for the purpose of saving the life of the woman) is an offence independently of any harm which it may cause or be intended to cause to the woman. Therefore, it is not an offence "by reason of such harm"; and the consent of the woman or of her guardian to the causing of such miscarriage does not justify the act.

Section 92. Act done in good faith for benefit of a person without consent
Nothing is an offence by reason of any harm which it may cause to a person for whose benefit it is done in good faith, even without that person's consent, if the circumstances are such that it is impossible for that person to signify consent, or if that person is incapable of giving consent, and has no guardian or other person in lawful charge of him from whom it is possible to obtain consent in time for the thing to be done with benefit:

Provisos – Provided-
First.— That this exception shall not extend to the intentional causing of death, or the attempting to cause death;

Secondly.—That this exception shall not extend to the doing of anything which the person doing it knows to be likely to cause death, for any purpose other than the preventing of death or grievous hurt, or the curing of any grievous disease or infirmity;

Thirdly.-— That this exception shall not extend to the voluntary causing of hurt, or to the attempting to cause hurt, for any purpose other than the preventing of death or hurt;

Fourthly.—That this exception shall not extend to the abetment of any offence, to the committing of which offence it would not extend.

Illustrations
(a) Z is thrown from his horse, and is insensible. A, a surgeon, finds that Z requires to be trepanned. A, not intending Z's death, but in good faith, for Z's benefit, performs the trepan before Z recovers his power of judging for himself. A has committed no offence.

(b) Z is carried off by a tiger. A fires at the tiger knowing it to be likely that the shot may kill Z, but not intending to kill Z, and in good faith intending Z's benefit. A's ball gives Z a mortal wound. A has committed on offence.

(c) A, a surgeon, sees a child suffer an accident which is likely to prove fatal unless an operation be immediately performed. There is not time to apply to the child's guardian. A performs the operation in spite of the entreaties of the child, intending, in good faith, the child's benefit. A has committed no offence.

(d) A is in a house which is on fire, with Z, a child. People below hold out a blanket. A drops the child from the housetop, knowing it to be likely that the fall may kill the child, but not intending to kill the child, and intending, in good faith, the child's benefit. Here, even if the child is killed by the fall, A has committed no offence.

Explanation

Mere pecuniary benefit is not benefit within the meaning of Sections 88, 89 and 92.

Section 93. Communication made in good faith

No communication made in good faith is an offence by reason of any harm to the person to whom it is made, if it is made for the benefit of that person.

Illustration
A, a surgeon in good faith, communicates to a patient his opinion that he cannot live. The patient dies in consequence of the shock. A has committed no offence, though he knew it to be likely that the communication might cause the patient's death.

Section 94. Act to which a person is compelled by threats
Except murder, and offences against the State punishable with death, nothing is an offence which is done by a person who is compelled to do it by threats, which, at the time of doing it, reasonably cause the apprehension that instant death to that person will otherwise be the consequence:

Provided the person doing the act did not of his own accord, or from a reasonable apprehension of harm to himself short of instant death, place himself in the situation by which he became subject to such constraint.

Explanation 1

A person who, of his own accord, or by reason of a threat of being beaten, joins a gang of dacoits, knowing their character, is not entitled to the benefit of this exception, on the ground of his having been compelled by his associates to do anything that is an offence by law.

Explanation 2

A person seized by a gang of dacoits, and forced, by threat of instant death, to do a thing which is an offence by law ; for example, a smith compelled to take his tools and to force the door of a house for the dacoits to enter and plunder it, is entitled to the benefit of this exception.

Section 95. Act causing slight harm
Nothing is an offence by reason that it causes, or that it is intended to cause, or that it is known to be likely to cause, any harm, if that harm is so slight that no person of ordinary sense and temper would complain of such harm.

Section 96. Things done in private defence
Nothing is an offence which is done in the exercise of the right of private defence.

Private defence: object

(i) In judging whether accused has exceeded his right to private defence or not the court has to take into account the weapons used; Madan Mohan Pandey v. State of Uttar Pradesh, (1991) Cr LJ 467 (SC).

(ii) The defence version regarding accused acting in self defence was liable to be proved by accused; Rasikbhai Ram Singh Rana v. State of Gujarat, 1999 (1) Guj CR 176.

(iii) Where the right of private defence is pleaded, the defence must be a reasonable and probable version satisfying the cast that the harm caused by the accused was necessary for either warding off the attack or for forestalling the further reasonable apprehension from the side of the accused. The burden of establishing the plea of self-defence is on the accused and the burden stands discharged by showing preponderance of probabilities in favour of that plea on the basis of the material on record; Rizan v. State of Chattisgarh, AIR 2003 SC 976.

Right to private defence

(i) The accused is not required to prove the plea of private defence of person beyond reasonable manner of doubt. The onus on the accused is only to show that the defence version is probable one which is reflected from the salient features and the circumstances in the prosecution case itself; Sawai Ram v. State of Rajasthan, (1997) 2 Crimes 148 (Raj).

(ii) Divergent views expressed by court where prosecution failed to explain the injuries sustained by accused in same occurrence. Hence referred to larger Bench; Ram Sunder Yadav v. State of Bihar, 1999 Cr LJ 3671 (SC).

Section 97. Right of private defence of the body and of property

Every person has a right, subject to the restrictions contained in section 99, to defend

First.— His own body, and the body of any other person, against any offence affecting the human body;

Secondly.—The property, whether movable or immovable, of himself or of any other person, against any act which is an offence falling under the definition of theft, robbery, mischief or criminal trespass, or which is an attempt to commit theft, robbery, mischief or criminal trespass.

Section 98. Right of private defence against the act of a person of unsound mind, etc.

When an act, which would otherwise be a certain offence, is not that offence, by reason of the youth, the want of maturity of understanding, the unsoundness of mind or the intoxication of the person doing that act, or by reason of any misconception on the part of that person, every person has the same right of private defence against that act which he would have if the act were that offence.

Illustrations

(a) Z, under the influence of madness, attempts to kill A; Z is guilty of no offence. But A has the same right of private defence which he would have if Z were sane.

(b) A enters by night a house which he is legally entitled to enter Z, in good faith, taking A for a house-breaker, attacks A. Here Z, by attacking A under this misconception, commits no offence. But A has the same right of private defence against Z, which he would have if Z were not acting under that misconception.

Section 99. Act against which there is no right of private defence

There is no right of private defence against an act which does not reasonable cause the apprehension of death or of grievous hurt, if done, or attempted to be done, by a public servant acting in good faith under colour of his office, though that act, may not be strictly justifiable by law.

There is no right of private defence against an act which does not reasonable cause the apprehension of death or of grievous hurt, if done, or attempted to be done, by the direction of a public servant acting in good faith under colour of his office, though that direction may not be strictly justifiable by law.

There is no right of private defence in cases in which there is time to have recourse to the protection of the public authorities.

Extent to which the right may be exercised

The right to private defence in no case extends to the inflicting of more harm that it is necessary to inflict for the purpose of defence.

Explanation 1

A person is not deprived of the right of private defence against an act done, or attempted to be done, by a public servant, as such, unless he knows or has reason to believe, that the person doing the act is such public servant.

Explanation 2

A person is not deprived of the right of private defence against an act done, or attempted to be done, by the direction of a public servant, unless he knows, or has reason to believe, that the person doing the act is acting by such direction, or unless such person states the authority under which he acts, or if he has authority in writing, unless he produces such authority, if demanded.

Section 100. When the right of private defence of the body extends to causing death
The right of private defence of the body extends, under the restrictions mentioned in the last preceding section, to the voluntary causing of death or of any other harm to the assailant, if the offence which occasions the exercise of the right be of any of the descriptions hereinafter enumerated, namely:
First.— Such an assault as may reasonably cause the apprehension that death will otherwise be the consequence of such assault;

Secondly.—Such an assault as may reasonably cause the apprehension that grievous hurt will otherwise be the consequence of such assault;

Thirdly.— An assault with the intention of committing rape;

Fourthly.—An assault with the intention of gratifying unnatural lust;

Fifthly.— An assault with the intention of kidnapping or abducting;

Sixthly.— An assault with the intention of wrongfully confining a person, under circumstances which may reasonably cause him to apprehend that he will be unable to have recourse to the public authorities for his release.

1[Seventhly.–– An act of throwing or administering acid or an attempt to throw or administer acid which may reasonably cause the apprehension that grievous hurt will otherwise be the consequence of such act]

Ingredients

(i) Self inflicted injuries not explained by prosecution except the reliance on medical evidence acquittal of accused not justified; Chuhar Singh v. State of Punjab, AIR 1999 SC 1052: 1991 SCC (Cr) 1066: 1998 (4) JT 449.

(ii) The inmates clearly had a right of private defence against the intruders who tried to extract money by force; Kishore Shambhudatta Mishra v. State of Maharashtra, (1989) Cr LJ 1149: AIR 1989 SC 1173.

Right of private defence to cause death

(i) Under what circumstances accused gave knife blow to the deceased could not be explained by accused, acquittal on ground of self defence not justified; State of Uttar Pradesh v. Laeeg, AIR 1999 SC 1942: 1999 (5) SCC 588.

(ii) While being chased by deceased appellant attacked on deceased caused fire incised wound, held exceeded the right of private defence, conviction under section 304 Part I proper; Suresh Singh v. State, AIR 1999 SC 1773: 1999 (2) Crimes 42.

(iii) Attack by single blow on the neck of deceased proved fatal. Held accused exceeded right of private defence; Amar Singh v. State of Madhya Pradesh, 1997 SCC (Cr) 630.

1. Inserted by Section 2 of 'The Criminal Law (Amendment) Act, 2013'

Section 101. When such right extends to causing any harm other than death
If the offence be not of any of the descriptions enumerated in the last preceding section, the right of private defence of the body does not extend to the voluntary causing of death to the assailant, but does extend, under the restrictions mentioned in Section 99, to the voluntary causing to the assailant of any harm other than death.

Section 102. Commencement and continuance of the right of private defence of the body
The right of private defence of the body commences as soon as a reasonable apprehension of danger to the body arises from an attempt or threat to commit the offence though the offence may not have been committed; and it continues as long as such apprehension of danger to the body continues.

Section 103. When the right of private defence of property extends to causing death
The right of private defence of property extends, under the restrictions mentioned in section 99, to the voluntary causing of death or of any other harm to the wrong-doer, if the offence, the committing of which, or the attempting to commit which, occasions the exercise of the right, be an offence of any of the descriptions hereinafter enumerated, namely:
First.— Robbery;

Secondly.—House-breaking by night;

Thirdly.— Mischief by fire committed on any building, tent or vessel, which building, tent or vessel is used as a human dwelling, or as a place for the custody of property;

Fourthly.—Theft, mischief, or house-trespass, under such circumstances as may reasonably cause apprehension that death or grievous hurt will be the consequence, if such right of private defence is not exercised.

STATE AMENDMENTS

Karnataka

(1) In section 103, in clause Thirdly,
(i) after the words "mischief by fire", insert the words "or any explosive substance";

(ii) after the words "as a human dwelling, or" insert the words "as a place of worship, or".

(2) After clause Fourthly, insert the following clause, namely:
"Fifthly.—Mischief by fire or any explosive substance committed on any property used or intended to be used for the purpose of Government or any local authority, statutory body or company owned or controlled by Government or railway or any vehicle used or adapted to be used for the carriage of passengers for hire or reward."

[Vide Karnataka Act 8 of 1972, sec. 2 (w.e.f. 7-10-1972)].

Maharashtra

In section 103, add the following at the end, namely:
"Fifthly.—Mischief by fire or any explosive substance committed on any property used or intended to be used for the purposes of Government or any local authority, statutory body, company owned or controlled by Government, railway or tramway, or on any vehicle used or adapted to be used, for the carriage of passengers for hire or reward".

[Vide Maharashtra Act 19 of 1971, sec. 26 (w.e.f. 31-12-1971)].

Uttar Pradesh

In section 103, after clause fourthly, add the following clause, namely:
"Fifthly.—Mischief by fire or any explosive substance committed on
(a) Any property used or intended to be used for the purpose of Government, or any local authority or other corporation owned or controlled by the Government, or

(b) any railway as defined in clause (4) of section 3 of the Indian Railways Act, 1890 or railways stores as defined in the Railways Stores (Unlawful Possession) Act, 1955, or

(c) any transport vehicle as defined in *clause (33) of section 2 of the Motor Vehicles Act, 1939."

[Vide Uttar Pradesh Act 29 of 1970, sec. 2 (w.e.f. 17-7-1970)].
* See clause (47) of sec. 2 of the Motor Vehicles Act, 1988.

Section 104. When such right extends to causing any harm other than death
If the offence , the committing of which, or the attempting to commit which, occasions the exercise of the right of private defence, be theft, mischief, or criminal trespass, not of any of the descriptions enumerated in the last preceding section, that right does not extend to the voluntary causing of death, but does extend, subject to the restrictions mentioned in section 99, to the voluntary causing to the wrong -doer of any harm other than death.

Section 105. Commencement and continuance of the right of private defence of property
The Right of private defence of property commences when a reasonable apprehension of danger to the property commences.

The right of private defence of property against theft continues till the offender has effected his retreat with the property or either the assistance of the public authorities is obtained, or the property has been recovered.

The right of private defence of property against robbery continues as long as the offender causes or attempts to cause to any person death or hurt or wrongful restraint of as long as the fear of instant death or of instant hurt or of instant personal restraint continues.

The right of private defence of property against criminal trespass or mischief continues as long as the offender continues in the commission of criminal trespass or mischief.

The right of private defence of property against house-breaking by night continues as long as the house-trespass which has been begun by such house-breaking continues.

Section 106. Right of private defence against deadly assault when there is risk of harm to innocent person
If in the exercise of the right of private defence against an assault which reasonably causes the apprehension of death, the defender be so situated that he cannot effectually exercise that right without risk of harm to an innocent person his right or private defence extends to the running of that risk.

Illustration

A is attacked by a mob who attempt to murder him. He cannot effectually exercise his right of private defence without firing on the mob, and he cannot fire without risk of harming young children who are mingled with the mob. A commits no offence if by so firing he harms any of the children.

Section 107. Abetment of a thing

A person abets the doing of a thing, who

First.— Instigates any person to do that thing; or

Secondly.—Engages with one or more other person or persons in any conspiracy for the doing of that thing, if an act or illegal omission takes place in pursuance of that conspiracy, and in order to the doing of that thing; or

Thirdly.— Intentionally aids, by any act or illegal omission, the doing of that thing.

Explanation 1

A person who, by wilful misrepresentation, or by wilful concealment of a material fact which he is bound to disclose, voluntarily causes or procures, or attempts to cause or procure, a thing to be done, is said to instigate the doing of that thing.

Illustration

A, a public officer, is authorized by a warrant from a Court of Justice to apprehend Z. B, knowing that fact and also that C is not Z, wilfully represents to A that C is Z, and thereby intentionally causes A to apprehend C. Here B abets by instigation the apprehension of C.

Explanation 2

Whoever, either prior to or at the time of the commission of an act, does anything in order to facilitate the commission of that act, and thereby facilitate the commission thereof, is said to aid the doing of that act.

Section 108. Abettor

A person abets an offence, who abets either the commission of an offence, or the commission of an act which would be an offence, if committed by a person capable of law of committing an offence with the same intention or knowledge as that of the abettor.

Explanation 1

The abetment of the illegal omission of an act may amount to an offence although the abettor may not himself be bound to do that act.

Explanation 2

To constitute the offence of abetment it is not necessary that the act abetted should be committed, or that the effect requisite to constitute the offence should be caused.

Illustrations
(a) A instigates B to murder C. B refuses to do so. A is guilty of abetting B to commit murder.

(b) A instigates B to murder D. B in pursuance of the instigation stabs D. D recovers from the wound. A is guilty of instigating B to commit murder.

Explanation 3

It is not necessary that the person abetted should be capable by law of committing an offence, or that he should have the same guilty intention or knowledge as that of abettor, or any guilty intention or knowledge.

Illustrations
(a) A, with a guilty intention, abets a child or a lunatic to commit an act which would be an offence, if committed by a person capable by law of committed an offence, and having the same intention as A. Here A, whether the act be committed or not, is guilty of abetting an offence.

(b) A, with the intention of murdering Z, instigates B, a child under seven years of age, to do an act which causes Z's death. B, in consequence of the abetment, does the act in the absence of A and thereby causes Z's death. Here, though B was not capable by law of committing an offence. A is liable to be punished in the same manner as if B had been capable by law of committing an offence, and had committed murder, and he is therefore subject to the punishment of death.

(c) A instigates B to set fire to a dwelling-house, B, in consequence of the unsoundness of his mind, being incapable of knowing the nature of the act, or that he is doing what is wrong or contrary to law, sets fire to the house in consequence of A's instigation. B has committed no offence, but A is guilty of abetting the offence of setting fire to a dwelling house, and is liable to the punishment provided for that offence.

(d) A, intending to cause a theft to be committed, instigates B to take property belonging to Z out of Z's possession. A induces B to believe that the property belongs to A. B takes the property out of Z's possession, in good faith, believing it to be A's property. B, acting under this misconception, does not take dishonestly, and therefore does not commit theft. But A is guilty of abetting theft, and is liable to the same punishment as if B had committed theft.

Explanation 4

The abetment of an offence being an offence, the abetment of such an abetment is also as offence.

Illustration
A instigates B to instigate C to murder Z. B accordingly instigates C to murder Z, and C commits that offence in consequence of B's instigation. B is liable to be punished for his offence with the punishment for murder; and, as A instigated B to commit the offence, A is also liable to the same punishment.

Explanation 5

It is not necessary to the commission of the offence of abetment by conspiracy that the abettor should concert the offence with the person who commits it. It is sufficient if he engages in the conspiracy in pursuance of which the offence is committed.

Illustration
A concerts with B a plan for poisoning Z. It is agreed that A shall administer the poison. B then explains the plan to C mentioning that a third person is to administer the poison, but without mentioning A's name. C agrees to procure the poison, and procures and delivers it to B for the purpose of its being used in the manner explained. A administers the poison; Z dies in consequence. Here, though A and C have not conspired together, yet C has been engaged in the conspiracy in pursuance of which Z has been murdered. C has therefore committed the offence defined in this section and is liable to the punishment for murder.

Section 108A. Abetment in India of offences outside India
[1]108A. Abetment in India of offences outside India.- A person abets an offence within the meaning of this Code who, in [2][India], abets the commission of any act without and beyond 2[India] which would constitute an offence if committed in [2][India].

Illustration
A, in [2][India], instigates B, a foreigner in Goa, to commit a murder in Goa. A is guilty of abetting murder.

1. Added by Act 4 of 1898, sec. 3.

2. The words "British India" have successively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch., to read as above.

Section 109. Punishment of abetment if the act abetted is committed in consequence, and where no express provision is made for its punishment
Whoever abets any offence shall, if the act abetted is committed in consequence of the abetment, and no express provision is made by this Code for the punishment of such abetment, be punished with the punishment provided for the offence.

Explanation

An act or offence is said to be committed in consequence of abetment, when it is committed in consequence of the instigation or in pursuance of the conspiracy, or with the aid, which constitutes the abetment.

Illustrations
(a) A offers a bribe to B, a public servant, as a reward for showing A some favour in the exercise of B's official functions. B accepts the bribe. A has abetted the offence defined in Section 161.

(b) A instigates B to give false evidence. B, in consequence of the instigation, commits that offence. A is guilty of abetting that offence, and is liable to the same punishment as B.

(c) A and B conspire to poison Z. A in pursuance of the conspiracy, procures the poison and delivers it to B in order that he may administer it to Z. B in pursuance of the conspiracy, administers the poison to Z in A's absence and thereby causes Z's death. Here B is guilty of murder. A is guilty of abetting that offence by conspiracy, and is liable to the punishment for murder.

CLASSIFICATION OF OFFENCE
Punishment—Same as for offence abetted—According as offence abetted is cognizable or non-cognizable—According as offence abetted is bailable or non-bailable—Triable by court by which offence abetted is triable—Non-compoundable.

Section 110. Punishment of abetment if person abetted does act with different intention from that of abettor

Whoever abets the commission of an offence shall, if the person abetted does the act with a different intention or knowledge from that of the abettor, be punished with the punishment provided for the offence which would have been committed if the act had been done with the intention or knowledge of the abettor and with no other.

CLASSIFICATION OF OFFENCE

Punishment—Same as for offence abetted—According as offence abetted is cognizable or non-cognizable—According as offence abetted is bailable or non-bailable—Triable by court by which offence abetted is triable—Non-compoundable.

Section 111. Liability of abettor when one act abetted and different act done

When an act is abetted and a different act is done, the abettor is liable for the act done, in the same manner and to the same extent as if he had directly abetted it:

Proviso

Provided the act done was a probable consequence of the abetment, and was committed under the influence of the instigation, or with the aid or in pursuance of the conspiracy which constituted the abetment.

Illustrations

(a) A instigates a child to put poison into the food of Z, and gives him poison for that purpose. The child, in consequence of the instigation, by mistake puts the poison into the food of Y, which is by the side of that of Z. Here, if the child was acting under the influence of A's instigation, and the act done was under the circumstances a probable consequence of the abetment. A is liable in the same manner and to the same extent as if he had instigated the child to put the poison into the food of Y.

(b) A instigates B to burn Z's house. B sets fire to the house and at the same time commits theft of property there. A, though guilty of abetting the burning of the house, is not guilty of abetting the theft; for the theft was a distinct act, and not a probable consequence of the burning.

(c) A instigates B and C to break into an inhabited house at midnight for the purpose of robbery, and provides them with arms for that purpose. B and C break into the house, and being resisted by Z, one of the inmates, murder Z.

Here, if that murder was the probable consequence of the abetment, A is liable to the punishment provided for murder.

CLASSIFICATION OF OFFENCE

Punishment—Same as for offence intended to be abetted—According as offence abetted is cognizable or non-cognizable—According as offence abetted is bailable or non-bailable—Triable by court by which offence abetted is triable —Non-compoundable.

Section 112. Abettor when liable to cumulative punishment for act abetted and for act done

If the act for which the abettor is liable under the last preceding section is committed in addition to the act abetted, and constitutes a distinct offence, the abettor is liable to punishment for each of the offences.

Illustration

A instigates B to resist by force a distress made by a public servant. B, in consequence, resists that distress. In offering the resistance, B voluntarily causes grievous hurt to the officer executing the distress. As be has committed both the offence of resisting the distress, and the offence of voluntarily causing grievous hurt, B is liable to punishment for both these offences; and, if A knew that B was likely voluntarily to cause grievous hurt in resisting the distress A will Also be liable to punishment for each of the offences.

Section 113. Liability of abettor for an effect caused by the act abetted different from that intended by the abettor

When an act is abetted with the intention on the part of the abettor of causing a particular effect, and an act for which the abettor is liable in consequence of the abetment, cause a different effect from that intended by the abettor, the abettor is liable for the effect caused, in the same manner and to the same extent as if he had abetted the act with the intention of causing that effect, provided he knew that the act abetted was likely to cause that effect.

Illustration

A instigates B to cause grievous hurt to Z. B, in consequence of the instigation, causes grievous hurt to Z. Z dies in consequence. Here, if A knew that the grievous hurt abetted was likely to cause death, A is liable to be punished with the punishment provided for murder.

CLASSIFICATION OF OFFENCE

Punishment—Same as for offence committed—According as offence abetted is cognizable or non-cognizable—According as offence abetted is bailable or non-bailable—Triable by court by which offence abetted is triable—Non-compoundable.

Section 114. Abettor present when offence is committed

Whenever any person, who is absent would be liable to be punished as an abettor, is present when the act or offence for which he would be punishable in consequence of the abetment is committed, he shall be deemed to have committed such act or offence.

CLASSIFICATION OF OFFENCE

Punishment—Same as for offence committed—According as offence abetted is cognizable or non-cognizable—According as offence abetted is bailable or non-bailable—Triable by court by which offence abetted is triable—Non-compoundable.

Section 115. Abetment of offence punishable with death or imprisonment for life-if offence not committed

Whoever abets the commission of an offence punishable with death or '[imprisonment for life], shall, if that offence be not committed in consequence of the abetment, and no express provision is made by this Code for the punishment of such abetment, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;

If act causing harm be done in consequence– and if any act for which the abettor is liable in consequence of the abetment, and which causes hurt to any person, is done, the abettor shall be liable to imprisonment of either description for a term which may extend to fourteen years, and shall also be liable to fine.

Illustration

A instigates B to murder Z. The offence is not committed. If B had murdered Z, he would have been subject to the punishment of death or 1[imprisonment for life]. Therefore A is liable to imprisonment for a term which may extend to seven years and also to a fine; and if any hurt be done to Z in consequence of the abetment, he will be liable to imprisonment for a term which may extend to fourteen years, and to fine.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 7 years and fine—According as offence abetted is cognizable or non-cognizable—non-bailable—Triable by court by which offence abetted is triable—Non-compoundable.

Para II
Punishment—Imprisonment for 14 years and fine—According as offence abetted is cognizable or non-cognizable—non-bailable—Triable by court by which offence abetted is triable—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 116. Abetment of offence punishable with imprisonment-if offence be not committed

Whoever abets an offence punishable with imprisonment shall, if that offence be not committed in consequence of the abetment, and no express provision is made by this Code for the punishment of such abetment, be punished with imprisonment of any description provided for that offence for a term which may extend to one-fourth part of the longest term provided for that offence; or with such fine as is provided for the offence, or with both ;

If abettor or person abetted be a public servant whose duty it is to prevent offence.— and if the abettor or the person abetted is a public servant, whose duty it is to prevent the commission of such offence, the abettor shall be punished with imprisonment of any description provided for that offence, for a term which may extend to one-half of the longest term provided for that offence, or with such fine as is provided for the offence, or with both.

Illustrations

(a) A offers a bribe to B, a public servant, as a reward for showing A some favour in the exercise of B's official functions. B refuses to accept the bribe. A is punishable under this section.

(b) A instigates B to give false evidence. Here, if B does not give false evidence, A has s nevertheless committed the offence defined in this section, and is punishable accordingly.

(c) A, a police-officer, whose duty it is to prevent robbery, abets the commission of robbery. Here, though the robbery be not committed, A is

liable to one-half of the longest term of imprisonment provided for that offence, and also to fine.

(d) B abets the commission of a robbery by A, a police-officer, whose duty it is to prevent that offence. Here, though the robbery be not committed, B is liable to one-half of the longest term of imprisonment provided for the offence of robbery, and also to fine.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment extending to a quarter part of the longest term, provided for the offence, or fine, or both—According to offence abetted is cognizable or non-cognizable—According as offence abetted is bailable or non-bailable—Triable by court by which offence abetted is triable—Non-compoundable.

Para II

Punishment—Imprisonment extending to half of the longest term, provided for the offence, or fine, or both—According as offence abetted is cognizable or non-cognizable—According as offence abetted is bailable or non-bailable—Triable by court by which offence abetted is triable—Non-compoundable.

Section 117. Abetting commission of offence by the public or by more than ten persons

Whoever abets the commission of an offence by the public generally or by any number or class of persons exceeding ten, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

Illustration

A affixes in a public place a placard instigating a sect consisting of more than ten members to meet at a certain time and place, for the purpose of attacking the members of an adverse sect, while engaged in a procession. A has committed the offence defined in this section.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years, or fine, or both—According as offence abetted is cognizable or non-cognizable—According as offence abetted is bailable or non-bailable—Triable by court by which offence abetted is triable—Non-compoundable.

Section 118. Concealing design to commit offence punishable with death or imprisonment for life

Whoever intending to facilitate or knowing it to be likely that he will thereby facilitate the commission of an offence punishable with death or [1][imprisonment for life];

[2][Voluntarily conceals by any act or omission or by the use of encryption or any other information hiding tool, the existence of a design] to commit such offence or makes any representation which he knows to be false respecting such design,

If offence be committed—if offence be not committed.—shall, if that offence be committed, be punished with imprisonment of either description for a term which may extend to seven years, or, if the offence be not committed, with imprisonment of either description, for a term which may extend to three years; and in either case shall also be liable to fine.

Illustration

A, knowing that dacoity is about to be committed at B, falsely informs the Magistrate that a dacoity is about to be committed at C, a place in an opposite direction, and thereby misleads the Magistrate with intent to facilitate the commission of the offence. The dacoity is committed at B in pursuance of the design. A is punishable under this section.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 7 years and fine—According as offence abetted is cognizable or non-cognizable—Non-bailable—Triable by court by which offence abetted is triable—Non-compoundable.

Para II

Punishment—Imprisonment for 3 years and fine—According as offence abetted is cognizable or non-cognizable—Bailable—Triable by court by which offence abetted is triable—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

2. Subs. by Act 10 of 2009, sec. 51(c), for “Voluntarily conceals, by any act or illegal omission,, the existence of a design”.

Section 119. Public servant concealing design to commit offence which it is his duty to prevent

Whoever, being a public servant, intending to facilitate or knowing it to be likely that he will thereby facilitate the commission of an offence which it is his duty as such public servant to prevent;

[1][Voluntarily conceals by any act or omission or by the use of encryption or any other information hiding tool, the existence of a design] to commit such offence or makes any representation which he knows to be false respecting such design,

If offence be committed.—shall, if the offence be committed, be punished with imprisonment of any description provided for the offence, for a term which may extend to one-half of the longest term of such imprisonment, or with such fine as is provided for that offence, or with both;

If offence be punishable with death, etc.—or, if the offence be punishable with death or [2][imprisonment for life], with imprisonment of either description for a term which may extend to ten years;

If offence be not committed.—or if the offence be not committed, shall be punished with imprisonment of any description provided for the offence for a term which may extend to one-fourth part of the longest term of such imprisonment or with such fine as is provided for the offence, or with both.

Illustration

A, an officer of police, being legally bound to give information of all designs to commit robbery which may come to his knowledge, and knowing that B designs to commit robbery, omits to give such information, with intent to facilitate the commission of that offence. Here A has by an illegal omission concealed the existence of B's design, and is liable to punishment according to the provision of this section.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment extending to half of the longest term provided for the offence, or fine, or both—According as offence abetted is cognizable or non-cognizable—According as offence abetted is bailable or non-bailable—Triable by court which offence abetted is triable—Non-compoundable.

Para II

Punishment—Imprisonment for 10 years—According as offence abetted is cognizable or non-cognizable—Non-bailable—Triable by court by which offence abetted is triable—Non-compoundable.

Para III
Punishment—Imprisonment extending to a quarter part of the longest term provided for the offence, or fine, or both—According as offence abetted is cognizable or non-cognizable—Bailable—Triable by court by which offence abetted is triable—Non-compoundable.

1. Subs. by Act 10 of 2009, sec. 51(d), "voluntarily conceals," by any Act or illegal ommission, the existence of a design".

2. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f 1-1-1956).

Section 120. Concealing design to commit offence punishable with imprisonment
Whoever, intending to facilitate or knowing it to be likely that he will thereby facilitate the commission of an offence punishable with imprisonment,

voluntarily conceals, by any act or illegal omission, the existence of a design to commit such offence, or makes any representation which he knows to be false respecting such design,

If offence be committed—if offence be not committed.—shall, if the offence be committed, be punished with imprisonment of the description provided for the offence, for a term which may extend to one-fourth, and, if the offence be not committed, to one-eighth, of the longest term of such imprisonment, or with such fine as is provided for the offence, or with both.

CLASSIFICATION OF OFFENCE

Para I
Punishment—Imprisonment extending to a quarter part of the longest term provided for the offence, or fine, or both—According as offence abetted is cognizable or non-cognizable—According as offence abetted is bailable or non-bailable—Triable by court by which offence abetted is triable—Non-compoundable.

Para II
Punishment—Imprisonment extending to one-eighth part of the longest term provided for the offence, or fine, or both—According as offence abetted is cognizable or non-cognizable—Bailable—Triable by court by which offence abetted is triable—Non-compoundable.

Section 120A. Definition of criminal conspiracy.

'120A. Definition of criminal conspiracy.- When two or more persons agree to do, or cause to be done,
(1) an illegal act, or
(2) an act which is not illegal by illegal means, such an agreement is designated a criminal conspiracy:

Provided that no agreement except an agreement to commit an offence shall amount to a criminal conspiracy unless some act besides the agreement is done by one or more parties to such agreement in pursuance thereof.

Explanation

It is immaterial whether the illegal act is the ultimate object of such agreement, or is merely incidental to that object.]

1. Ins. by Act 8 of 1913, sec. 3.

Section 120B. Punishment of criminal conspiracy

'120B. Punishment of criminal conspiracy.—(1) Whoever is a party to a criminal conspiracy to commit an offence punishable with death, ²[imprisonment for life] or rigorous imprisonment for a term of two years or upwards, shall, where no express provision is made in this Code for the punishment of such a conspiracy, be punished in the same manner as if he had abetted such offence.
(2) Whoever is a party to a criminal conspiracy other than a criminal conspiracy to commit an offence punishable as aforesaid shall be punished with imprisonment of either description for a term not exceeding six months, or with fine or with both.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Same as for abetment of the offence which is the object of the conspiracy—According as the offence which is the object of conspiracy is cognizable or non-cognizable—According as offence which is object of conspiracy is bailable or non-bailable—Triable by court by which abetment of the offence which is the object of conspiracy is triable—Non-compoundable.

Para II

Punishment—Imprisonment for six months or fine, or both—non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Ins. by Act 8 of 1913, sec. 3.

2. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 121. Waging, or attempting to wage war, or abetting waging of war, against the Government of India

Whoever wages war against the [1][Government of India], or attempts to wage such war, or abets the waging of such war, shall be punished with death, or [2][imprisonment for life] [3][and shall also be liable to fine].

[4][Illustration]

[5][***] A joins an insurrection against the [6][Government of India]. A has committed the offence defined in this section.

[7][* * *]

CLASSIFICATION OF OFFENCE

Punishment—Death or imprisonment for life and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Subs. by the A.O. 1950, for “Queen”.

2. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

3. Subs. by Act 16 of 1921, sec. 2, for “and shall forfeit all his property”.

4. Subs. by Act 36 of 1957, sec. 3 and Sch. II, for “Illustrations” (w.e.f. 17-9-1957).

5. The brackets and letter “(a)” omitted by Act 36 of 1957, sec. 3 and Sch. II (w.e.f. 17-9-1957).

6. Subs. by the A.O. 1950, for “Queen”.

7. Illustration (b) omitted by the A.O. 1950.

Section 121A. Conspiracy to commit offences punishable by section 121

[1]121A. Conspiracy to commit offences punishable by section 121.— Whoever within or without [2][India] conspires to commit any of the offences punishable by Section 121, [3][***] or conspires to overawe, by means of criminal force or the show of criminal force, [4][the Central Government or any [5][State] Government [6][***], shall be punished with [7][imprisonment for life], or with

imprisonment of either description which may extend to ten years, [8][and shall also be liable to fine].
Explanation

To constitute a conspiracy under this section, it is not necessary that any act or illegal omission shall take place in pursuance thereof.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Ins. by Act 27 of 1870, sec. 4.

2. The words “British India” have successively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch., to read as above.

3. The words “or to deprive the Queen of the sovereignty of the Provinces or of any part thereof” omitted by the A.O. 1950.

4. Subs. by the A.O. 1937, for “the Government of India” or any “Local Government”.

5. Subs. by the A.O. 1950, for “Provincial”.

6. The words “or the Government of Burma” omitted by the A.O. 1948.

7. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life or any shorter term” (w.e.f. 1-1-1956).

8. Subs. by Act 16 of 1921, sec. 3, for “and shall forfeit all his property”.

Section 122. Collecting arms, etc., with intention of waging war against the Government of India

Whoever collects men, arms or ammunition or otherwise prepares to wage war with the intention of either waging or being prepared to wage war against the [1][Government of India], shall be punished with [2][imprisonment for life] or imprisonment of either description for a term not exceeding ten years, [3][and shall also be liable to fine].

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by the A.O. 1950, for “Queen”.

2. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

3. Subs. by Act 16 of 1921, sec. 3, for “and shall forfeit all his property”.

Section 123. Concealing with intent to facilitate design to wage war

Whoever by any act, or by any illegal omission, conceals the existence of a design to wage war against the [1][Government of India], intending by such concealment to facilitate, or knowing it to be likely that such concealment will facilitate, the waging of such war, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable —Triable by court of Session—Non-compoundable.

1. Subs. by the A.O. 1950, for “Queen”.

Section 124. Assaulting President, Governor, etc., with intent to compel or restrain the exercise of any lawful power

Whoever, with the intention of including or compelling the [1][President] of India, or the [2][Governor [3][* * *]] of any [4][State], [5][* * *] [6][* * *] [7][* * *] to exercise or refrain from exercising in any manner any of the lawful powers of such [8][President] or [2][Governor [3][* * *]],

Assault or wrongfully restrains, or attempts wrongfully to restrain, or overawes, by means of criminal force or the show of criminal force, or attempts so to overawe, such [8][President or [2][Governor [3][* * *]],

Shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by the A.O. 1950, for “Governor General”.

2. Subs. by Act 3 of 1951, sec. 3 and Sch., for “Governor”.

3. The words “or Rajpramukh” omitted by the A.O. 1956.

4. Subs. by the A.O. 1950, for “Province” which had been subs. by the A.O. 1937, for “Presidency”.

5. The words “or a Lieutenant-Governor” omitted by the A.O. 1937.

6. The words “or a Member of the Council of the Governor General of India” omitted by the A.O. 1948.

7. The words “or of the Council of any Presidency” omitted by the A.O. 1937.

8. The original words “Governor General, Governor, Lieutenant-Governor or Member of Council” have successfully been amended by the A.O. 1937, the A.O. 1948 and the A.O. 1950 to read as above.

Section 124A. Sedition

[1]124A. Sedition.— Whoever, by words, either spoken or written, or by signs, or by visible representation, or otherwise, brings or attempts to bring into hatred or contempt, or excites or attempts to excite disaffection towards. [2][* * *] the Government established by law in [3][India], [1][* * *] shall be punished with [5][imprisonment for life], to which fine may be added, or with imprisonment which may extend to three years, to which fine may be added, or with fine.

Explanation 1

The expression “disaffection” includes disloyalty and all feelings of enmity.

Explanation 2

Comments expressing disapprobation of the measures of the Government with a view to obtain their alteration by lawful means, without exciting or attempting to excite hatred, contempt or disaffection, do not constitute an offence under this section.

Explanation 3

Comments expressing disapprobation of the administrative or other action of the Government without exciting or attempting to excite hatred, contempt or disaffection, do not constitute an offence under this section.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life and fine, or imprisonment for 3 years and fine, or fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by Act 4 of 1898, sec. 4, for section 124A which had been ins. by Act 27 of 1870, sec. 5.

2. The words “Her Majesty or” omitted by the A.O. 1950. The words “or the Crown Representative ins. after the word “Majesty” by the A.O. 1937 were omitted by the A.O. 1948.

3. The words “British India” have successively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch., to read as above.

4 The words “or British Burma” ins. by the A.O. 1937 omitted by the A.O. 1948.

5. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life or any shorter term” (w.e.f. 1-1-1956).

Section 125. Waging war against any Asiatic Power in alliance with the Government of India.

Whoever wages war against the Government of any Asiatic Power in alliance or at peace with the [1][Government of India] or attempts to wage such war, or abets the waging of such war, shall be punished with [2][imprisonment for life], to which fine may be added, or with imprisonment of either description for a term which may extend to seven years, to which fine may be added, or with fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life and fine, or imprisonment for 7 years and fine, or fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by the A.O. 1950, for “Queen”.

2. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 126. Committing depredation on territories of Power at peace with the Government of India

Whoever commits depredation, or makes preparation to commit depredation, on the territories of any Power in alliance or at peace with the [1][Government of India], shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine and to

forfeiture of any property used or intended to be used in committing such depredation, or acquired by such depredation.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine, and forfeiture of certain property—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by the A.O. 1950, for "Queen".

Section 127. Receiving Property taken by war on depredation mention in Sections 125 and 126

Whoever receives any property knowing the same to have been taken in the commission of any of the offences mentioned in Sections 125 and 126, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine and to forfeiture of the property so received.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine, and forfeiture of certain property—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

Section 128. Public servant voluntary allowing prisoner of State or war to escape

Whoever, being a public servant and having the custody of any State prisoner or prisoner of war, voluntarily allows such prisoner to escape from any place in which such prisoner is confined, shall be punished with ¹[imprisonment for life], or imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 129. Public servant negligently suffering such prisoner to escape

Whoever, being a public servant and having the custody of any State prisoner or prisoner of war, negligently suffers such prisoner to escape from any place of confinement in which such prisoner is confined, shall be punished with

simple imprisonment for a term which may extend to three years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE
Punishment—Simple Imprisonment for 3 years and fine—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 130. Aiding escape of, rescuing or harbouring such prisoner
Whoever knowingly aids or assists any State prisoner or prisoner of war in escaping from lawful custody, or rescues or attempts to rescue any such prisoner, or harbours or conceals any such prisoner who has escaped from lawful custody, or offers or attempts to offer any resistance to the recapture of such prisoner, shall be punished with [1][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.
Explanation

A State prisoner or prisoner of war, who is permitted to be at large on his parole within certain limits in [2][India], is said to escape from lawful custody if he goes beyond the limits within which he is allowed to be at large.
CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

2. The words "British India" have sucessively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch., to read as above.

Section 131. Abetting mutiny, or attempting to seduce a soldier, sailor or airman from his duty
Whoever abets the committing of mutiny by an officer, soldier, [1][sailor or airman], in the Army, [2][Navy or Air Force] of the [3][Government of India] or attempts to seduce any such officer, soldier, [1][sailor or airman] from his allegiance or his duty, shall be punished with [5][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.
[6][Explanation.—In this section the words "officer", [7]["soldier", [8]["sailor"] and "airman"] include any person subject to the [9][Army Act, [10][the Army Act, 1950 (46 of 1950, [11][the Naval Discipline Act, [12][***] the [11][Indian Navy (Discipline)

Act, 1934 (34 of 1934)] [13][the Air Force Act or [14][the Air Force Act, 1950 (45 of 1950)], as the case may be]].

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for "or sailor".

2. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for "or Navy".

3. Subs. by the A.O. 1950, for "Queen".

4. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for "or sailor".

5. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

6. Ins. by Act 27 of 1870, sec. 6.

7. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for "and soldier".

8. Ins. by Act 35 of 1934, sec. 2 and Sch.

9. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for "Articles of War for the better government of Her Majesty's Army, or to the Articles of War contained in Act No. 5 of 1869".

10. Subs. by Act 3 of 1951, sec. 3 and Sch., for "the Indian Army Act, 1911".

11. Now see the Navy Act, 1957 (62 of 1957).

12. The words "or that Act as modified by" omitted by the A.O. 1950.

13. Subs. by Act 14 of 1932, sec. 130 and Sch., for "or the Air Force Act".

14. Subs. by Act 3 of 1951, sec. 3 and Sch., for "the Indian Air Force Act, 1932".

Section 132. Abetment of mutiny, if mutiny is committed in consequence thereof

Whoever abets the committing of mutiny by an officer, soldier, [1][sailor or airman] in the Army, [2][Navy or Air Force] of the [3][Government of India], shall, if mutiny be committed in consequence of that abetment, be punished with death or with [4][imprisonment for life], or imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Death, or imprisonment for life, or imprisonment for 10 years and fine-Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for “or sailor”.

2. Subs. by Act 10 of 1927, sec 2 and Sch. I, for “or Navy”.

3. Subs. by the A.O. 1950, for “Queen”.

4. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 133. Abetment of assault by soldier, sailor or airman on his superior officer, when in execution of his office

Whoever abets an assault by an office, soldier, [1][sailor or airman], in the Army, [2][Navy or Air force] of the [3][Government of India], on any superior officer being in the execution of his office, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years and fine—Cognizable—Non-Bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for “or sailor”.

2. Subs. by Act 10 of 1927, sec 2 and Sch. I, for “or Navy”.

3. Subs. by the A.O. 1950, for “Queen”.

Section 134. Abetment of such assault, if the assault is committed

Whoever abets an assault by an officer, soldier, [1][sailor, or airman], in the Army, [2][navy or Air force] of the [3][Government of India], on any superior officer being in the execution of his office, shall, if such assault be committed in consequence of that abetment be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for “or sailor”.

2. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for “or Navy”.

3. Subs. by the A.O. 1950, for “Queen”.

Section 135. Abetment of desertion of soldier, sailor or airman

Whoever abets the desertion of any officer, soldier, [1][sailor or airman], in the Army, [2][Navy or Air Force] of the [3][Government of India], shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

1. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for “or sailor”.

2. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for “or Navy”.

3. Subs. by the A.O. 1950, for “Queen”.

Section 136. Harbouring deserter

Whoever, except as hereinafter expected, knowing or having reason to believe that an officer, soldier, [1][sailor or airman], in the Army, [2][Navy or air force] of the [3][Government of India], has deserted, harbours such officer, soldier, [1][sailor airman], shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Exception

This provision does not extend to the case in which the harbour is given by a wife to her husband.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

1. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for “or sailor”.

2. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for “or Navy”.

3. Subs. by the A.O. 1950, for “Queen”.

Section 137. Deserter concealed on board merchant vessel through negligence of master

The master or person in charge of a merchant vessel, on board of which any deserter from the Army, [1][Navy or Air force] of the [2][Government of India] is concealed, shall, though ignorant of such concealment, be liable to a penalty not exceeding five hundred rupees, if he might have known of such concealment but for some neglect of his duty as such master or person in charge, or but for some want of discipline on board of the vessel.

CLASSIFICATION OF OFFENCE

Punishment—Fine of 500 rupees—Non-Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

1. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for "or Navy".

2. Subs. by the A.O. 1950, for "Queen".

Section 138. Abetment of act of insubordination by soldier, sailor or airman

Whoever abets what he knows to be an act of insubordination by an officer, soldier, [1][sailor or airman], in the Army,[2][Navy or Air Force] of the [3][Government of India], shall, if such act of insubordination be committed in consequence of that abetment, be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

1. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for "or sailor".

2. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for "or Navy".

3. Subs. by the A.O. 1950, for "Queen".

Section 138A. Application of foregoing sections to the Indian Marine Service

[Ins. by Act 14 of 1887, sec.79 and Rep. by the Amending Act, 1934 (35 of 1934), s. 2 and Sch.]

Section 139. Persons subject to certain Acts

No person subject to [1][the Army Act, [2][the Army Act, 1950 (46 of 1950), or the Naval Discipline Act, [3][[4][***] [5][the Indian Navy (Discipline) Act, 1934 (34 of 1934)], [6][the Air Force Act [7][the Air Force Act, 1950 (45 of 1950)]]], is subject to punishment under this Code for any of the offences defined in this Chapter.

1. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for "any Article of War for the Army or Navy of the Queen, or for any part of such Army or Navy".

2. Subs. by Act 3 of 1951, sec. 3 and Sch., for "the Indian Army Act, 1911".

3. Ins. by Act 35 of 1934, sec. 2 and Sch.

4. The words “or that Act as modified” omitted by the A.O. 1950.

5. Now see the Navy Act, 1957 (62 of 1957).

6. Subs. by Act 14 of 1932, sec. 130 and Sch., for “or the Air Force Act”.

7. Subs. by Act 3 of 1951, sec. 3 and Sch., for “the Indian Air Force Act, 1932”.

Section 140. Wearing garb or carrying token used by soldier, sailor or airman

Whoever, not being a soldier, [1][sailor or airman] in the Military, [2][Naval or Air] service of the [3][Government of India], wears any garb or carries any token resembling any garb or token used by such a soldier, [1][sailor or airman] with the intention that it may be believed that he is such a soldier, [1][sailor or airman], shall be punished with imprisonment of either description for a term which may extend to three month, or with fine which may extend to five hundred rupees, or with both

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 months, or fine of 500 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Non- compoundable.

1. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for “or sailor”.

2. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for “or Navy”.

3. Subs. by the A.O. 1950, for “Queen”.

Section 141. Unlawful assembly

An assembly of five or more persons is designated an “unlawful assembly”, if the common object of the persons composing that assembly is

First.— To overawe by criminal force, or show of criminal force, 1[the Central or any State Government or Parliament or the Legislature of any State], or any public servant in the exercise of the lawful power of such public servant; or

Second.— To resist the execution of any law, or of any legal process; or

Third.— To commit any mischief or criminal trespass, or other offence; or

Fourth.— By means of criminal force, or show of criminal force, to any person, to take or obtain possession of any property, or to deprive any person of the enjoyment of a right of way, or of the use of water or other incorporeal right of

which he is in possession or enjoyment, or to enforce any right or supposed right; or

Fifth.— By means of criminal force, or show of criminal force, to compel any person to do what he is not legally bound to do, or to omit to do what he is legally entitled to do.

Explanation

An assembly which was not unlawful when it assembled, may subsequently become an unlawful assembly.

1. Subs. by the A.O. 1950, for "Central or any Provincial Government or Legislature".

Section 142. Being member of unlawful assembly

Whoever, being aware of facts which render any assembly an unlawful assembly, intentionally joins that assembly, or continues in it, is said to be a member of an unlawful assembly.

Section 143. Punishment

Whoever is a member of an unlawful assembly, shall be punished with imprisonment of either description for a term which may extend to six month, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months, or fine, or both—cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 144. Joining unlawful assembly armed with deadly weapon

Whoever, being armed with any deadly weapon, or with anything which, used as a weapon of offence, is likely to cause death, is a member of an unlawful assembly, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 145. Joining or continuing in unlawful assembly, knowing it has been commanded to disperse

Whoever joins or continues in an unlawful assembly, knowing that such unlawful assembly has been commanded in the manner prescribed by law to disperse, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 146. Rioting

Whenever force or violence is used by an unlawful assembly, or by any member thereof, in prosecution of the common object of such assembly, every member of such assembly is guilty of the offence of rioting.

Section 147. Punishment for rioting

Whoever is guilty of rioting, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 148. Rioting, armed with deadly weapon

Whoever is guilty of rioting, being armed with a deadly weapon or with anything which, used as a weapon of offence, is likely to cause death, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 149. Every member of unlawful assembly guilty of offence committed in prosecution of common object

If an offence is committed by any member of an unlawful assembly in prosecution of the common object of that assembly, or such as the members or that assembly knew to be likely to be committed in prosecution of that object, every person who, at the time of the committing of that offence, is a member of the same assembly, is guilty of that offence.

CLASSIFICATION OF OFFENCE

Punishment—The same as for the offence—According as offence is cognizable or non-cognizable—According as offence is bailable or non-bailable—Triable by court by which the offence is triable—Non-compoundable.

Section 150. Hiring, or conniving at hiring, of persons to join unlawful assembly

Whoever hires or engages, or employs, or promotes, or connives at the hiring, engagement or employment of any person to join or become a member of any unlawful assembly, shall be punishable as a member of such unlawful assembly, and for any offence which may be committed by any such person as a member of such unlawful assembly in pursuance of such hiring, engagement or employment, in the same manner as if he had been a member of such unlawful assembly, or himself had committed such offence.

CLASSIFICATION OF OFFENCE

Punishment—The same as for a member of such assembly, and for any offence committed by any members of such assembly—Cognizable—According as offence is bailable or non-bailable—Triable by court by which the offence is triable—Non-compoundable.

Section 151. Knowingly joining or continuing in assembly of five or more persons after it has been commanded to disperse

Whoever knowingly joins or continues in any assembly of five or more persons likely to cause a disturbance of the public peace, after such assembly has been lawfully commanded to disperse, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

Explanation

If the assembly is an unlawful assembly with the meaning of section 141, the offender will be punishable under section 145.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 152. Assaulting or obstructing public servant when suppressing riot, etc.

Whoever assaults or threatens to assault, or obstructs or attempts to obstruct, any public servant in the discharge of his duty as such public servant, in endeavouring to disperse an unlawful assembly, or to suppress a riot or affray,

or uses, or threatens, or attempts to use criminal force to such public servant, shall be punishable with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 153. Wantonly giving provocation with intent to cause riot-if rioting be committed-if not committed

Whoever malignantly, or wantonly, by doing anything which is illegal, gives provocation to any person intending of knowing it to be likely that such provocation will cause the offence of rioting to be committed, shall, if the offence of rioting be committed in consequence of such provocation, be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both ; and if the offence of rioting be not committed, imprisonment of either description for a term which may extend to six months, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 1 year, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Para II

Punishment—Imprisonment for 6 months, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 153A. Promoting enmity between different groups on grounds of religion, race, place of birth, residence, language, etc., and doing acts prejudicial to maintenance of harmony

'[153A. Promoting enmity between different groups on grounds of religion, race, place of birth, residence, language, etc., and doing acts prejudicial to maintenance of harmony.—(1) Whoever

(a) By words, either spoken or written, or by signs or by visible representations or otherwise, promotes or attempts to promote, on grounds of religion, race, place or birth, residence, language, caste or community or any other ground whatsoever, disharmony or feelings of enmity, hatred or ill-will between different religious, racial, language or regional groups or castes or communities, or

(b) Commits any act which is prejudicial to the maintenance of harmony between different religious, racial, language or regional groups or castes or communities, and which disturbs or is likely to disturb the public tranquility, 2[or]

[2][(c) Organizes any exercise, movement, drill or other similar activity intending that the participants in such activity shall use or be trained to use criminal force or violence of knowing it to be likely that the participants in such activity will use or be trained to use criminal force or violence, or participates in such activity intending to use or be trained to use criminal force or violence or knowing it to be likely that the participants in such activity will use or be trained to use criminal force or violence, against any religious, racial, language or regional group or caste or community and such activity for any reason whatsoever causes or is likely to cause fear or alarm or a feeling of insecurity amongst members of such religious, racial, language or regional group or caste or community,]
Shall be punished with imprisonment which may extend to three years, or with fine, or with both.

Offence committed in place of worship, etc.— (2) Whoever commits an offence specified in sub-section (1) in any place of worship or in any assembly engaged in the performance of religious worship or religious ceremonies, shall be punished with imprisonment which may extend to five years and shall also be liable to fine.]

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 3 years, or fine, or both—Cognizable—Non-bailable—Triable by any Magistrate of the first class—Non-compoundable.

Para II

Punishment—Imprisonment for 5 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Section 153A subs. by Act 41 of 1961, sec. 2 (w.e.f. 12-9-1961) and again subs. by Act 35 of 1969, sec. 2, for the former section (w.e.f. 4-9-1969).

2. Ins. by Act 31 of 1972, sec. 2 (w.e.f. 14-6-1972).

Section 153AA. Punishment for knowingly carrying arms in any procession or organising, or holding or taking part in any mass drill or mass training with arms

[1][153AA. Punishment for knowingly carrying arms in any procession or organising, or holding or taking part in any mass drill or mass training with arms.—Whoever knowingly carries arms in any procession or organizes or holds or takes part in any mass drill or mass training with arms in any public place in contravention of any public notice or order issued or made under section 144A of the Code of Criminal Procedure, 1973 shall be punished with imprisonment for a term which may extend to six months and with fine which may extend to two thousand rupees.
Explanation

"Arms" means articles of any description designed or adapted as weapons for offence or defence and includes fire-arms, sharp edged weapons, lathis, dandas and sticks.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months and fine of 2000 rupees—Cognizable—Non-bailable—Triable by any Magistrate—Non-compoundable.

1. Ins. by Act 25 of 2005, sec. 44.

Section 153B. Imputations, assertions prejudicial to national-integration

[1][153B. Imputations, assertions prejudicial to national-integration.— (1) Whoever, by words either spoken or written or by signs or by visible representations or otherwise, –
(a) Makes or publishes any imputation that any class of persons cannot, by reason or their being members of any religious, racial, language or regional group or caste or community, bear true faith and allegiance to Constitution of India as by law established or uphold the sovereignty and integrity of India, or

(b) Asserts, counsels, advises, propagates or publishes that any class or persons shall, by reason of their being members of any religious, racial, language or regional group or caste or community, be denied or deprived of their rights as citizens of India or

(c) makes or publishes any assertion, counsel, plea or appeal concerning the obligation of any class of persons, by reason of their being members of any religious, racial, language or regional group or caste or community, and such assertion, counsel, plea or appeal causes or is likely to cause disharmony or feelings of enmity or hatred or ill-will between such members and other persons,

shall be punished with imprisonment which may extend to three years, or with fine, or with both.

(2) Whoever commits an offence specified in sub-section (1), in any place of worship or in any assembly engaged in the performance of religious worship or religious ceremonies, shall be punished with imprisonment which may extend to five years and shall also be liable to fine.]

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 3 years, or fine, or both—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Para II

Punishment—Imprisonment for 5 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Ins. by Act 31 of 1972, sec. 2 (w.e.f. 14-6-1972).

Section 154. Owner or occupier of land on which an unlawful assembly is held

Whenever any unlawful assembly or riot takes place, the owner or occupier of the land upon which such unlawful assembly is held, or such riot is committed, and any person having or claiming an interest in such land, shall be punishable with fine not exceeding one thousand rupees, if he or his agent or manager, knowing that such offence is being or has been committed, or having reason to believe it is likely to be committed, do not give the earliest notice thereof in his or their power to the principal officer at the nearest police-station, and do not, in the case of his or their having reason to believe that it was about to be committed, use all lawful means in his or their power to prevent, it and, in the event of its taking place, do not use all lawful means in his or their power to disperse or suppress the riot or unlawful assembly.

CLASSIFICATION OF OFFENCE

Punishment—Fine of 1,000 rupees—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 155. Liability of person for whose benefit riot is committed

Whenever a riot is committed for the benefit or on behalf of any person who is the owner or occupier of any land, respecting which such riot takes place or who claims any interest in such land, or in the subject of any dispute which gave rise to the riot, or who has accepted or derived any benefit there from,

such person shall be punishable with fine, if he or his agent of manage, having reason to believe that such riot was likely to be committed or that the unlawful assembly by which such riot was committed was likely to be held, shall not respectively use all lawful means in his or their power to prevent such assembly or riot from taking place, and for suppressing and dispersing the same.

CLASSIFICATION OF OFFENCE

Punishment—Fine—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 156. Liability of agent of owner of occupier for whose benefit riot is committed

Whenever a riot is committed for the benefit or on behalf of any person who is the owner or occupier of any land respecting which such riot takes place, or who claims any interest in such land, or in the subject or nay dispute which gave rise to the riot, or who has accepted or derived any benefit there from,

the agent or manager or such person shall be punishable with fine, if such agent or manager, having reason to believe that such riot was likely to be committed, or that the unlawful assembly by which such riot was committed was likely to be held, shall not use all lawful means in his power to prevent such riot or assembly from taking place and for suppressing and dispersing the same.

CLASSIFICATION OF OFFENCE

Punishment—Fine—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 157. Harbouring persons hired for an unlawful assembly

Whoever harbours, receives or assembles, in any house or premises in his occupation or charge, or under his control any persons, knowing that such persons have been hired, engaged or employed, or are about to be hired, engaged or employed, to join or become members of an unlawful assembly, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 158. Being hired to take part in an unlawful assembly or riot

Whoever is engaged, or hired, or offers or attempts to be hired or engaged, to do or assist in doing any of the acts specified in Section 141, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both,

or to go armed.— and whoever, being so engaged or hired as aforesaid, goes armed, or engages or offers to go armed, with any deadly weapon or with anything which used as a weapon of offence is likely to cause death, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 6 months, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Para II

Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 159. Affray

When two or more persons, by fighting in a public place, disturb the public peace, they are said to "commit an affray".

Section 160. Punishment for committing affray

Whoever commits an affray, shall be punished with imprisonment of either description for a term which may extend to one month, or with fine which may extend to one hundred rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for one month, or fine of 100 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 161-165A. Repealed

[Rep. by the Prevention of Corruption Act, 1988 (49 or 1988), sec. 31.]

Section 166. Public servant disobeying law, with intent to cause injury to any person

Whoever, being a public servant, knowingly disobeys any direction of the law as to the way in which he is to conduct himself as such public servant, intending to cause, or knowing it to be likely that he will, by such disobedience, cause injury to any person, shall be punished with simple imprisonment for a term which may extend to one year, or with fine, or with both.

Illustration
A, being an officer directed by law to take property in execution, in order to satisfy a decree pronounced in Z's favour by a Court of Justice, knowingly disobeys that direction of law, with the knowledge that he is likely thereby to cause injury to Z. A has committed the offence defined in this section.

CLASSIFICATION OF OFFENCE
Punishment—Simple imprisonment for 1 year, or fine, or both—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

1 Section 166A.
Whoever, being a public servant,–

( ) knowingly disobeys any direction of the law which prohibits him from requiring the attendance at any place of any person for the purpose of investigation into an offence or any other matter, or
( ) knowingly disobeys, to the prejudice of any person, any other direction of the law regulating the manner in which he shall conduct such investigation, or
( ) fails to record any information given to him under sub-section ( ) of section 154 of the Code of Criminal Procedure, 1973, in relation to cognizable offence punishable under section 326A, section 326B, section 354, section 354B, section 370, section 370A, section 376, section 376A, section 376B, section 376C, section 376D, section 376E or section 509, shall be punished with rigorous imprisonment for a term which shall not be less than six months but which may extend to two years, and shall also be liable to fine.

Section 166B.
Whoever, being in charge of a hospital, public or private, whether run by the Central Government, the State Government, local bodies or any other person, contravenes the provisions of section 357C of the Code of Criminal Procedure, 1973, shall be punished with imprisonment for a term which may extend to one year or with fine or with both]

1 Inserted by Section 3 of 'The Criminal Law (Amendment) Act, 2013'

Section 167. Public servant farming an incorrect document with intent to cause injury
Whoever, being a public servant, and being, as '[such public servant, charged with the preparation or translation of any document or electronic record, frames, prepares or translates that document or electronic record] in a manner which he knows or believes to be incorrect, intending thereby to cause or knowing it to be likely that he may thereby cause injury to any person, shall

be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Subs. by Act 21 of 2000, sec. 91 and Sch. I, for certain words (w.e.f. 17-10-2000).

Section 168. Public servant unlawfully engaging in trade

Whoever, being a public servant, and being legally bound as such public servant not to engage in trade, engages in trade, shall be punished with simple imprisonment for a term which may extend to one year, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Simple imprisonment for 1 year, or fine, or both—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 169. Public servant unlawfully buying or bidding for property

Whoever, being a public servant, and being legally bound as such public servant, not to purchase or bid for certain property, purchases or bids for that property, either in his own name or in the name of another, or jointly, or in shares with others, shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both; and the property, if purchased, shall be confiscated.

CLASSIFICATION OF OFFENCE

Punishment—Simple imprisonment for 2 years, or fine, or both and confiscation of property, if purchased—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 170. Personating a public servant

Whoever pretends to hold any particular office as a public servant, knowing that he does not hold such office or falsely personates any other person holding such office, and in such assumed character does or attempts to do any act under colour of such office, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Non-bailable—Triable by any Magistrate—Non Compoundable.

Section 171. Wearing garb or carrying token used by public servant with fraudulent intent

Whoever, not belonging to a certain class of public servants, wear any garb or carries any token resembling any garb or token used by that class of public servants, with the intention that it may be believed, or with the knowledge that it is likely to be believed, that he belongs to that class of public servants, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to two hundred rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 months, or fine of 200 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 171A. Candidate, Electoral right defined

[1][171A. "Candidate", "Electoral right" defined.— For the purposes of this Chapter

[2][(a) "candidate" means a person who has been nominated as a candidate at an election;]

(b) "electoral right" means the right of a person to stand, or not to stand as, or to withdraw from being, a candidate or to vote or refrain from voting at any election.]

1. Section 171A ins. by Act 39 of 1920, sec. 2.

2. Subs. by Act 40 of 1975, sec. 9, for clause (a) (w.e.f. 6-8-1975).

Section 171B. Bribery

[1][171B. Bribery.—(1) Whoever

(i) gives a gratification to any person with the object of inducing him or any other person to exercise any electoral right or of rewarding any person for having exercised any such right; or

(ii) accepts either for himself or for any other person any gratification as a reward for exercising any such right or for inducing or attempting to induce any other person to exercise any such right;

commits the offence of bribery:

Provided that a declaration of public policy or a promise of public action shall not be an offence under this section.

(2) A person who offers, or agrees to give, or offers or attempts to procure, a gratification shall be deemed to give a gratification.

(3) A person who obtains or agrees to accept or attempts to obtain a gratification shall be deemed to accept a gratification, and a person who accepts a gratification as a motive for doing what he does not intend to do, or as a reward for doing what he has not done, shall be deemed to have accepted the gratification as a reward.]

1. Section 171B ins. by Act 39 of 1920, sec. 2.

Section 171C. Undue influence at elections

'[171C. Undue influence at elections.— (1) Whoever voluntarily interferes or attempts to interfere with the free exercise of any electoral right commits the offence of undue influence at an election.
(2) Without prejudice to the generality of the provisions of sub-section (1), whoever
(a) threatens any candidate or voter, or any person in whom a candidate or voter is interested, with injury of any kind, or

(b) induces or attempts to induce a candidate or voter to believe that he or any person in whom he is interested will become or will be rendered an object of Divine displeasure or of spiritual censure,

shall be deemed to interfere with the free exercise of the electoral right of such candidate or voter, within the meaning of sub-section (1).

(3) A declaration of public policy or a promise of public action, or the mere exercise of a legal right without intent to interfere with an electoral right, shall not be deemed to be interference within the meaning of this section.]

1. Section 171C ins. by Act 39 of 1920, sec. 2.

Section 171D. Personation at elections

'[171D. Personation at elections.— Whoever at an election applies for a voting paper or votes in the name of any other person, whether living or dead, or in a fictitious name, or who having voted once at such election applies at the same election for a voting paper in his own name, and whoever abets, procures or

attempts to procure the voting by any person in any such way, commits the offence or personation at an election:
[2][Provided that nothing in this section shall apply to a person who has been authorised to vote as proxy for an elector under any law for the time being in force in so far as he votes as a proxy for such elector.]]
1. Section 171D ins. by Act 39 of 1920, sec. 2.

2. Ins. by Act 24 of 2003, sec. 5 (w.e.f. 22-9-2003)

Section 171E. Punishment for bribery

[1][171E. Punishment for bribery.— Whoever commits the offence of bribery shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both:
Provided that bribery by treating shall be punished with fine only.

Explanation

"Treating" means that form of bribery where the gratification consists in food, drink, entertainment, or provision.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 1 year, or fine, or both or if treating only, fine only—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Section 171E ins. by Act 39 of 1920, sec. 2.

Section 171F. Punishment for undue influence or personation at an election

[1][171F. Punishment for undue influence or personation at an election.— Whoever commits the offence of undue influence or personation at an election shall be punished with imprisonment of either description for a term which may extend to one year or with fine, or with both.]

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 1 year, or fine, or both or if treating only, fine only—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Para II

Punishment—Imprisonment for 1 year, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Section 171F ins. by Act 39 of 1920, sec. 2.

Section 171G. False statement in connection with an election

[1][171G. False statement in connection with an election.— Whoever with intent to affect the result of an election makes or publishes any statement purporting to be a statement of fact which is false and which he either knows or believes to be false or does not believe to be true, in relation to the personal character or conduct of any candidate shall be punished with fine.]

CLASSIFICATION OF OFFENCE

Punishment—Fine—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Section 171G ins. by Act 39 of 1920, sec. 2.

Section 171H. Illegal payments in connection with an election

[1][171H. Illegal payments in connection with an election.— Whoever without the general or special authority in writing of a candidate incurs or authorises expenses on account of the holding of any public meeting, or upon any advertisement, circular or publication, or in any other way whatsoever for the purpose of promoting or procuring the election of such candidate, shall be punished with fine which may extend to five hundred rupees:
Provided that if any person having incurred any such expenses not exceeding the amount of ten rupees without authority obtains within ten days from the date on which such expenses were incurred the approval in writing of the candidate, he shall be deemed to have incurred such expenses with the authority of the candidate.]

CLASSIFICATION OF OFFENCE

Punishment—Fine of 500 rupees—Non cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Section 171H ins. by Act 39 of 1920, sec. 2.

Section 171I. Failure to keep election accounts

[1][171-I. Failure to keep election accounts.— Whoever being required by any law for the time being in force or any rule having the force of law to keep accounts of expenses incurred at or in connection with an election fails to keep such accounts shall be punished with fine which may extend to five hundred rupees.]

CLASSIFICATION OF OFFENCE

Punishment—Fine of 500 rupees—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Section 171-I ins. by Act 39 of 1920, sec. 2.

Section 172. Absconding to avoid service of summons or other proceeding

Whoever absconds in order to avoid being served with a summons, notice or order, proceeding from any public servant legally competent, as such public servant, to issue such summons, notice or order, shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both;

or, if the summons or notice or order is to attend in person or by agent, or to [1][produce a document or an electronic record in a Court of Justice], with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Simple imprisonment for 1 month, or fine of 500 rupees, or both —Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Para II

Punishment—Simple imprisonment for 6 months, or fine of 1,000 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

1. Subs. by Act 21 of 2000, sec. 91 and Sch. I, for "produce a document in a Court of Justice" (w.e.f. 17-10-2000).

Section 173. Preventing service of summons or other proceeding, or preventing publication thereof

Whoever in any manner intentionally prevents the serving on himself, or on any other person, of any summons, notice or order proceeding from any public servant legally competent, as such public servant, to issue such summons, notice or order,

or intentionally prevents the lawful affixing to any place of any such summons, notice or order,

or intentionally removes any such summons, notice or order from any place to which it is lawfully affixed,

or intentionally prevents the lawful making of any proclamation, under the authority of any public servant legally competent, as such public servant, to direct such proclamation to be made,

shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both;

or, if the summons, notice, order or proclamation is to attend in person or by agent, or [1][to produce a document or electronic record in a Court of Justice], with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Simple imprisonment for 1 month, or fine of 500 rupees, or both —Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Para II

Punishment—Simple imprisonment for 6 months, or fine of 1,000 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

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1. Subs. by Act 21 of 2000, sec. 91 and Sch. I, for "to produce a document in a Court of Justice" (w.e.f. 17-10-2000).

Section 174. Non-attendance in obedience to an order form public servant

Whoever, being legally bound to attend in person or by an agent at a certain place and time in obedience to a summons, notice, order or proclamation proceeding from any public servant legally competent, as such public servant, to issue the same,

intentionally omits to attend at that place or time, or departs from the place where he is bound to attend before the time at which it is lawful for him to depart,

shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both,

or, if the summons, notice, order or proclamation is to attend in person or by agent in a Court of Justice, with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

Illustrations

(a) A, being legally bound to appear before the [1][High Court] at Calcutta, in obedience to a subpoena issuing from that Court, intentionally omits to appear. A has committed the offence defined in this section

(b) A, being legally bound to appear before a [2][District Judge], as a witness, in obedience to a summons issued by that [2][District Judge] intentionally omits to appear. A has committed the offence defined in this section.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Simple imprisonment for 1 month, or fine of 500 rupees, or both —Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Para II

Punishment—Simple imprisonment for 6 months, or fine of 1,000 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

1. Subs. by the A.O. 1950, for “Supreme Court”.

2. Subs. by the A.O. 1950, for “Zila Judge”.

Section 174A. Non-appearance in response to a proclamation under section 82 of Act 2 of 1974

[1][174A. Non-appearance in response to a proclamation under section 82 of Act 2 of 1974.— Whoever fails to appear at the specified place and the specified time as required by a proclamation published under sub-section (1) of section 82 of the Code of Criminal Procedure, 1973 shall be punished with imprisonment for a term which may extend to three years or with fine or with both, and where a declaration has been made under sub-section (4) of that section pronouncing him as a proclaimed offender, he shall be punished with imprisonment for a term which may extend to seven years and shall also be liable to fine.]

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 3 years or fine, or with both—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Para II
Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Ins. by Act 25 of 2005, sec. 44 (w.e.f. 23-6-2006).

Section 175. Omission to produce document or electronic record to public servant by person legally bound to produce it.

175. Omission to produce [1][document or electronic record] to public servant by person legally bound to produce it.—Whoever, being legally bound to produce or deliver up any [1][document or electronic record] of any public servant, as such, intentionally omits so to produce or deliver up the same, shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both, or, if the [1][document or electronic record] is to be produced or delivered up to a Court of Justice, with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

Illustration

A, being legally bound to produce a document before a [2][District Court], intentionally omits to produce the same. A has committed the offence defined in this section.

CLASSIFICATION OF OFFENCE

Para I
Punishment—Simple imprisonment for 1 month, or fine of 500 rupees, or both—Non-cognizable—Bailable—Triable by the Court in which the offence is committed, subject to the provisions of Chapter XXVI or, if not committed in a Court, any Magistrate—Non-compoundable.

Para II
Punishment—Simple imprisonment for 6 months, or fine of 1,000 rupees, or both—Non-cognizable—Bailable—Triable by the Court in which the offence is committed, subject to the provisions of Chapter XXVI; or, if not committed in a Court, any Magistrate—Non-compoundable.

1. Subs. by Act 21 of 2000, sec. 91 and Sch. I, for “document” (w.e.f. 17-10-2000).

2 Subs. by the A.O. 1950, for “Zila Court”.

Section 176. Omission to give notice or information to public servant by person legally bound to give it

Whoever, being legally bound to give any notice or to furnish information on any subject to any public servant, as such, intentionally omits to give such notice or to furnish such information in the manner and at the time required by law, shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both;

or, if the notice or information required to be given respects the commission of an offence, or is required for the purpose of preventing the commission of an

offence, or in order to the apprehension of an offender, with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both;

[1][or, if the notice or information required to be given is required by an order passed under sub-section (1) of section 565 of the Code of Criminal Procedure, 1898 (5 of 1898) with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.]

CLASSIFICATION OF OFFENCE

Para I

Punishment—Simple imprisonment for 1 month, or fine of 500 rupees, or both —Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Para II

Punishment—Simple imprisonment for 6 months, or fine of 1,000 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Para III

Punishment—Imprisonment for 6 months, or fine of 1,000 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

1. Added by Act 22 of 1939, sec. 2.

Section 177. Furnishing false information

Whoever, being legally bound to furnish information on any subject to any public servant, as such, furnishes, as true, information on the subject which he knows or has reason to believe to be false, shall be punished with simple

imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both;

or, if the information which he is legally bound to give respects the commission of an offence, or is required for the purpose of preventing the commission of an offence, or in order to the apprehension of an offender, with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Illustrations

(a) A, a landholder, knowing of the commission of a murder within the limits of his estate, willfully misinforms the Magistrate of the district that the death has occurred by accident in consequence of the bite of a snake. A is guilty of the offence defined in this section

(b) A, a village watchman, knowing that a considerable body of strangers has passed through his village in order to commit a dacoity in the house of Z, a wealthy merchant residing in a neighbouring place, and being being bound under clause 5, section VII, [1][Regulation III, 1821], of the Bengal Code, to give early and punctual information of the above fact to the officer of the nearest police-station, willfully misinforms the police-officer that a body of suspicious characters passed through the village with a view to commit dacoity in a certain distant place in a different direction. Here A is guilty of the offence defined in the later part of this section.

[2]Explanation

In section 176 and in this section the word "offence" includes any act committed at any place out of [3][India], which, if committed in [3][India], would be punishable under any of the following sections, namely, 302, 304, 382, 392, 393, 394, 395, 396, 397, 398, 399, 402, 435, 436, 449, 450, 457, 458, 459 and 460; and the word "offender" includes any person who is alleged to have been guilty of any such act.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 6 months, or fine of 1,000 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Para II

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

1. Rep. by Act 17 of 1862.

2. Added by Act 3 of 1894.

3. The words “British India” have successively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch. to read as above.

Section 178. Refusing oath or affirmation when duly required by public servant to make it

Whoever refuses to bind himself by an oath [1][or affirmation] to state the truth, when required so to bind himself by a public servant legally competent to require that he shall so bind himself, shall be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Simple imprisonment for 6 months, or fine of 1,000 rupees, or both—Non-cognizable—Bailable—Triable by the court in which the offence is committed, subject to the provisions of Chapter XXVI; or, if not committed in a court, any Magistrate—Non-compoundable.

1. Rep. by Act 17 of 1862.

Section 179. Refusing to answer public servant authorised to question

Whoever, being legally bound to state the truth on any subject to any public servant, refuses to answer any question demanded of him touching that subject by such public servant in the exercise of the legal powers of such public servant, shall be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Simple imprisonment for 6 months, or fine of 1,000 rupees, or both—Non-cognizable—Bailable—Triable by the court in which the offence is committed, subject to the provisions of Chapter XXVI; or, if not committed in a court, any Magistrate—Non-compoundable.

Section 180. Refusing to sign statement

Whoever refuses to sign any statement made by him, when required to sign that statement by a public servant legally competent to require that he shall sign that statement, shall be punished with simple imprisonment for a term which may extend to three months, or with fine which may extend to five hundred rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Simple imprisonment for 3 months, or fine of 500 rupees, or both—Non-cognizable—Bailable—Triable by the court in which the offence is committed, subject to the provisions of Chapter XXVI; or, if not committed in a court, any Magistrate—Non-compoundable.

Section 181. False statement on oath or affirmation to public servant or person authorised to administer an oath or affirmation

Whoever, being legally bound by an oath [1][or affirmation] to state the truth on any subject to any public servant or other person authorized by law to administer such oath [2][or affirmation], makes, to such public servant or other person as aforesaid, touching the subject, any statement which is false, and which he either knows or believes to be false or does not believe to be true, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years and fine—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

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1. Ins. by Act 10 of 1873, sec. 15.

2. Ins. by Act 10 of 1873, sec. 15.

Section 182. False information, with intent to cause public servant to use his lawful power to the injury of another person

[1][182. False information, with intent to cause public servant to use his lawful power to the injury of another person.— Whoever gives to any public servant any information which he knows or believes to be false, intending thereby to cause, or knowing it to be likely that he will thereby cause, such public servant
(a) to do or omit anything which such public servant ought not to do or omit if the true state of facts respecting which such information is given were known by him, or
(b) to use the lawful power of such public servant to the injury or annoyance of any person,

shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

Illustrations

(a) A informs a Magistrate that Z, a police-officer, subordinate to such Magistrate, has been guilty of neglect of duty or misconduct, knowing such information to be false, and knowing it to be likely that the information will cause the Magistrate to dismiss Z. A has committed the offence defined in this section.

(b) A falsely informs a public servant that Z has contraband salt in a secret place knowing such information to be false, and knowing that it is likely that the consequence of the information will be a search of Z's premises, attended with annoyance to Z. A has committed the offence defined in this section.

(c) A falsely informs a policeman that he has been assaulted and robbed in the neighbourhood of a particular village. He does not mention the name of any person as one of his assistants, but knows it to be likely that in consequence of this information the police will make enquiries and institute searches in the village to the annoyance of the villages or some of them. A has committed an offence under this section.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months or fine of 1,000 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

1. Subs. by Act 3 of 1895, sec. 1, for the original section.

Section 183. Resistance to the taking of property by the lawful authority of a public servant

Whoever offers any resistance to the taking of any property by the lawful authority of any public servant, knowing or having reason to believe that he is such public servant, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months or fine of 1,000 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 184. Obstructing sale of property offered for sale by authority of public servant

Whoever intentionally obstructs any sale of property offered for sale by the lawful authority of any public servant as such, shall be punished with

imprisonment of either description for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 1 month or fine of 500 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 185. Illegal purchase or bid for property offered for sale by authority of public servant

Whoever, at any sale of property held by the lawful authority of a public servant, as such, purchases or bids for any property on account of any person, whether himself or any other, whom he knows to be under a legal incapacity to purchase that property at that sale, or bids for such property not intending to perform the obligations under which he lays himself by such bidding, shall be punished with imprisonment of either description for a term which may extend to one month, or with fine which may extend to two hundred rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 1 month, or fine of 200 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 186. Obstructing public servant in discharge of public functions

Whoever voluntarily obstructs any public servant in the discharge of his public functions, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to five hundred rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 months, or fine of 500 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

State Amendment

Andhra Pradesh

Offence under section 186 is cognizable.

[Vide A.P.G.O. Ms. No. 732, dated 5th December, 1991]

Section 187. Omission to assist public servant when bound by law to give assistance

Whoever, being bound by law to render or furnish assistance to any public servant in the execution of his public duty, intentionally omits to give such assistance, shall be punished with simple imprisonment for a term which may

extend to one month, or with fine which may extend to two hundred rupees, or with both;

and if such assistance be demanded to him by a public servant legally competent to make such demand for the purposes of executing any process lawfully issued by a Court of Justice, or of preventing the commission of an offence, or of suppressing a riot, or affray, or of apprehending a person charged with or guilty of an offence, or of having escaped from lawful custody, shall be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to five hundred rupees, or with both.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Simple imprisonment for 1 month, or the fine of 200 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Para II

Punishment—Simple imprisonment for 6 months, or fine of 500 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 188. Disobedience to order duly promulgated by public servant

Whoever, knowing that, by an order promulgated by a public servant lawfully empowered to promulgate such order, he is directed to abstain from a certain act, or to take certain order with certain property in his possession or under his management, disobeys such direction,

shall, if such disobedience causes to tender to cause obstruction, annoyance or injury, or risk of obstruction, annoyance of injury, to any persons lawfully employed, be punished with simple imprisonment for a term which may extend to one month or with fine which may extend to two hundred rupees, or with both;

and if such disobedience causes or trends to cause danger to human life, health or safety, or causes or tends to cause a riot or affray, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

Explanation

It is not necessary that the offender should intend to produce harm, or contemplate his disobedience as likely to produce harm. It is sufficient that he knows of the order which he disobeys, and that his disobedience produces, or is likely to produce, harm.

Illustration

An order is promulgated by a public servant lawfully empowered to promulgate such order, directing that a religious procession shall not pass down a certain street. A knowingly disobeys the order, and thereby causes danger of riot. A has committed the offence defined in this section.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Simple imprisonment for 1 month, or fine of 200 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Para II

Punishment—Imprisonment for 6 months, or fine of 1,000 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 189. Threat of injury to public servant

Whoever holds out any threat of injury to any public servant, or to any person in whom he believes that public servant to be interested, for the purpose of inducing that public servant to do any act, or to forbear or delay to do any act, connected with the exercise of the public functions of such public servant, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

State Amendments

Andhra Pradesh

In Andhra Pradesh offence under section 189 is cognizable.

[Vide A.P.G.O. Ms. No. 732, dated 5th December, 1991]

Section 190. Threat of injury to induce person to refrain from applying for protection to public servant

Whoever holds out any threat of injury to any person for the purpose of inducing that person to refrain or desist from making a legal application for

protection against any injury to any public servant legally empowered as such to give such protection, or to cause such protection to be given, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 1 year, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

State Amendment

Andhra Pradesh

Offence under section 190 is cognizable.

[Vide A.P.G.O. Ms. No. 732, dated 5th December, 1991].

Section 191. Giving false evidence

Whoever, being legally bound by an oath or by an express provision of law to state the truth, or being bound by law to make a declaration upon any subject, makes any statement which is false, and which he either knows or believes to be false or does not believe to be true, is said to give false evidence.

Explanation 1

A statement is within the meaning of this section, whether it is made verbally or otherwise.

Explanation 2

A false statement as to the belief of the person attesting is within the meaning of this section, and a person may be guilty of giving false evidence by stating that he believes a thing which he does not believe, as well as by stating that he knows a thing which he does not know.

Illustrations

(a) A, in support of a just claim which B has against Z for one thousand rupees, falsely swears on a trial that he heard Z admit the justice of B's claim. A has given false evidence.

(b) A, being bound by an oath to state the truth, states that he believes a certain signature to be the handwriting of Z, when he does not believe it to be the handwriting of Z. Here A states that which he knows to be false, and therefore gives false evidence.

(c) A, knowing the general character of Z's handwriting, states that he believes a certain signature to be the handwriting of Z; A in good faith believing it to be so. Here A's statement is merely as to his belief, and is true as to his belief, and therefore, although the signature may not be the handwriting of Z, A has not given false evidence.

(d) A, being bound by an oath to state the truth, states that he knows that Z was at a particular place on a particular day, not knowing anything upon the subject. A gives false evidence whether Z was at that place on the day named or not.

(e) A, an interpreter or translator, gives or certifies as a true interpretation or translation of a statement or document which he is bound by oath to interpret or translate truly, that which is not and which he does not believed to be a true interpretation or translation. A has given in false evidence.

Section 192. Fabricating false evidence

Whoever causes any circumstance to exist or '[makes any false entry in any book or record or Electronic Record, or makes any document or Electronic Rercord containing a false statement], intending that such circumstance, false entry or false statement may appear in evidence in a judicial proceeding, or in a proceeding taken by law before a public servant as such, or before an arbitrator, and that such circumstance, false entry or false statement, so appearing in evidence, may cause any person who in such proceeding is to form an opinion upon the evidence, to entertain an erroneous opinion touching any point material to the result of such proceeding, is said "to fabricate false evidence".

Illustrations

(a) A puts jewels into a box belonging to Z, with the intention that they may be found in that box, and that this circumstance may cause Z to be convicted of theft. A has fabricated false evidence.

(b) A makes a false entry in his shop-book for the purpose of using it as corroborative evidence in a Court of Justice. A has fabricated false evidence.

(c) A, with the intention of causing Z to be convicted of a criminal conspiracy, writes a letter in imitation of Z's handwriting, purporting to be addressed to an accomplice in such criminal conspiracy, and puts the letter in a place which he knows that the officers of the Police are likely to search. A has fabricated false evidence.

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1. Subs. by Act 21 of 2000, sec. 91 and Sch. I, for certain words (w.e.f. 17-10-2000).

Section 193. Punishment for false evidence

Whoever intentionally gives false evidence in any stage of a judicial proceeding, or fabricates false evidence for the purpose of being used in any stage of a judicial proceeding, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine,

and whoever intentionally gives or fabricates false evidence in any other case, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

Explanation 1

A trial before a Court-martial; ¹[* * *] is a judicial proceeding.

Explanation 2

An investigation directed by law preliminary to a proceeding before a Court of Justice, is a stage of a judicial proceeding, though that investigation may not take place before a Court of Justice.

Illustration

A, in an enquiry before a Magistrate for the purpose of ascertaining whether Z ought to be committed for trial, makes on oath a statement which he knows to be false. A this enquiry is a stage of a judicial proceeding, A has given false evidence.

Explanation 3

An investigation directed by a Court of Justice, according to law, and conducted under the authority of a Court of Justice, is a stage of a judicial proceeding, though that investigation may not take place before a Court of Justice.

Illustration

A, in any enquiry before an officer deputed by a Court of Justice to ascertain on the spot the boundaries of land, makes on oath a statement which he knows to be false. As this enquiry is a stage of a judicial proceeding. A has given false evidence.

CLASSIFICATION OF OFFENCE

Para I
Punishment—Imprisonment for 7 years and fine—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Para II
Punishment—Imprisonment for 3 years and fine—Non-cognizable—Bailable—Triable by any Magistrate.

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1. The words "or before a Military Court of Request" omitted by Act 13 of 1889, sec. 2 and Sch.

Section 194. Giving or fabricating false evidence with intent to procure conviction of capital offence

Whoever gives or fabricates false evidence, intending thereby to cause, or knowing it to be likely that he will thereby cause, any person to be convicted of an offence which is capital [1][by the law for the time being in force in [2][India]] shall be punished with [3][imprisonment for life], or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine;

if innocent person be thereby convicted and executed.— and if an innocent person be convicted and executed in consequence of such false evidence, the person who gives such false evidence shall be punished either with death or the punishment hereinbefore described.

CLASSIFICATION OF OFFENCE

Para I
Punishment—Imprisonment for life, or rigorous imprisonment for 10 years and fine—Non-cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

Para II
Punishment—Death or as above—Non-cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by the A.O. 1948, for "by the law of British India or England".

2. Subs. by Act 3 of 1951, sec. 3 and Sch., for "the States".

3. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 195. Giving or fabricating false evidence with intent to procure conviction of offence punishable with imprisonment for life or imprisonment

Whoever gives or fabricates false evidence intending thereby to cause, or knowing it to be likely that he will thereby cause, any person to be convicted of an offence which [1][by the law for the time being in force in [2][India] is not capital, but punishable with [3][imprisonment for life], or imprisonment for a term of seven years or upwards, shall be punished as a person convicted of that offence would be liable to be punished.

Illustration

A gives false evidence before a Court of Justice intending thereby to cause Z to be convicted of a dacoity. The punishment of dacoity is [3][imprisonment for life], or rigorous imprisonment for a term which may extend to ten years, with or without fine. A, therefore, is liable to [3][imprisonment for life] or imprisonment, with or without fine.

CLASSIFICATION OF OFFENCE

Punishment—The same as for the offence—Non-cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by the A.O. 1948, for "by the law of British India or England".

2. Subs. by Act 3 of 1951, sec. 3 and Sch., for "the States".

3. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 195A. Threatening any person to give false evidence

[1][195A. [2][Threatening any person to give false evidence].— Whoever threatens another with any injury to his person, reputation or property or to the person or reputation of any one in whom that person is interested, with intent to cause that person to give false evidence shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both;

and if innocent person is convicted and sentenced in consequence of such false evidence, with death or imprisonment for more than seven years, the person who threatens shall be punished with the same punishment and sentence in the same manner and to the same extent such innocent person is punished and sentenced.]

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 7 years or fine or both—Cognizable—Non-bailable—Triable by Court by which offence of giving false evidence is triable—Non-compoundable.

Para II
Punishment—Same as for the offence for which the false evidence was given—Cognizable—Non-bailable—Triable by Court by which offence of giving false evidence is triable—Non-compoundable.

1. Ins. by Act 2 of 2006, sec. 2 (w.e.f. 16-4-2006).

2. Corrected vide Corrigendum, dated 3rd March, 2006.

Section 196. Using evidence known to be false
Whoever corruptly uses or attempts to use as true or genuine evidence any evidence which he knows to be false or fabricated, shall be punished in the same manner as if he gave or fabricated false evidence.

CLASSIFICATION OF OFFENCE
Punishment—The same as for the giving or fabricating false evidence—Non-cognizable—According as offence of giving such evidence is bailable or non-bailable—Triable by court by which offence of giving or fabricating false evidence is triable—Non-compoundable.

Section 197. Issuing or signing false certificate
Whoever issues or signs any certificate required by law to be given or signed, or relating to any fact of which such certificate is by law admissible in evidence, knowing or believing that such certificate is false in any material point, shall be punished in the same manner as if he gave false evidence.

CLASSIFICATION OF OFFENCE
Punishment—The same as for the giving or fabricating false evidence—Non-cognizable—Bailable.—Triable by court by which offence of giving false evidence is triable—Non-compoundable.

Section 198. Using as true a certificate known to be false
Whoever corruptly uses or attempts to use any such certificate as a true certificate, knowing the same to be false in any material point, shall be punished in the same manner as if he gave false evidence.

CLASSIFICATION OF OFFENCE

Punishment—The same as for the giving or fabricating false evidence—Non-cognizable—Bailable—Triable by court by which offence of giving false evidence is triable—Non-compoundable.

Section 199. False statement made in declaration which is by law receivable as evidence

Whoever, in any declaration made or subscribed by him, which declaration any Court of Justice, or any public servant or other person, is bound or authorized by law to receive as evidence of any fact, makes any statement which is false, and which he either knows or believes to be false or does not believe to be true, touching any point material to the object for which the declaration is made or used, shall be punished in the same manner as if he gave false evidence.

CLASSIFICATION OF OFFENCE

Punishment—The same as for the giving or fabricating false evidence—Non-cognizable-Bailable—Triable by court by which offence of giving false evidence is triable—Non-compoundable.

Section 200. Using as true such declaration knowing it to be false

Whoever corruptly uses or attempts to use as true any such declaration, knowing the same to be false in any material point, shall be punished in the same manner as if he gave false evidence.

Explanation

A declaration which is inadmissible merely upon the ground of some informality, is a declaration within the meaning of sections 199 to 200.

CLASSIFICATION OF OFFENCE

Punishment—The same as for giving or fabricating false evidence—Non-cognizable—Bailable—Triable by court by which offence of giving false evidence is triable—Non-compoundable.

Section 201. Causing disappearance of evidence of offence, or giving false information to screen offender

Whoever, knowing or having reason to believe that an offence has been committed, causes any evidence of the commission of that offence to disappear, with the intention of screening the offender from legal punishment, or with that intention gives any information respecting the offence which he knows or believes to be false;

if a capital offence.—shall, if the offence which he knows or believes to have been committed is punishable with death, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;

if punishable with imprisonment for life.—and if the offence is punishable with 1[imprisonment for life], or with imprisonment which may extend to ten years, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine;

if punishable with less than ten years' imprisonment.—and if the offence is punishable with imprisonment for any term not extending to ten years, shall be punished with imprisonment of the description provided for the offence, for a term which may extend to one-fourth part of the longest term of the imprisonment provided for the offence, or with fine, or with both.

Illustration

A, knowing that B has murdered Z, assists B to hide the body with the intention of screening B from punishment. A is liable to imprisonment of either description for seven years, and also to fine.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 7 years and fine—According as the offence in relation to which disappearance of evidence is caused is cognizable or non-cognizable—Bailable—Triable by Court of Session—Non-compoundable.

Para II

Punishment—Imprisonment for 3 years and fine—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Para III

Punishment—Imprisonment for a quarter of the longest term provided for the offence, or fine or both—Non-cognizable—Bailable—Triable by court by which the offence is triable—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 202. Intentional omission to give information of offence by person bound to inform

Whoever, knowing or having reason to believe that an offence has been committed, intentionally omits to give any information respecting that offence which he is legally bound to give, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 6 months, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 203. Giving false information respecting an offence committed
Whoever knowing or having reason to believe that an offence has been committed, gives any information respecting that offence which he knows or believes to be false, shall be punished with imprisonment of either description for a term which may extend to two year, or with fine, or with both.

[1][Explanation.—In sections 201 and 202 and in this section the word "offence", includes any act committed at any place out of 2[India], which, if committed in [2][India], would be punishable under any of the following sections, namely, 302, 304, 382, 392 393, 394, 395, 396, 397, 398, 399, 402, 435, 436, 449, 450, 457, 458, 459 and 460.]

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

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1. Added by Act 3 of 1894, sec. 6.

2. The words "British India" have successively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch., to read as above.

Section 204. Destruction of document or electronic record to prevent its production as sevidence
Destruction of [1][document or electronic record] to prevent its production as sevidence.— Whoever secretes or destroys any [1][document or Electronic Record] which he may be lawfully compelled to produce as evidence in a Court of Justice, or in any proceeding lawfully held before a public servant, as such, or obliterates or renders illegible the whole or any part of such [1][document or Electronic Record] with the intention of preventing the same from being produced or used as evidence before such Court or public servant as aforesaid,

or after he shall have been lawfully summoned or required to produce the same for that purpose, shall be punishable with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

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1. Subs. by Act 21 of 2000, sec. 91 and Sch. I, for "document" (w.e.f. 17-10-2000).

Section 205. False personation for purpose of act or proceeding in suit or prosecution

Whoever falsely personates another, and in such assumed character makes any admission or statement, or confesses judgment, or causes any process to be issued or becomes bail or security, or does any other act in any suit or criminal prosecution, shall be punished with imprisonment of either description for a term which may extend to three years or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years, or fine, or both—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 206. Fraudulent removal or concealment of property to prevent its seizure as forfeited or in execution

Whoever fraudulently removes, conceals, transfers or delivers to any person any property or any interest therein, intending thereby to prevent that property or interest therein from being taken as a forfeiture or in satisfaction of a fine, under a sentence which has been pronounced, or which he knows to be likely to be pronounced, by a Court of Justice or other competent authority, or from being taken in execution of a decree or order which has been made, or which he knows to be likely to be made by a Court of Justice in a civil suit, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 207. Fraudulent claim to property to prevent its seizure as forfeited or in execution

Whoever fraudulently accepts, receives or claims any property or any interest therein, knowing that he has no right or rightful claim to such property or interest, or practices any deception touching any right to any property or any interest therein, intending thereby to prevent that property or interest therein from being taken as a forfeiture or a satisfaction of a fine, under a sentence which has been pronounced, or which he knows to be likely to be pronounced by a Court of Justice or other competent authority, or from being taken in execution of a decree or order which has been made or which knows to be likely to be made by a Court of Justice in a civil suit, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 208. Fraudulently suffering decree for sum not due

Whoever fraudulently causes or suffer a decree or order to be passed against him at the suit of any person for a sum not due or for a larger sum than is due to such person or for any property or interest in property to which such person is not entitled, or fraudulently causes or suffers a decree order to be executed against him after it has been satisfied, or for anything in respect of which it has been satisfied, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Illustration

A institutes a suit against Z. Z knowing that A is likely to obtain a decree against him, fraudulently suffers a judgment to pass against him for a larger amount at the suit of B, who has no just claim against him, in order that B, either on his own account or for the benefit of Z, may share in the proceeds of any sale of Z's property which may be made under A's decree. Z has committed an office under this section.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 209. Dishonestly making false claim in Court

Whoever fraudulently or dishonestly, or with intent to injure or any person, makes in a Court of Justice any claim which he knows to be false, shall be punished with imprisonment of either description for a term which may extend to two years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 210. Fraudulently obtaining decree for sum not due

Whoever fraudulently obtains a decree or order against any person for a sum not due or for a larger sum than is due, or for any property or interest in property to which he is not entitled, or fraudulently causes a decree or order to be executed against any person after it has been satisfied or for anything in respect of which it has been satisfied, or fraudulently suffers or permits any such act to be done in his name, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 211. False charge of offence made with intent to injure

Whoever, with intent to cause injury to any person, institutes or causes to be instituted any criminal proceeding against that person, or falsely charges any person with having committed an offence, knowing that there is no just or lawful ground for such proceeding or charge against that person, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both;

and if such criminal proceeding be instituted on a false charge of an offence punishable with death '[imprisonment for life], or imprisonment for seven years or upwards, shall be punishable with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Para II

Punishment—Imprisonment for 7 years and fine—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Para III
Punishment—Imprisonment for 7 years, and fine—No

n-cognizable—Bailable—Triable by Court of Session—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 212. Harbouring offender
Whenever an offence has been committed, whoever harbours or conceals a person whom he knows or has reason to believe to be the offender, with the intention of screening him from legal punishment;

if a capital offence.—shall, if the offence is punishable with death, be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine;
if punishable with imprisonment for life, or with imprisonment.—and if the offence is punishable with [1][imprisonment for life], or with imprisonment which may extend to ten years, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine;
and if the offence is punishable with imprisonment which may extend to one year, and not to ten years, shall be punished with imprisonment of the description provided for the offence for a term which may extend to one-fourth part of the longest term of imprisonment provided for the offence, or with fine, or with both.

[2]["Offence" in this section includes any act committed at any place out of [3][India], which, if committed in [3][India], would be punishable under any of the following sections, namely, 302, 304, 382, 392, 393, 394, 395, 396, 397, 398, 399, 402, 435, 436, 449, 450, 457, 458, 459 and 460; and every such act shall, for the purposes of this section, be deemed to be punishable as if the accused person had been guilty of it in [3][India].]
Exception.—This provision shall not extend to any case in which the harbour or concealment is by the husband or wife of the offender.

Illustration

A, knowing that B has committed dacoity, knowingly conceals B in order to screen him from legal punishment. Here, as B is liable to ¹[imprisonment for life], A is liable to imprisonment of either description for a term not exceeding three years, and is also liable to fine.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 5 years and fine—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Para II

Punishment—Imprisonment for 3 years and fine—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Para III

Punishment—Imprisonment for a quarter of the longest term, and of the description, provided for the offence, or fine, or both—Cognizance—Bailable—Triable by Magistrate of the first class—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

2. Ins. by Act 3 of 1894, sec. 7.

3. The words "British India" have successively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch., to read as above.

Section 213. Taking gift, etc., to screen an offender from punishment

Whoever accepts or attempts to obtain, or agrees to accept, any gratification for himself or any other person, or any restitution of property to himself or any other person, in consideration of his concealing an offence or of his screening any person from legal punishment for any offence, or of his not proceeding against any person for the purpose of bringing him to legal punishment,

if a capital offence.—shall, if the offence is punishable with death, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;

if punishable with imprisonment for life, or with imprisonment.—and if the offence is punishable with ¹[imprisonment for life], or with imprisonment which may extend to ten years, shall be punished with

imprisonment of either description for a term which may extend to three years, and shall also be liable to fine;
and if the offence is punishable with imprisonment not extending to ten years, shall be punished with imprisonment of the description provided for the offence for a term which may extend to one-fourth part of the longest term of imprisonment provided for the offence, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 7 years and fine—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Para II

Punishment—Imprisonment for 3 years and fine—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Para III

Punishment—Imprisonment for a quarter of the longest term, provided for the offence, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 214. Offering gift or restoration of property in consideration of screening offender

Whoever gives or causes, or offers or agrees to give or cause, any gratification to any person, or [1][restores or causes the restoration of] any property to any person, in consideration of that person's concealing an offence, or of his screening any person from legal punishment for any offence, or of his not proceeding against any person for the purpose of bringing him to legal punishment;

if a capital offence.—shall, if the offence is punishable with death, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;

if punishable with imprisonment for life, or with imprisonment.—and if the offence is punishable with [2][imprisonment for life], or with imprisonment which may extend to ten years, shall be punished with

imprisonment of either description for a term which may extend to three years, and shall also be liable to fine;
and if the offence is punishable with imprisonment not extending to ten years, shall be punished with imprisonment of the description provided for the offence for a term which may extend to one-fourth part of the longest term of imprisonment provided for the offence, or with fine, or with both.

[3][Exception.—The provisions of sections 213 and 214 do not extend to any case in which the offence may lawfully be compounded.]
[4][***]

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 7 years and fine—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Para II

Punishment—Imprisonment for 3 years and fine-—Non-cognizable—Bailable —Triable by Magistrate of the first class—Non-compoundable.

Para III

Punishment—Imprisonment for a quarter of the longest term provided for the offence, or fine, or both—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

2. Subs. by Act 42 of 1953, sec. 4 and Sch. III, for “to restore or cause the restoration of” (w.e.f. 23-12-1953).

3. Subs. by Act 8 of 1882, sec. 6, for the original Exception.

4. Illustrations rep. by Act 10 of 1882, sec. 2 and Sch. I.

Section 215. Taking gift to help to recover stolen property, etc.

Whoever takes or agrees or consents to take any gratification under pretence or on account of helping any person to recover any movable property of which he shall have been deprived by any offence punishable under this Code, shall, unless he uses all means in his power to cause the offender to be apprehended and convicted of the offence, be punished with imprisonment of either

description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 216. Harbouring offender who has escaped from custody or whose apprehension has been ordered

Whenever any person convicted of or charged with an offence, being in lawful custody for that offence, escapes from such custody;

or whenever a public servant, in the exercise of the lawful powers of such public servant, orders a certain person to be apprehended for an offence, whoever, knowing of such escape or order for apprehension, harbours of conceals that person with the intention of preventing him from being apprehended, shall be punished in the manner following that is to say,

if a capital offence.—if the offence for which the person was in custody or is ordered to be apprehended is punishable with death, he shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;

if punishable with imprisonment for life, or with imprisonment.—if the offence is punishable with [1][imprisonment for life], or imprisonment for ten years, he shall be punished with imprisonment of either description for a term which may extend to three years, with or without fine;

and if the offence is punishable with imprisonment which may extend to one year and not to ten years, he shall be punished with imprisonment of the description provided for the offence for a term which may extend to one-fourth part of the longest term of the imprisonment provided for such offence, or with fine, or with both.

[2]["Offence" in this section includes also any act or omission of which a person is alleged to have been guilty out of [3][India], which, if he had been guilty of it in [3][India], would have been punishable as an offence, and for which he is, under any law relating to extradition, [4][***] or otherwise, liable to be apprehended or detained in custody in [3][India]; and every such act or omission shall, for the purposes of this section, be deemed to be punishable as if the accused person had been guilty of it in [3][India].]

Exception.—This provision does not extend to the case in which the harbour or concealment is by the husband or wife of the person to be apprehended.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 7 years and fine—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Para II

Punishment—Imprisonment for 3 years, with or without fine—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Para III

Punishment—Imprisonment for a quarter of the longest term provided for the offence, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

2. Ins. by Act 10 of 1886, sec. 23.

3. The words "British India" have successively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch., to read as above.

4. The words "or under the Fugitive Offenders Act, 1881," omitted by Act 3 of 1951, sec. 3 and Sch.

Section 216A. Penalty for harbouring robbers or dacoits

[1][216A. Penalty for harbouring robbers or dacoits.— Whoever, knowing or having reason to believe that any persons are about to commit or have recently committed robbery or dacoity, harbours them or any of them, with the intention of facilitating the commission of such robbery or dacoity or of screening them or any of them from punishment, shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.

Explanation

For the purposes of this section it is immaterial whether the robbery or dacoity is intended to be committed, or has been committed, within or without [2][India]

Exception.— This provision does not extend to the case in which the harbour is by the husband or wife of the offender.]

CLASSIFICATION OF OFFENCE

Punishment—Rigorous imprisonment for 7 years and fine—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

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1. Ins. by Act 3 of 1894, sec. 8.

2. The words “British India” have successively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch., to read as above.

Section 216B. Definition of “harbour” in sections 212, 216 and 216A

[1][216B. Definition of “harbour” in sections 212, 216 and 216A.— [Rep. by the Indian Penal Code (Amendment) Act, 1942 (8 of 1942), sec. 3.]]

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1. Ins. by Act 3 of 1894, sec. 8.

Section 217. Public servant disobeying direction of law with intent to save person from punishment or property from forfeiture

Whoever, being a public servant, knowingly disobeys any direction of the law as to the way in which he is conduct himself as such public servant, intending thereby to save, or knowing it to be likely that he will thereby save, any person from legal punishment, or subject him to a less punishment than that to which he is liable, or with intent to save, or knowing that he is likely thereby to save, any property from forfeiture or any charge to which it is liable by law, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 218. Public servant framing incorrect record or writing with intent to save person from punishment or property from forfeiture

Whoever, being a public servant, and being as such public servant, charged with the preparation of any record or other writing, frames that record or writing in a manner which he knows to be incorrect, with intent to cause, or knowing it to be likely that he will thereby cause, loss or injury to the public or to any person, or with intent thereby to save, or knowing it to be likely that he

will thereby save, any person from legal punishment, or with intent to save, or knowing that he is likely thereby to save, any property from forfeiture or other charge to which it is liable by law, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 219. Public servant in judicial proceeding corruptly making report, etc., contrary to law

Whoever, being a public servant, corruptly or maliciously makes or pronounces in any stage of a judicial proceeding, any report, order, verdict, or decision which he knows to be contrary to law, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years, or fine, or both—Non-Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable

Section 220. Commitment for trial or confinement by person having authority who knows that he is acting contrary to law

Whoever, being in any office which gives legal authority to commit persons for trial or to confinement, or to keep persons in confinement, corruptly or maliciously commits any person for trial or to confinement, or keeps any person in confinement, in the exercise of that authority knowing that in so doing he is acting contrary to law, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years, or fine, or both—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 221. Intentional omission to apprehend on the part of public servant bound to apprehend

Whoever, being a public servant, legally bound as such public servant to apprehend or to keep in confinement any person charged with or liable to apprehended for an offence, intentionally omits to apprehend such person, or intentionally suffers such person to escape, or intentionally aids such person in escaping or attempting to escape from such confinement, shall be punished as follows, that is to say:
with imprisonment of either description for a term which may extend to seven years, with or without fine, if the person in confinement, or who ought to have been apprehended, was charged with, or liable to be apprehended for, an offence punishable with death; or

with imprisonment of either description for a term which may extend to three years, with or without fine, if the person in confinement, or who ought to have been apprehended, was charged with, or liable to be apprehended for, an offence punishable with '[imprisonment for life] or imprisonment for a term which may extend to ten years; or
with imprisonment of either description for a term which may extend to two years, with or without fine, if the person in confinement, or who ought to have been apprehended, was charged with, or liable to be apprehended for, an offence punishable with imprisonment for a term less than ten years.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 7 years, with or without fine—According as the offence in relation to which such omission has been made in cognizable or non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Para II

Punishment—Imprisonment for 3 years, with or without fine—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Para III

Punishment—Imprisonment for 2 years, with or without fine—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 222. Intentional omission to apprehend on the part of public servant bound to apprehend person under sentence or lawfully committed

Whoever, being a public servant, legally bound as such public servant to apprehend or to keep in confinement any person under sentence of a Court of Justice for any offence [1][or lawfully committed to custody], intentionally omits to apprehend such person, or intentionally suffers such person to escape, or intentionally aids such person in escaping or attempting to escape from such confinement, shall be punished as follows, that is to say :
with [2][imprisonment of life] or with imprisonment of either description for a term which may extend to fourteen years, with or without fine, if the person in confinement, or who ought to have been apprehended, is under sentence of death; or
with imprisonment of either description for a term which may extend to seven years, with or without fine, if the person in confinement or who ought to have been apprehended, is subject, by a sentence of a Court of Justice, or by virtue of a commutation of such sentence, to [2][imprisonment for life][3][***] [4][***] [5][***] [6][***] or imprisonment for a term of ten years or upwards; or
with imprisonment of either description for a term which may extend to two years, or with fine, or with both, if the person in confinement, or who ought to have been apprehended is subject, by a sentence of a Court of Justice, to imprisonment for a term not exceeding to ten years [7][or if the person was lawfully committed to custody].

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for life, or imprisonment for 14 years, with or without fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

Para II

Punishment—Imprisonment for 7 years, with or without fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Para III

Punishment—Imprisonment for 3 years, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Ins. by Act 27 of 1870, sec. 8.

2. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

3. The words “or penal servitude for life” omitted by Act 17 of 1949, sec. 2 (w.e.f. 6-4-1949).

4. The words “or to” omitted by Act 36 of 1957, sec. 3 and Sch. II (w.e.f. 17-9-1957).

5. The word “transportation” omitted by Act 26 of 1955, sec. 117 and Sch. (w.e.f. 1-1-1956).

6. The words “or penal servitude” omitted by Act 17 of 1949, sec. 2 (w.e.f. 6-4-1949).

7. Ins. by Act 27 of 1870, sec. 8.

Section 223. Escape from confinement or custody negligently suffered by public servant
Whoever, being a public servant legally bound as such public servant to keep in confinement any person charged with or convicted of any offence [1][or lawfully committed to custody], negligently suffers such person to escape from confinement, shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE
Punishment—Simple imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

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1. Ins. by Act 27 of 1870, sec. 8.

Section 224. Resistance or obstruction by a person to his lawful apprehension
Whoever intentionally offers any resistance or illegal obstruction to the lawful apprehension of himself for any offence with which he is charged or of which he has been convicted, or escapes or attempts to escape from custody in which he is lawfully detained for any such offence, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Explanation

The punishment in this section is in addition to the punishment for which the person to be apprehended or detained in custody was liable for the offence with which he was charged, or of which he was convicted.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 225. Resistance or obstruction to lawful apprehension of another person
Whoever intentionally offers any resistance or illegal obstruction to the lawful apprehension of any other person for an offence, or rescues or attempts to rescue any other person from any custody in which that person is lawfully detained for an offence, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both;

or, if the person to be apprehended, or the person rescued or attempted to be rescued, is charged with or liable to be apprehended for an offence punishable with [1][imprisonment for life] or imprisonment for a term which may extend to ten years, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine;
or, if the person to be apprehended, or the person attempted to be rescued, is charged with or liable to be apprehended for an offence punishable with death, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;

or, if the person to be apprehended or rescued, or attempted to be rescued, is liable under the sentence of a Court of Justice, or by virtue of a commutation of such a sentence, to [1][imprisonment for life] [2][***] [3][***] [4][***] or imprisonment, for a term of ten years or upwards, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine;
or, if the person to be apprehended or rescued, or attempted to be rescued, is under sentence of death, shall be punished with [1][imprisonment for life] or imprisonment of either description for a term not exceeding ten years, and shall also be liable to fine

CLASSIFICATION OF OFFENCE

Para I
Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Para II
Punishment—Imprisonment for 3 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Para III & IV
Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class.

Para V
Punishment—Imprisonment for life or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

2. The words "or to" omitted by Act 36 of 1957, sec. 3 and Sch. II (w.e.f. 17-9-1957).

3. The word "transportation" omitted by Act 26 of 1955, sec. 117 and Sch. (w.e.f. 1-1-1956).

4. The words "penal servitude" omitted by Act 17 of 1949, sec. 2 (w.e.f. 6-4-1949).

Section 225A. Omission to apprehend, or sufferance of escape, on part of public servant, in cases not otherwise, provided for

'[225A. Omission to apprehend, or sufferance of escape, on part of public servant, in cases not otherwise, provided for.— Whoever, being a public servant legally bound as such public servant to apprehend, or to keep in confinement, any person in any case not provided for in section 221, section 222 or section 223, or in any other law for the time being in force, omits to apprehend that person or suffers him to escape from confinement, shall be punished
(a) if he does so intentionally, with imprisonment of either description for a term which may extend to three years, or with fine, or with both; and
(b) if he does so negligently, with simple imprisonment for a term which may extend to two years, or with fine, or with both.]

CLASSIFICATION OF OFFENCE

Para I
Punishment—Imprisonment for 3 years, or fine, or both—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Para II
Punishment—Simple imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate.

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1. Sections 225A and 225B subs. by Act 10 of 1886, sec. 24(1), for section 225A which had been ins. by Act 27 of 1870, sec. 9.

Section 225B. Resistance or obstruction to lawful apprehension, or escape or rescue in cases not otherwise provided for

'[225B. Resistance or obstruction to lawful apprehension, or escape or rescue in cases not otherwise provided for.— Whoever, in any case not provided for in section 224 or section 225 or in any other law for the time being in force, intentionally offers any resistance or illegal obstruction to the lawful apprehension of himself or of any other person, or escapes or attempts to escape from any custody in which he is lawfully detained, or rescues or attempts to rescue any other person from any custody in which that person is lawfully detained, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

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1. Sections 225A and 225B subs. by Act 10 of 1886, sec. 24(1), for section 225A which had been ins. by Act 27 of 1870, sec. 9.

Section 226. Unlawful return from transportation

[Rep. by the Code of Criminal Procedure (Amendment) Act, 1995 (26 of 1995), sec. 117 and Sch. (w.e.f. 1.1.1956).]

Section 227. Violation of condition of remission of punishment

Whoever, having accepted any conditional remission of punishment, knowingly violates any condition on which such remission was granted, shall be punished with the punishment to which he was originally sentenced, if he has already suffered no part of that punishment, and if he has suffered any part of that punishment, then with so much of that punishment as he has not already suffered.

CLASSIFICATION OF OFFENCE

Punishment—Punishment of original sentence, or if part of the punishment has been undergone, the residue—Cognizable—Non-bailable—Triable by the court by which the original offence was triable—Non-compoundable.

Section 228. Intentional insult or interruption to public servant sitting in judicial proceeding

Whoever intentionally offers any insult, or causes any interruption to any public servant, while such public servant is sitting in any stage of a judicial proceeding, shall be punished with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

State Amendment

Andhra Pradesh

In Andhra Pradesh offence under section 228 is cognizable.

[Vide A.P.G.O. Ms. No. 732, dated 5th December, 1991].

CLASSIFICATION OF OFFENCE

Punishment—Simple Imprisonment for 6 months, or fine of 1,000 rupees or both—Non-cognizable—Bailable—Triable by the Court in which the offence is committed, subject to the provisions of Chapter XXVI—Non-compoundable.

Section 228A. Disclosure of identity of the victim of certain offences etc

'[228A. Disclosure of identity of the victim of certain offences etc.— (1) Whoever prints or publishes the name or any matter which may make known the identity of any person against whom an 2["offence under section 376, section 376A, section 376B, section 376C, section 376D or section 376E"] is alleged or found to have been committed (hereafter in this section referred to as the victim) shall be punished with imprisonment of either description for a term which may extend to two years and shall also be liable to fine.

(2) Nothing in sub-section (1) extends to any printing or publication of the name or any matter which may make known the identity of the victim if such printing or publication is

(a) by or under the order in writing of the officer-in-charge of the police station or the police officer making the investigation into such offence acting in good faith for the purposes of such investigation; or

(b) by, or with the authorisation in writing of, the victim; or

(c) where the victim is dead or minor or of unsound mind, by, or with the authorisation in writing of, the next of kin of the victim:

Provided that no such authorisation shall be given by the next of kin to anybody other than the chairman or the secretary, by whatever name called, of any recognised welfare institution or organisation.

Explanation

For the purposes of this sub-section, “recognised welfare institution or organisation” means a social welfare institution or organisation recognised in this behalf by the Central or State Government.

(3) Whoever prints or publishes any matter in relation to any proceeding before a court with respect to an offence referred to in sub-section (1) without the previous permission of such Court shall be punished with imprisonment of either description for a term which may extend to two years and shall also be liable to fine.

Explanation

The printing or publication of the judgment of any High Court or the Supreme Court does not amount to an offence within the meaning of this section.]

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for two years and fine—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Para II

Punishment—Imprisonment for two years and fine—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

1. Ins. by Act 43 of 1983, sec. 2 (w.e.f. 25-12-1983).

2. Inserted by Section 4 of ‘The Criminal Law (Amendment) Act, 2013′

Section 229. Personation of a juror or assessor

Whoever by personation or otherwise, shall intentionally cause, or knowingly suffer himself to be returned, empanelled or sworn as a juryman or assessor in any case in which he knows that he is not entitled by law to be so returned, empanelled or sworn, or knowing himself to have been so returned, empanelled or sworn contrary to law, shall voluntarily serve on such jury or as such assessor, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 229A. Failure by person released on bail or bond to appear in Court

[1][229A. Failure by person released on bail or bond to appear in Court.—Whoever, having been charged with an offence and released on bail or on bond without sureties, fails without sufficient cause (the burden of proving which shall lie upon him), to appear in Court in accordance with the terms of the bail or bond, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

Explanation

The punishment under this section is

(a) in addition to the punishment to which the offender would be liable on a conviction for the offence with which he has been charged; and

(b) without prejudice to the power of the Court to order forfeiture of the bond.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 1 year, or fine, or both—Cognizable—Non-bailable—Triable by any Magistrate—Non-compoundable.

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1. Ins. by Act 25 of 2005, sec. 44 (w.e.f. 23-6-2006)

Section 230. Coin defined

[1][Coin is metal used for the time being as money, and stamped and issued by the authority of some State or Sovereign Power in order to be so used.]

Indian coin.—[2][Indian coin is metal stamped and issued by the authority of the Government of India in order to be used as money; and metal which has been so stamped and issued shall continue to be Indian coin for the purposes of this Chapter, notwithstanding that it may have ceased to be used as money.]

Illustrations

(a) Cowries are not coin.

(b) Lumps of unstamped copper, though used as money, are not coin.

(c) Medals are not coin, in as much as they are not intended to be used as money.

(d) The coin denominated as the Company's rupee is [3][Indian coin].

[1][(e) The "Farukhabad rupee" which was formerly used as money under the authority of the Government of India is 4[Indian coin] although it is no longer so used].

1. Subs. by Act 19 of 1872, sec. 1, for the original first paragraph.

2. Subs. by A.O. 1950, for the former paragraph.

3. Subs. by the A.O. 1950, for "the Queen's coin"

4. Ins. by Act 6 of 1896, sec. 1.

Section 231. Counterfeiting coin

Whoever counterfeits or knowingly performs any part of the process of counterfeiting coin, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

Explanation

A person commits this offence who intending to practice deception, or knowing it to be likely that deception will thereby be practiced, causes a genuine coin to appear like a different coin.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 232. Counterfeiting Indian coin

Whoever counterfeits, or knowingly performs any part of the process of counterfeiting [1][Indian coin], shall be punished with [2][imprisonment for life], or with imprisonment of either description for a term which may extent to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Subs. by the A.O. 1950, for "the Queen's coin".

2. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 233. Making or selling instrument for counterfeiting coin

Whoever makes or mends, or performs any part of the process of making or mending, or buys, sells or disposes of, any die or instrument, for the purpose of being used, or knowing or having reason to believe that it is intended to be used, for the purpose of counterfeiting coin, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years and fine—Cognizable—Non-Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 234. Making or selling instrument for counterfeiting Indian coin

Whoever makes or mends, or performs any part of the process of making or mending, or buys, sells or disposes of , any die or instrument, for the purpose of being used, or knowing or having reason to believe that it is intended to be used, for the purpose of counterfeiting [1][Indian coin], shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Subs. by the A.O. 1950, for “the Queen’s coin”.

Section 235. Possession of instrument, or material for the purpose of using the same for counterfeiting coin

Whoever is in possession of any instrument or material, for the purpose of using the same for counterfeiting coin, or knowing or having reason to believe that the same is intended to be used for that purpose, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine;

if Indian coin.—and if the coin to be counterfeited is [1][Indian coin], shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 3 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Para II
Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Subs. by the A.O. 1950, for “the Queen’s coin”.

Section 236. Abetting in India the counterfeiting out of India of coin
Whoever, being within [1][India], abets the counterfeiting of coin out of [1][India], shall be punished in the same manner as if he abetted the counterfeiting of such coin within [1][India].

CLASSIFICATION OF OFFENCE
Punishment—The punishment provided for abetting the counterfeiting of such coin within India—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. The words “British India” have successively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch., to read as above.

Section 237. Import or export of counterfeit coin
Whoever imports into [1][India],or exports there from, any counterfeit coin, knowing or having reason to believe that the same is counterfeit, shall be punished with imprisonment of either description for a term which may extend to three years and shall also be liable to fine.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 3 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

1. The words “British India” have successively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch., to read as above.

Section 238. Import or export of counterfeits of the India coin
Whoever imports into [1][India], or exports there from any counterfeit coin, which he knows or has reason to believe to be a counterfeit of [2][Indian coin], shall be punished with imprisonment with [3][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. The words "British India" have successively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch., to read as above.

2. Subs. by the A.O. 1950, for "the Queen's coin".

3. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 239. Delivery of coin, possessed with knowledge that it is counterfeit
Whoever, having any counterfeit coin, which at the time when he became possessed of it knew to be counterfeit, fraudulently or with intent that fraud may be committed, delivers the same to any person, or attempts to induce any person to receive it shall be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 5 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 240. Delivery of Indian coin, possessed with knowledge that it is counterfeit
Whoever, having any counterfeit coin which is a counterfeit of '[Indian coin], and which, at the time when he became possessed of it, he knew to be a counterfeit of '[Indian coin], fraudulently or with intent that fraudulently or with intent that fraud may be committed, delivers the same to any person, or attempts to induce any person to receive it shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Subs. by the A.O. 1950, for "Queen's coin".

Section 241. Delivery of coin as genuine, which, when first possessed, the deliverer did not know to be counterfeit

Whoever delivers to any other person as genuine, or attempts to induce any other person to receive as genuine, any counterfeit coin which he knows to be counterfeit, but which he did not know to be counterfeit at the time when he took it into his possession, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine to an amount which may extend to ten times the value of the coin counterfeited, or with both.

Illustration

A, a coiner, delivers counterfeit Company's rupees to his accomplice B, for the purpose of uttering them. B sells the rupees to C, another utterer, who buys them knowing them to be counterfeit. C pays away the rupees for good to D, who receives them, not knowing them to be counterfeit. D, after receiving the rupees, discovers that they are counterfeit and pays them away as if they were good. Here D is punishable only under his section, but B and C are punishable under section 239 or 240, as the case may be.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or 10 times the value of the coin counterfeited, or both—Cognizable—Non-bailable—Triable by any Magistrate—Non-compoundable.

Section 242. Possession of counterfeit coin by person who knew it to be counterfeit when he became possessed thereof

Whoever, fraudulently or with intent that fraud may be committed, is in possession of counterfeit coin, having known at the time when he became possessed thereof that such coin was counterfeit, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 243. Possession of Indian coin by person who knew it to be counterfeit when he became possessed thereof

Whoever, fraudulently or with intent that fraud may be committed, is in possession of counterfeit coin, which is a counterfeit of ˈ[Indian coin], having known at the time when he became possessed of it that it was counterfeit, shall

be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Subs. by the A.O. 1950, for “Queen’s coin”.

Section 244. Person employed in mint causing coin to be of different weight or composition from that fixed by law

Whoever, being employed in any mint lawfully established in '[India], does any act, or omits what he is legally bound to do, with the intention of causing any coin issued from that mint to be of a different weight or composition from the weight or composition fixed by law, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

1. The words “British India” have successively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch., to read as above.

Section 245. Unlawfully taking coining instrument from mint

Whoever, without lawful authority, takes out of any mint, lawfully established in '[India], any coining tool or instrument, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

1. The words “British India” have successively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch., to read as above.

Section 246. Fraudulently or dishonestly diminishing weight or altering composition of coin

Whoever fraudulently or dishonestly performs on any coin any operation which diminishes the weight or alters the composition of that coin, shall be

punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

Explanation

A person who scoops out part of the coin and puts anything else into the cavity alters the composition of that coin.

Section 247. Fraudulently or dishonestly diminishing weight or altering composition of Indian coin

Whoever fraudulently or dishonestly performs on [1][any Indian coin] any operation which diminishes the weight or alters the composition of that coin, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Subs. by the A.O. 1950, for "any of the Queen's coin".

Section 248. Altering appearance of coin with intent that it shall pass as coin of different description

Whoever performs on any coin any operation which alters the appearance of that coin, with the intention that the said coin shall pass as a coin of a different description, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 249. Altering appearance of Indian coin with intent that it shall pass as coin of different description

whoever performs on [1][any Indian coin] any operation which alters the appearance of that coin, with the intention that the said coin shall pass as a coin of a different description, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

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1. Subs. by the A.O. 1950, for “any of the Queen’s coin”.

Section 250. Delivery of coin, possessed with knowledge that it is altered

Whoever, having coin in his possession with respect to which the offence defined in section 246 or 248 has been committed, and having known at the time when he became possessed of such coin that such offence had been committed with respect to it, fraudulently or with intent that fraud may be committed, delivers such coin to any other person, or attempts to induce any other person to receive the same, shall be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 5 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 251. Delivery of Indian coin, possessed with knowledge that it is altered

Whoever, having coin in his possession with respect to which the offence defined in section 247 or 249 has been committed, and having known at the time when he became possessed of such coin that such offence had been committed, delivers such coin to any other person, or attempts to induce any other person to receive the same, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

Section 252. Possession of coin by person who knew it to be altered when he became possessed thereof

Whoever, fraudulently or with intent that fraud may be committed, is in possession of coin with respect to which the offence defined in either of the section 246 or 248 has been committed, having known at the time of becoming possessed thereof that such offence had been committed with respect to such coin, shall be punished with imprisonment of either

description for a term which may extend to three years and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 253. Possession of Indian coin by person who knew it to be altered when he became possessed thereof

Whoever, fraudulently or with intent that fraud may be committed, is in possession of coin with respect to which the offence defined in either of the section 247 or 249 has been committed, having known at the time of becoming possessed thereof, that such offence had been committed with respect to such coin, shall be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 5 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 254. Delivery of coin as genuine, which, when first possessed, the deliverer did not know to be altered

Whoever delivers to any other person as genuine or as a coin of a different description from what it is, or attempts to induce any person to receive as genuine, or as a different coin from what it is, any coin in respect of which he knows that any such operation as that mentioned in section 246, 247, 248 or 249 has been performed, but in respect of which he did not, at the time when he took it into his possession, know that such operation had been performed, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine to an amount which may extend to ten times the value of the coin for which the altered coin is passed, or attempted to be passed.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or 10 times the value of the coin—Cognizable—Non-bailable—Triable by any Magistrate—Non-compoundable.

Section 255. Counterfeiting Government stamp

Whoever counterfeits, or knowingly performs any part of the process of counterfeiting, any stamp issued by Government for the purpose of revenue, shall be punished with '[imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.
Explanation

A person commits this offence who counterfeits by causing a genuine stamp of one denomination to appear like a genuine stamp of a different denomination.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 10 years, and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 256. Having possession of instrument or material for counterfeiting Government stamp

Whoever has in his possession any instrument or material for the purpose of being used, or knowing or having reason to believe that it is intended to be used, for the purpose of counterfeiting any stamp issued by Government for the purpose of revenue, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 257. Making or selling instrument for counterfeiting Government stamp

Whoever makes or performs any part of the process of making, or buys, or sells, or dispose of, any instrument for the purpose of being used, or knowing or having reason to believe that it is intended to be used, for the purpose of counterfeiting any stamp issued by Government for the purpose of revenue, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.Section 258. Sale of counterfeit Government stamp

Whoever, sells, or offers for sale, any stamp which he knows or has reason to believe to be a counterfeit of any stamp issued by the Government for the purpose of revenue, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 259. Having possession of counterfeit Government stamp

Whoever has in his possession any stamp which he knows to be a counterfeit of any stamp issued by Government for the purpose of revenue, intending to use, or dispose of the same as a genuine stamp, or in order that it may be used as a genuine stamp, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 260. Using as genuine a Government stamp known to be a counterfeit

Whoever uses a s genuine any stamp, knowing it to be counterfeit of any stamp issued by Government for the purpose of revenue, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 261. Effacing, writing from substance bearing Government stamp, or removing from document a stamp used for it, with intent to cause loss to Government

Whoever, fraudulently or with intent to cause loss to the Government, removes or effaces from any substance, bearing any stamp issued by Government for the purpose of revenue, any writing or document for which such stamp has been used, or removes from any writing or document a stamp which has been used for such writing or document, in order that such stamp

may be used for a different writing or document, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 3 years, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 262. Using Government stamp known to have been before used
Whoever, fraudulently or with intent to cause loss to the Government, uses for any purpose a stamp issued by Government for the purpose of revenue, which he knows to have been before used, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 263. Erasure of mark denoting that stamp has been used
Whoever, fraudulently or with intent to cause loss to Government, erase or removes from a stamp issued by the Government for the purpose of revenue, any mark, put or impressed upon such stamp for the purpose of denoting that the same has been used, or knowingly has in his possession or sells or disposes of any such stamp from which such mark has been erased or removed, or sell or disposes of any such stamp which he knows to have been used, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 3 years, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 263A. Prohibition of fictitious stamps
'[263A. Prohibition of fictitious stamps.—(1) Whoever
(a) makes, knowingly utters, deals in or sells any fictitious stamps, or knowingly uses for any postal purpose any fictitious stamp, or
(b) has in his possession, without lawful excuse, any fictitious stamp, or

(c) makes or, without lawful excuse, has in his possession any die, plate, instrument or materials for making any fictitious stamp,

shall be punished with fine which may extend to two hundred rupees.

(2) Any such stamps, die, plate, instrument or materials in the possession of any person for making any fictitious stamp 2[may be seized and, if seized] shall be forfeited.

(3) In this section "fictitious stamp" means any stamp falsely purporting to be issued by the Government for the purpose of denoting a rate of postage, or any facsimile or imitation or representation, whether on paper or otherwise, of any stamp issued by Government for that purpose.

(4) In this section and also in sections 255 to 263, both inclusive, the word "Government", when used in connection with, or in reference to, any stamp issued for the purpose of denoting a rate of postage, shall, notwithstanding anything in section 17, be deemed to include the person or persons authorized by law to administer executive Government in any part of India, and also in any part of Her Majesty's dominions or in any foreign country.]

CLASSIFICATION OF OFFENCE

Punishment—Fine of 200 rupees—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

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1. Ins. by Act 3 of 1895, sec. 2.

2. Subs. by Act 42 of 1953, sec. 4 and Sch. III, for "may be seized and" (w.e.f. 23-12-1953).

Section 264. Fraudulent use of false instrument for weighing

Whoever fraudulently uses any instrument for weighing which he knows to be false, shall be punished with imprisonment or either description for a term which may extend to one year, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 1 year, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 265. Fraudulent use of false weight or measure

Whoever fraudulently uses any false weight or false measure of length or capacity, or fraudulently uses any weight or any measure of length or capacity as different weight or measure form what it is, shall be punished with

imprisonment of either description for a term which may extend to one year, or with fine, or with both.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 1 year, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 266. Being in possession of false weight or measure
Whoever is in possession of any instrument for weighing, or of any weight, or of any measure of length or capacity, which he knows to be false, [1][* * *] intending that the same may be fraudulently used, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.
CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 1 year, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

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1. The word “and” omitted by Act 42 of 1953, sec. 4 and Sch. III (w.e.f. 23-12-1953).

Section 267. Making or selling false weight or measure
Whoever makes, sells or disposes of any instrument for weighing, or any weight, or any measure of length or capacity which he knows to be false, in order that the same may be used as true, or knowing that the same is likely to be used as true, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 1 year, or fine, or both—Cognizable—Non-bailable—Triable by any Magistrate—Non-compoundable.

Section 268. Public nuisance
A person is guilty of a public nuisance who does not act or is guilty of an illegal omission which causes any common injury, danger or annoyance to the public or to the people in general who dwell or occupy property in the vicinity, or which must necessarily cause injury, obstruction, danger or annoyance to persons who may have occasion to use any public right.

A common nuisance is not excused on the ground that it causes some convenience or advantage.

Section 269. Negligent act likely to spread infection of disease dangerous to life
Whoever unlawfully or negligently does any act which is, and which he knows or has reason to believe to be, likely to spread the infection of any disease dangerous to life, shall be punished with imprisonment of either description for a term which may extend to six month, or with fine, or with both.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 6 months, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 270. Malignant act likely to spread infection of disease dangerous to life
Whoever malignantly does any act which is, and which he knows or has reason to believe to be, likely to spread the infection of any disease dangerous to life, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 271. Disobedience to quarantine rule
Whoever knowingly disobeys any rule made and promulgated [1][by the [2][* * *] Government [1][* * *] for putting any vessel into a state of quarantine, or for regulating the intercourse of vessels in a state of quarantine with the shore or with other vessels, or for regulating the intercourse between places where an infectious disease prevails and other places, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 6 months, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

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1. Subs. by the A.O. 1937, for “by the Government of India or by any Government”.

2. The words “Central or any Provincial” omitted by the A.O. 1950.

3. The words “or the Crown Representative” omitted by the A.O. 1948.

272. Adulteration of food or drink intended for sale

Whoever adulterates any article of food or drink, so as to make such article noxious as food or drink, intending to sell such article as food or drink, or knowing it to be likely that the same will be sold as food or drink, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months, or fine of 1,000 rupees, or both—Non-Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

STATE AMENDMENTS

Orissa

In section 272 for the words “shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both”, the following shall be substituted, namely:

“shall be punished with imprisonment for life and shall also be liable to fine:

Provided that the Court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment which is less than imprisonment for life.”

[Vide Orissa Act 3 of 1999, sec. 2 (w.e.f. 27-1-1999)].

Uttar Pradesh

In section 272 for the words “shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both” the following shall be substituted, namely:

“shall be punished with imprisonment for life and shall also be liable to fine:

Provided that the court may, for adequate reasons to be mentioned in the judgment, impose a sentence of imprisonment which is less than imprisonment for life.”

[Vide Uttar Pradesh Act 47 of 1975, sec. 3 (w.e.f. 15-9-1975)].

West Bengal

In section 272 for the words “of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees,

or with both" the following shall be substituted, namely:
"for life with or without fine:

Provided that the Court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment which is

less than imprisonment for life."

[Vide West Bengal Act 42 of 1973, sec. 3 (w.e.f. 29-4-1973)].

Section 273. Sale of noxious food or drink

Whoever sells, or offers or exposes for sale, as food or drink, any article which has been rendered or has become noxious, or is in a state unfit for food or drink, knowing or having reason to believe that the same is noxious as food or drink, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months, or fine of 1,000 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

State Amendments

In section 273, State Amendments are the same as under section 272.

Section 274. Adulteration of drugs

Whoever adulterates any drug or medical preparation in such a manner as to lessen the efficacy or change the operation of such drug or medical preparation, or to make it noxious, intending that it shall be sold or used for, or knowing it to be likely that it will be sold or used for, any medicinal purpose, as if it had not undergone such adulteration, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months, or fine of 1,000 rupees, or both—Non-cognizable—Non-Bailable—Triable by any Magistrate—Non-compoundable.

State Amendments

In section 274, State Amendments are the same as under section 272.

Section 275. Sale of adulterated drugs

Whoever, knowing any drug or medical preparation to have been adulterated in such a manner as to lessen its efficacy, to change its operation, or to render it noxious, sells the same, or offers or exposes it for sale, or issues it from any dispensary for medicinal purposes as unadulterated, or causes it to be used for medicinal purposes by any person not knowing of the adulteration, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months, or fine of 1,000 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

State Amendments

In section 275, State Amendments are the same as under section 272.

Section 276. Sale of drug as a different drug or preparation

Whoever knowingly sells, or offers or exposes for sale, or issues from a dispensary for medicinal purposes, any drug or medical preparation, as a different drug or medical preparation, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months, or fine of 1,000 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

State Amendments

In section 276, State Amendments are the same as under section 272.

Section 277. Fouling water of public spring or reservoir

Whoever voluntarily corrupts or fouls the water of any public spring or reservoir, so as to render it less fit for the purpose for which it is ordinarily used, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to five hundred rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 months, or fine of 500 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 278. Making atmosphere noxious to health
Whoever voluntarily vitiates the atmosphere in any place so as to make it noxious to the health of persons in general dwelling or carrying on business in the neighborhood or passing along a public way, shall be punished with fine which may extend to five hundred rupees.

CLASSIFICATION OF OFFENCE
Punishment—Fine of 500 rupees—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 279. Rash driving or riding on a public way
Whoever drives any vehicle, or rides, on any public way in a manner so rash or negligent as to endanger human life, or to be likely to cause hurt or injury to any other person, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 6 months, or fine of 1,000 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 279. Rash driving or riding on a public way
Whoever drives any vehicle, or rides, on any public way in a manner so rash or negligent as to endanger human life, or to be likely to cause hurt or injury to any other person, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 6 months, or fine of 1,000 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 280. Rash navigation of vessel
Whoever navigates any vessel in a manner so rash or negligent as to endanger human life, or to be likely to cause hurt or injury to any other person, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months, or fine of 1,000 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 281. Exhibition of false light, mark or buoy

Whoever exhibits any false light, mark or buoy, intending or knowing it to be likely that such exhibition will mislead any navigator, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 282. Conveying person by water for hire in unsafe or overloaded vessel

Whoever knowingly or negligently conveys, or causes to be conveyed for hire, any person by water in any vessel, when that vessel is in such a state or so loaded as to endanger the life of that person , shall be punished with imprisonment or either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months, or fine of 1,000 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 283. Danger or obstruction in public way or line of navigation

Whoever, by doing any act, or by omitting to take order with any property in his possession or under his charge, causes danger, obstruction or injury to any person in any public way or public line of navigation, shall be punished with fine which may extend to two hundred rupees.

CLASSIFICATION OF OFFENCE

Punishment—Fine of 200 rupees—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 284. Negligent conduct with respect to poisonous substance

Whoever does, with any poisonous substance, any act in a manner so rash or negligent as to endanger human life, or to be likely to cause hurt or injury to any person,

or knowingly or negligently omits to take such order with any poisonous substance in his possession as is sufficient to guard against any probable danger to human life from such poisonous substance,

shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months, or fine of 1,000 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 285. Negligent conduct with respect to fire or combustible matter

Whoever does, with fire or any combustible matter, any act so rashly or negligently as to endanger human life, or to be likely to cause hurt or injury to any other person,

or knowingly or negligently omits to take such order with any fire or any combustible matter in his possession as is sufficient to guard against any probable danger to human life from such fire or combustible matter,

shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months, or fine of 1,000 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 286. Negligent conduct with respect to explosive substance

Whoever does, with any explosive substance, any act so rashly or negligently as to endanger human life, or to be likely to cause hurt or injury to any other person,

or knowingly or negligently omits to take such order with any explosive substance in his possession as is sufficient to guard against any probable danger to human life from that substance,

shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months, or fine of 1,000 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 287. Negligent conduct with respect to machinery

Whoever does, with any machinery, any act so rashly or negligently as to endanger human life or to be likely to cause hurt or injury to any other person,

or knowingly or negligently omits to take such order with any machinery in his possession or under his care as is sufficient to guard against any probable danger to human life from such machinery,

shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months, or fine of 1,000 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 288. Negligent conduct with respect to pulling down or repairing buildings

Whoever, in pulling down or repairing any building, knowingly or negligently omits to take such order with that building as is sufficient to guard against any probable danger to human life from the fall of that building, or of any part thereof, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months, or fine of 1,000 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable

Section 289. Negligent conduct with respect to animal

Whoever knowingly or negligently omits to take such order with any animal in his possession as is sufficient to guard against any probable danger to human life, or any probable danger of grievous hurt from such animal, shall be punished with imprisonment of either description for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months, or fine of 1,000 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 290. Punishment for public nuisance in cases not otherwise provided for

Whoever commits a public nuisance in any case not otherwise punishable by this Code, shall be punished with fine which may extend to two hundred rupees.

CLASSIFICATION OF OFFENCE

Punishment—Fine of 200 rupees—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 291. Continuance of nuisance after injunction to discontinue

Whoever repeats or continues a public nuisance, having been enjoined by any public servant who has lawful authority to issue such injunction not to repeat or continue such nuisance, shall be punished with simple imprisonment for a term which may extend to six months, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Simple imprisonment for 6 months, or fine, or both—Cognizable-Bailable—Triable by any Magistrate—Non-compoundable.

Section 292. Sale, etc., or obscene books, etc

[1][292. Sale, etc., of obscene books, etc.— [2][(1) For the purposes of sub-section (2), a book, pamphlet, paper, writing, drawing, painting, representation, figure or any other object, shall be deemed to be obscene if it is lascivious or appeals to the prurient interest or if its effect, or (where it comprises two or more distinct items) the effect of any one of its items, is, if taken as a whole, such as to tend to deprave and corrupt person, who are likely, having regard to all relevant circumstances, to read, see or hear the matter contained or embodied in it.]

[3][(2)] Whoever

(a) sells, lets to hire, distributes, publicly exhibits or in any manner puts into circulation, or for purposes of sale, hire, distribution, public exhibition or circulation, makes, produces or has in his possession any obscene book, pamphlet, paper, drawing, painting, representation or figure or any other obscene object whatsoever, or

(b) imports, exports or conveys any obscene object for any of the purposes aforesaid, or knowing or having reason to believe that such object will be sold, let to hire, distributed or publicly exhibited or in any manner put into circulation, or

(c) takes part in or receives profits from any business in the course of which he knows or has reason to believe that any such obscene objects are for any of the purposes aforesaid, made, produced, purchased, kept, imported, exported, conveyed, publicly exhibited or in any manner put into circulation, or

(d) advertises or makes known by any means whatsoever that any person is engaged or is ready to engage in any act which is an offence under this section, or that any such obscene object can be procured from or through any person, or

(e) offers or attempts to do any act which is an offence under this section,

shall be punished [1][on first conviction with imprisonment of either description for a term which may extend to two years, and with fine which may extend to two thousand rupees, and, in the event of a second or subsequent conviction, with imprisonment of either description for a term which may extend to five years, and also with fine which may extend to five thousand rupees].
[3][Exception.—This section does not extend to
(a) any book, pamphlet, paper, writing, drawing, painting, representation or figure
(i) the publication of which is proved to be justified as being for the public good on the ground that such book, pamphlet, paper, writing, drawing, painting, representation or figure is in the interest of science, literature, art or learning or other objects of general concern, or
(ii) which is kept or used bona fide for religious purposes;

(b) any representation sculptured, engraved, painted or otherwise represented on or in
(i) any ancient monument within the meaning of the Ancient Monuments and Archaeological Sites and Remains Act, 1958 (24 of 1958), or

(ii) any temple, or on any car used for the conveyance of idols, or kept or used for any religious purpose.]]

CLASSIFICATION OF OFFENCE

Punishment—On first conviction, with imprisonment for 2 years, and with fine of 2,000 rupees, and, in the event of second of subsequent conviction, with imprisonment for five years and with fine of 5,000 rupees—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

STATE AMENDMENTS

Orissa

Same as in Tamil Nadu.

[Vide Orissa Act 13 of 1962, sec. 2 (w.e.f. 16-5-1962)].

Tamil Nadu

In section 292, for the words "shall be punished with imprisonment of either description for a term which may extend to three months or with fine or with both" substitute the following, namely:

"shall be punished with imprisonment of either description for a term which may extend to two years or with fine or with both:

Provided that for a second or any subsequent offence under this section, he shall be punished with imprisonment of either description for a term which shall not be less than six months and not more than two years and with fine.

[Vide Tamil Nadu Act 25 of 1960, sec. 2 (w.e.f. 9-11-1960)].

Orissa

Section 292A

Same as in Tamil Nadu.

[Vide Orissa Act 13 of 1962, sec. 3 (w.e.f. 16-5-1962)].

Tamil Nadu

After section 292, insert the following new section namely:

292A. Printing, etc., of grossly indecent or scurrilous matter or matter intended for blackmail.—Whoever,

(a) prints or causes to be printed in any newspaper, periodical or circular, or exhibits or causes to be exhibited, to public view or distributes or causes to be distributed or in any manner puts into circulation any picture or any printed or written document which is grossly indecent, or in scurrilous or intended for blackmail; or

(b) sells or lets for hire, or for purposes of sale or hire makes, produces or has in his possession, any picture or any printed or written document which is grossly indecent or is scurrilous or intended for blackmail; or

(c) conveys any picture or any printed or written document which is grossly indecent or is scurrilous or intended for blackmail knowing or having reason to believe that such picture or document will be printed, sold, let for hire distributed or publicly exhibited or in any manner put into circulation; or

(d) takes part in, or receives profits from, any business in the course of which he knows or has reason to believe that any such newspaper, periodical, circular, picture or other printed or written document is printed, exhibited,

distributed, circulated, sold, let for hire, made, produced, kept, conveyed or purchased; or

(e) advertises or makes known by any means whatsoever that any person is engaged or is ready to engage in any Act which is an offence under this section, or that any such newspaper, periodical, circular, picture or other printed or written document which is grossly indecent or is scurrilous or intended for blackmail, can be procured from or through any person; or

(f) offers or attempts to do any act which is an offence under this section *[shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both]:
Provided that for a second or any subsequent offence under this section, he shall be punished with imprisonment of either description for a term which shall not be less than six months **[and not more than two years].
Explanation I

For the purposes of this section, the word scurrilous shall be deemed to include any matter which is likely to be injurious to morality or is calculated to injure any person:

Provided that it is not scurrilous to express in good faith anything whatever respecting the conduct of
(i) a public servant in the discharge of his public functions or respecting his character so far as his character appears in that conduct and no further; or

(ii) any person touching any public question, and respecting his character, so far as his character appears in that conduct and no further.

Explanation II

In deciding whether any person has committed an offence under this section, the court shall have regard inter alia, to the following considerations
(a) The general character of the person charged, and where relevant the nature of his business;

(b) the general character and dominant effect of the matter alleged to be grossly indecent or scurrilous or intended for blackmail;

(c) any evidence offered or called by or on behalf of the accused person as to his intention in committing any of the acts specified in this section.

[Vide Tamil Nadu Act 25 of 1960, sec. 3 (w.e.f. 9-11-1960)].

* Subs. by Tamil Nadu Act 30 of 1984.

** Ins. by Tamil Nadu Act 30 of 1984, sec. 2 (w.e.f. 28-6-1984).

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1. Subs. by Act 8 of 1925, sec. 2, for the original section.

2. Ins. by Act 36 of 1969, sec. 2 (w.e.f. 7-9-1969).

3. Section 292 renumbered as sub-section (2) thereof by Act 36 of 1969, sec. 2 (w.e.f. 7-9-1969).

4. Subs. by Act 36 of 1969, sec. 2, for certain words (w.e.f. 7-9-1969).

5. Subs. by Act 36 of 1969, sec. 2, for Exception (w.e.f. 7-9-1969).

Section 293. Sale, etc., of obscene objects to young person

[1][293. Sale, etc., of obscene objects to young person.—Whoever sells, lets to hire, distributes, exhibits or circulates to any person under the age of twenty years any such obscene object as is referred to in the last preceding section, or offers or attempts so to do, shall be punished [2][on first conviction with imprisonment of either description for a term which may extend to three years, and with fine which may extend to two thousand rupees, and, in the event of a second or subsequent conviction, with imprisonment of either description for a term which may extend to seven years, and also with fine which may extend to five thousand rupees].]

CLASSIFICATION OF OFFENCE

Punishment—On first conviction, with imprisonment for 3 years, and with fine of 2,000 rupees, and, in the event of second of subsequent conviction, with imprisonment for 7 years, and with fine of 5,000 rupees—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

STATE AMENDMENTS

Orissa

Same as in Tamil Nadu.

[Vide Orissa Act 13 of 1962, sec. 4 (w.e.f. 16-5-1962)].

Tamil Nadu

In Section 293,

(a) for the words “any such obscene object as is referred to in the last preceding section” the words, figures and letter “any such obscene object as is referred to in section 292 or any such newspaper, periodical, circular, picture

or other printed or written document as is referred to in section 292-A" shall be substituted;

(b) for the words "which may extend to six months" the words "which may extend to three years" shall be substituted;

(c) in the marginal note, after the words "obscene objects" the words "any grossly indecent or scurrilous matter intended for blackmail shall be inserted."

[Vide Tamil Nadu Act 25 of 1960, sec. 4 (w.e.f. 9-11-1960)].

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1. Subs. by Act 8 of 1925, sec. 2, for the original section.

2. Subs. by Act 36 of 1969, sec. 2, for certain words (w.e.f. 7-9-1969).

Section 294. Obscene acts and songs

[1][294. Obscene acts and songs.—Whoever, to the annoyance of others
(a) does any obscene act in any public place, or
(b) sings, recites or utters any obscene song, ballad or words, in or near any public place,

shall be punished with imprisonment of either description for a term which may extend to three months, or with fine, or with both.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 months, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

1. Subs. by Act 3 of 1895, sec. 3, for the original section.

Section 294A. Keeping lottery office

[1][294A. Keeping lottery office.—Whoever keeps any office or place for the purpose of drawing any lottery [2][not being [3][a State lottery] or a lottery authorised by the [1][State] Government], shall be punished with imprisonment of either description for a term which may extend to six months, or with fine, or with both.
And whoever publishes any proposal to pay any sum, or to deliver any goods, or to do or forbear doing anything for the benefit of any person, on any event or contingency relative or applicable to the drawing of any ticket, lot, number or figure in any such lottery, shall be punished with fine which may extend to one thousand rupees.]

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 6 months, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Para II

Punishment—Fine of 1,000 rupees—Non-Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

STATE AMENDMENTS

Andhra Pradesh

Section 294A is repealed.

[Vide Andhra Pradesh Act 16 of 1968, sec. 27 (w.e.f. 1-2-1969)].

Gujarat

Section 294A is repealed.

[Vide Bombay Act 82 of 1958, sec. 33 read with Bombay Act 11 of 1960, sec. 87].

Karnataka

In Karnataka area except Ballary District, section 294A is repealed.

[Vide Mysore Act 27 of 1957, sec. 33].

Maharashtra

Section 294A is repealed.

[Vide Bombay Act 82 of 1958, sec. 33 (w.e.f. 1-5-1959)]

Manipur

Section 294A is repealed.

[Vide Manipur Act 2 of 1992, sec. 30 (w.e.f. 6-8-1992)].

Uttar Pradesh

Section 294A Omitted.

[Vide Uttar Pradesh Act 24 of 1995, sec. 11].

1. Ins. by Act 27 of 1870, sec. 10.

2. Subs. by the A.O. 1937, for “not authorised by Government”.

3. Subs. by Act 3 of 1951, sec. 3 and Sch., for “a lottery organised by the Central Government or the Government of a Part A State or a Part B State”.

4. Subs. by the A.O. 1950, for “Provincial”.

Section 295. Injuring or defiling place of worship with intent to insult the religion of any class

Whoever destroys, damages or defiles any place of worship, or any object held sacred by any class of persons with the intention of thereby insulting the religion of any class of persons or with the knowledge that any class of persons is likely to consider such destruction, damage or defilement as a insult to their religion, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Non-bailable—Triable by any Magistrate—Non-compoundable.

Section 295A. Deliberate and malicious acts, intended to outrage religious feelings or any class by insulting its religion or religious beliefs

[1][295A. Deliberate and malicious acts, intended to outrage religious feelings or any class by insulting its religion or religious beliefs.— Whoever, with deliberate and malicious intention of outraging the religious feelings of any class of [2][citizens of India], [3][by words, either spoken or written, or by signs or by visible representations or otherwise], insults or attempts to insult the religion or the religious beliefs of that class, shall be punished with imprisonment of either description for a term which may extend to [4][three years], or with fine, or with both.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years, or fine, or both—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Ins. by Act 25 of 1927, sec. 2.

2. Subs. by the A.O. 1950, for “His Majesty’s subjects”.

3. Subs. by Act 41 of 1961, sec. 3, for certain words (w.e.f. 27-9-1961).

4. Subs. by Act 41 of 1961, sec. 3, for “two years” (w.e.f. 27-9-1961).

Section 296. Disturbing religious assembly

Whoever voluntarily causes disturbance to any assembly lawfully engaged in the performance of religious worship, or religious ceremonies, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 1 year, or fine, or both—Cognizable—Bailable —Triable by any Magistrate—Non-compoundable.

Section 297. Trespassing on burial places, etc.

Whoever, with the intention of wounding the feelings of any person, or of insulting the religion of any person, or with the knowledge that the feelings of any person are likely to be wounded, or that the religion or any person is likely to be insulted thereby,

commits any trespass in any place of worship or on any place of sepulture, or any place set apart from the performance of funeral rites or as a depository for the remains of the dead, or offers any indignity to any human corpse, or causes disturbance to any persons assembled for the performance of funeral ceremonies,

shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 1 year, or fine, or both—Cognizable—Bailable —Triable by any Magistrate—Non-compoundable.

Section 298. Uttering, words, etc., with deliberate intent to wound the religious feelings of any person

Whoever, with the deliberate intention of wounding the religious feelings of any person, utters any word or makes any sound in the hearing of that person or makes any gesture in the sight of that person or places any object in the sight of that person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 1 year, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Compounded by the person whose religious feelings are intended to be wounded.

State Amendment

Andhra Pradesh

In Andhra Pradesh offence under section 298 is cognizable.

[Vide A.P.G.O. Ms. No. 732, dated 5th December, 1991].

Section 299. Culpable homicide

Who ever causes death by doing an act with the intention of causing death, or with the intention of causing such bodily injury as is likely to cause death, or with the knowledge that he is likely by such act to cause death, commits the offence of culpable homicide.

Illustrations

(a) A lays sticks and turf over a pit, with the intention of there by causing death, or with the knowledge that death is likely to be thereby caused. Z believing the ground to be firm, treads on it, falls in and is killed. A has committed the offence of culpable homicide.

(b) A knows Z to be behind a bush. B does not know it A, intending to cause, or knowing it to be likely to cause Z's death, induces B fires and kills Z. Here B may be guilty of no offence; but A has committed the offence of culpable homicide.

(c) A, by shooting at a fowl with intent to kill and steal it, kills B who is behind a bush; A not knowing that he was there. Here, although A was doing an unlawful act, he was not guilty of culpable homicide, as he did not intend to kill B, or to cause death by doing an act that he knew was likely to cause death.

Explanation 1

A person who causes bodily injury to another who is labouring under a disorder, disease or bodily infirmity, and thereby accelerates the death of that other, shall be deemed to have caused his death.

Explanation 2

Where death is caused by bodily injury, the person who causes such bodily injury shall be deemed to have caused the death, although by resorting to proper remedies and skilful treatment the death might have been prevented.

Explanation 3

The causing of the death of child in the mother's womb is not homicide. But it may amount to culpable homicide to cause the death of a living child, if any part of that child has been brought forth, though the child may not have breathed or been completely born.

Section 300. Murder

Except in the cases hereinafter excepted, culpable homicide is murder, if the act by which the death is caused is done with the intention of causing death, or
Secondly.—If it is done with the intention of causing such bodily injury as the offender knows to be likely to cause the death of the person to whom the harm is caused, or
Thirdly.—If it is done with the intention of causing bodily injury to any person and the bodily injury intended to be inflicted is sufficient in the ordinary course of nature to cause death, or
Fourthly.—If the person committing the act knows that it is so imminently dangerous that it must, in all probability, cause death or such bodily injury as is likely to cause death, and commits such act without any excuse for incurring the risk of causing death or such injury as aforesaid.

Illustrations
(a) A shoots Z with the intention of killing him. Z dies in consequence. A commits murder.

(b) A, knowing that Z is labouring under such a disease that a blow is likely to cause his death, strikes him with the intention of causing bodily injury. Z dies in consequence of the blow. A is guilty of murder, although the blow might not have been sufficient in the ordinary course of nature to cause the death of a person in a sound state of health. But if A, not knowing that Z is labouring under any disease, gives him such a blow as would not in the ordinary course of nature kill a person in a sound state of health, here A, although he may intend to cause bodily injury, is not guilty of murder, if he did not intend to cause death, or such bodily injury as in the ordinary course of nature would cause death.

(c) A intentionally gives Z a sword-cut or club-wound sufficient to cause the death of a man in the ordinary course of nature. Z dies in consequence. Here, A is guilty of murder, although he may not have intended to cause Z's death.

(d) A without any excuse fires a loaded cannon into a crowd of persons and kills one of them. A is guilty of murder, although he may not have had a premeditated design to kill any particular individual.

Exception 1.—**When culpable homicide is not murder.**—Culpable homicide is not murder if the offender, whilst deprived of the power of self-control by grave and sudden provocation, causes the death of the person who gave the provocation or causes the death of any other person by mistake or accident.

The above exception is subject to the following provisos:
First.—That the provocation is not sought or voluntarily provoked by the offender as an excuse for killing or doing harm to any person.

Secondly.—That the provocation is not given by anything done in obedience to the law, or by a public servant in the lawful exercise of the powers of such public servant.

Thirdly.—That the provocation is not given by anything done in the lawful exercise of the right of private defence.

Explanation

Whether the provocation was grave and sudden enough to prevent the offence from amounting to murder is a question of fact.

Illustrations
(a) A, under the influence of passion excited by a provocation given by Z, intentionally kills. Y, Z's child. This is murder, in as much as the provocation was not given by the child, and the death of the child was not caused by accident or misfortune in doing an act caused by the provocation.

(b) Y gives grave and sudden provocation to A. A, on this provocation, fires a pistol at Y, neither intending nor knowing himself to be likely to kill Z, who is near him, but out of sight. A kills Z. Here A has not committed murder, but merely culpable homicide.

(c) A is lawfully arrested by Z, a bailiff. A is excited to sudden and violent passion by the arrest, and kills Z. This is murder, in as much as the provocation was given by a thing done by a public servant in the exercise of his powers.

(d) A appears as witness before Z, a Magistrate, Z says that he does not believe a word of A's deposition, and that A has perjured himself. A is moved to sudden passion by these words, and kills Z. This is murder.

(e) A attempts to pull Z's nose, Z, in the exercise of the right of private defence, lays hold of A to prevent him from doing so. A is moved to sudden and violent passion in consequence, and kills Z. This is murder, in as much as the provocation was given by a thing done in the exercise of the right of private defence.

(f) Z strikes B. B is by this provocation excited to violent rage. A, a bystander, intending to take advantage of B's rage, and to cause him to kill Z, puts a knife into B's hand for that purpose. B kills Z with the knife. Here B may have committed only culpable homicide, but A is guilty of murder.

Exception 2.—Culpable homicide is not murder if the offender, in the exercise in good faith of the right of private defence of person or property, exceeds the power given to him by law and causes the death of the person against whom he is exercising such right of defence without premeditation, and without any intention of doing more harm than is necessary for the purpose of such defence.

Illustration
Z attempts to horsewhip A, not in such a manner as to cause grievous hurt to A. A draws out a pistol. Z persists in the assault. A believing in good faith that he can by no other means prevent himself from being horsewhipped, shoots Z dead. A has not committed murder, but only culpable homicide.

Exception 3.—Culpable homicide is not murder if the offender, being a public servant or aiding a public servant acting for the advancement of public justice, exceeds the powers given to him by law, and causes death by doing an act which he, in good faith, believes to be lawful and necessary for the due discharge of his duty as such public servant and without ill-will towards the person whose death is caused.

Exception 4.—Culpable homicide is not murder if it is committed without premeditation in a sudden fight in the heat of passion upon a sudden quarrel and without the offender having taken undue advantage or acted in a cruel or unusual manner.

Explanation

It is immaterial in such cases which party offers the provocation or commits the first assault.

Exception 5.—Culpable homicide is not murder when the person whose death is caused, being above the age of eighteen years, suffers death or takes the risk of death with his own consent.

Illustration
A, by instigation, voluntarily causes, Z, a person under eighteen years of age to commit suicide. Here, on account of Z's youth, he was incapable of giving consent to his own death; A has therefore abetted murder.

'And commits such act without any excuse for incurring the risk of causing death'

Merely causing death, by doing an act with the knowledge that is so imminently dangerous that it must, in all probability cause death, is not murder. In order that an act, done with such knowledge, should constitute murder, it is necessary that it should be committed without any excuse for incurring the risk of causing the death or bodily injury. An act, done with the knowledge of its consequences, is not prima facie murder, it becomes murder only if it can be positively affirmed that there was no excuse. The requirements of the section are not satisfied by the act of homicide being one of extreme recklessness. It must, in addition, be wholly in inexcusable. When a risk in incurred even a risk of the gravest possible character which must normally result in death, the taking of that risk is not murder unless it was inexcuatble to take it; Emperor v. Dhirajia, AIR 1940 All 486; Gyarsibai w/o Jagannath v. State, AIR 1953 MB 61.

Clause 'thirdly' of section 300 distinguished from the second clause of section 299

The difference between the second clause of section 299 and clause 'thirdly' of section 300 to one of degree of probability of death resulting from the intended bodily injury. To put it more broadly, it is the degree of probability of death which determines whether a culpable homicide is of the gravest, medium, or lowest degree. The word likely in second clause of section 299 conveys the sense of probable as distinguished from a mere possibility. The words 'bodily injury ..... sufficient in the ordinary course of nature to cause death', in clause thirdly of section 300, mean that death will be the most probable result of the injury having regard to the ordinary course of nature; State of Andhra Pradesh v. Rayavarpu Punayya, AIR 1977 SC 45.

Consent

Circumstantial evidence is not sufficient to convict accused when possibility of deceased receiving fatal injury by fall cannot be ruled out; State of Rajasthan v. Kamla, (1991) Cr LJ 602 (SC).

Essential of murder

(i) Having regard to the number of injuries inflicted on the deceased it was not possible to uphold the contention that there was no intention to kill; Prabhu v. State of Madhya Pradesh, (1991) Cr LJ 1373 (1373-1374) (SC).

(ii) When there was no evidence as to how death came about, evidence relating to charge of murder was held to be insufficient and unacceptable; Kedar Nath v. State of Madhya Pradesh, (1991) Cr LJ 989 (SC).

Exception 4: Heat of passion
Mere sudden quarrel would not entitle the accused to seek for Exception 4 to section 300; Samuthram alias Samudra Rajan v. State of Tamil Nadu, (1997) 2 Crimes 185 (Mad).

Exception 4: Scope and applicability of
To invoke Exception 4 to section 300, four requirements must be satisfied, namely (i) it was a sudden fight; (ii) there was no premeditation; (iii) the act was done in a heat of passion; and (iv) the assailant had not taken any undue advantage or acted in a cruel manner... The number of wounds caused during the occurrence is not a decisive factor but what is important is that the occurrence must have been sudden and unpremeditated and the offender must have acted in a fit of anger. Of course, the offender must not have taken any undue advantage or acted in a cruel manner. Where, on a sudden quarrel, a person in the heat of the moment picks up a weapon which is handy and causes injuries, one of which proves fatal, he would be entitled to the benefit of this Exception provided he has not acted cruelly; Samuthram alias Samudra Rajan v. State of Tamil Nadu, (1997) 2 Crimes 185 (Mad).

Fight
Where a mutual conflict develops and there is no reliable and acceptable evidence as to how it started and as to who was the aggressor, it will not be correct to assume private defence for both sides. Such a case will be a case of sudden fight and conflict and has to be dealt with under Exception 4 to section 300 of the Code; Januram v. State of Madhya Pradesh, (1997) 2 Crimes 582 (MP).

Injuries on vital and non-vital parts of body of the deceased
Infliction of the injury on the vital part of the body with the agricultural instrument by the enraged accused in a sudden quarrel—Held, accused did not cause the injury intentionally; Patel Rasiklal Becharbhai v. State of Gujarat, AIR 1992 SC 1150.

Injury which is likely to cause death and injury which is sufficient in ordinary course of nature to cause death
(i) Accused inflicted 18 injuries in the arms and legs of the deceased with a gandasa. None of the injuries was on a vital part of the body of the deceased. The obvious motive was revenge because the deceased's son had caused a serious leg injury which resulted in the amputations of the leg of P, the son of appellant. The Court held that one of the injuries inflicted by the appellant was on a vital part of the body of the deceased whom the appellant had no intention to kill, at the same time though he had no intention to kill, the

appellant must have known that he was inflicting such bodily injuries as were likely to cause death as a consequence of which death did happen. The appellants conviction for murder was accordingly altered to one for culpable homicide; Kapur Singh v. State of Pepsu, AIR 1956 SC 654.

(ii) It was held by the Supreme Court that whether the injury intended by the accused and actually inflicted by him is sufficient in the ordinary course of nature to cause death or not, must be determined in each case on the basis of the facts and circumstances. In the instant case, the injury caused was the result of blow with a knife in the stomach which was given with such force that the weapon had penetrated the abdomen and had injured the bowels. According to the doctor the injury was sufficient in the ordinary course of nature to cause death. Therefore, in the absence of any circumstances to show that the injury was caused accidentally or unintentionally, it had to be presumed that the accused had intended to cause the inflicted injury and the condition of cl. (3) of section 300, I.P.C. were satisfied. Conviction under section 302 was upheld; Virsa Singh v. State of Punjab, AIR 1958 SC 465.

(iii) The appellant had given six blows with a lathi stick on the head of the deceased, one of which fractured his skull. The deceased died three weeks after the incident. The injury which broke the skull had caused a depression in the brain and death was due to brain hemorrhage. It was held that the accused was liable under section 304 for culpable homicide. The Court held that even though the blows were inflicted by the appellant on the head of the deceased with force, the lathi not being an iron rod and the deceased being a young man strongly built the appellant could not under the circumstances be held to have been actuated with the intention of causing the death of the deceased nor do one could think despite the medical evidence that the injury was sufficient in the ordinary course of nature to cause death. Seeing that he survived for three weeks and looking on the doctor's admission that an injury of that kind is not incurable; Inder Singh Bagga Singh v. State of Pepsu, AIR 1955 SC 439.

Intention and knowledge

It is fallacious to contend that when death is caused by a single blow, clause thirdly is not attracted and, therefore, it would not amount to murder. The ingredient 'intention' in that clause gives clue in a given case whether offence involved is murder or not; Jai Prakash v. State (Delhi Administration), (1991) 1 Crimes 474 (SC).

Proof of sufficiency of the injury to cause death

(i) Where evidence of both eye witnesses reliable and well corroborated by medical and other evidence on record inspires confidence that accused had

intention to kill deceased then conviction is liable to be sustained; Robba Ramanna Dora v. State of Andhra Pradesh, 2000 Cr LJ 118 (AP).

(ii) Where the ocular evidence is explicit and fully supported by medical evidence and evidence of other witnesses and evidence of witnesses who apprehended the accused after some hours of occurrence with blood stained weapon then absence of proof of motive will not render the entire prosecution case unbelievable, therefore, charge of murder against accused proved beyond all reasonable doubt; Ram Nath Novia v. State of Bihar, 2000 Cr LJ 318 (Pat).

(iii) Where the evidence of eye witnesses regarding assault to deceased by accused persons was truthful, reliable and clearly corroborated by medical evidence and common intention of accused persons to commit murder of deceased also proved therefore conviction under section 300/34 is proper; Ratan Debnath v. State of Tripura, 2000 Cr LJ 237 (Gau).

(iv) Chain of evidence must be complete with fully established circumstances not to leave any reasonable ground for a conclusion consistent with the innocence of accused. It should be of conclusive nature; Arvind v. State (Delhi Admn.), 1999 (4) SCC 4861: 1999 (3) JT 554.

Provocation must be grave

The test of "grave and sudden" provocation is whether a reasonable man, belonging to the same class of society as the accused, placed in the situation in which the accused was placed would be so provoked as to lose his self-control. (2) In India, words and gestures may also, under certain circumstances, cause grave and sudden provocation to an accused so as to bring his act within the First Exception to section 300. (3) The mental background created by the previous act of the victim may be taken into consideration in ascertaining whether the subsequent act caused grave and sudden provocation for committing the offence; Venkatesan v. State of Tamil Nadu, (1997) 3 Crimes 146 (Mad).

Reasonable man's—Test

The accused, a naval officer, was charged with the murder of P, a businessman of Bombay, for having illicit intimacy with his wife. On coming to know from his wife about the illicit relationship with the deceased, he went to the ship, took from the stores a semi-automatic revolver and six cartridges on a false pretext, loaded the same, went to the flat of P entered in his bedroom and shot him dead after a heated exchange of words. The court held that the test to be applied is that of the effect of the provocation on a reasonable man; and in applying that test it is of particular importance to consider whether a sufficient

interval has elapsed since the receiving of the information which caused the provocation to allow a reasonable man to cool down; K.M. Nanavati v. State of Maharasthra, AIR 1962 SC 605.

Scope

It is now well settled principle of law that if two views are possible, one in favour of the accused and the other adversely against it, the view favouring the accused must be accepted; Raghunath v. State of Haryana, AIR 2003 SC 165.

With the knowledge that he is likely, by such act, to cause death

(i) In case of murder in which the conclusion of guilt is drawn by prosecution it must be fully established beyond all reasonable doubt and consistent with the guilt of the accused; S.D. Soni v. State of Gujarat, (1991) Cr LJ 330 (SC).

(ii) Legislature had advisedly used the words: "bodily injury as the offender knows to be likely to cause death". Therefore, from an understanding of the legislative intent of section 300, I.P.C., a culpable homicide becomes murder if the attacker causes an injury which he knows is likely to cause death and, of course, consequent to such injury, the victim should die; State of Rajashtan v. Dhool Singh, AIR 2004 SC 1264.

Section 301. Culpable homicide by causing death of person other than person whose death was intended

If a person, by doing anything which he intends or knows to be likely to cause death, commits culpable homicide by causing the death of any person, whose death he neither intends nor knows himself to be likely to cause, the culpable homicide committed by the offender is of the description of which it would have been if he had caused the death of the person whose death he intended or knew himself to be likely to cause.

Section 302. Punishment for murder

Whoever commits murder shall be punished with death, or [1][imprisonment for life] and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Death, or imprisonment for life, and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 303. Punishment for murder by life-convict

Whoever, being under sentence of '[imprisonment for life], commits murder, shall be punished with death.

CLASSIFICATION OF OFFENCE

Punishment—Death—Cognizable—Non-bailable—Triable by Court of Session —Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 304. Punishment for culpable homicide not amounting to murder

Whoever commits culpable homicide not amounting to murder shall be punished with '[imprisonment for life], or imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine, if the act by which the death is caused is done with the intention of causing death, or of causing such bodily injury as is likely to cause death,

or with imprisonment of either description for a term which may extend to ten years, or with fine, or with both, if the act is done with the knowledge that it is likely to cause death, but without any intention to cause death, or to cause such bodily injury as is likely to cause death.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

Para II

Punishment—Imprisonment for 10 years, or fine, or both—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 304A. Causing death by negligence

'[304A. Causing death by negligence.—Whoever causes the death of any person by doing any rash or negligent act not amounting to culpable homicide, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Ins. by Act 27 of 1870, sec. 12.

Section 304B. Dowery death

'[304B. Dowry death.—(1) Where the death of a woman is caused by any burns or bodily injury or occurs otherwise than under normal circumstances within seven years of her marriage and it is shown that soon before her death she was subjected to cruelty or harassment by her husband or any relative of her husband for, or in connection with, any demand for dowry, such death shall be called "dowry death", and such husband or relative shall be deemed to have caused her death.

Explanation

For the purpose of this sub-section, "dowry" shall have the same meaning as in section 2 of the Dowry Prohibition Act, 1961 (28 of 1961).

(2) Whoever commits dowry death shall be punished with imprisonment for a term which shall not be less than seven years but which may extend to imprisonment for life.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment of not less than 7 years but which may extend to imprisonment for life—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1 Ins. by Act 43 of 1986, sec. 10 (w.e.f. 19-11-1986).

Section 305. Abetment of suicide of child or insane person

If any person under eighteen years of age, any insane person, any delirious person, any idiot, or any person in a state of intoxication, commits suicide, whoever abets the commission of such suicide, shall be punished with death or '[imprisonment for life], or imprisonment for a term not exceeding ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Death, or imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 306. Abetment of suicide

If any person commits suicide, whoever abets the commission of such suicide, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable —Triable by Court of Session—Non-compoundable.

Section 307. Attempt to murder

Whoever does any act with such intention or knowledge, and under such circumstances that, if he by that act caused death, he would be guilty of murder, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine; and if hurt is caused to any person by such act, the offender shall be liable either to [1][imprisonment for life], or to such punishment as is hereinbefore mentioned.

Attempts by life convicts.—[2][When any person offending under this section is under sentence of [1][imprisonment for life], he may, if hurt is caused, be punished with death.]

Illustrations

(a) A shoots at Z with intention to kill him, under such circumstances that, if death ensued. A would be guilty of murder. A is liable to punishment under this section.

(b) A, with the intention of causing the death of a child of tender years, exposes it in a desert place. A has committed the offence defined by this section, though the death of the child does not ensue.

(c) A, intending to murder Z, buys a gun and loads it. A has not yet committed the offence. A fires the gun at Z. He has committed the offence defined in this section, and if by such firing he wounds Z, he is liable to the punishment provided by the latter part of [3][the first paragraph of] this section.

(d) A, intending to murder Z by poison, purchases poison and mixes the same with food which remains in A’s keeping; A has not yet committed the offence defined in this section. A places the food on Z’s table or delivers it to Z’s

servant to place it on Z's table. A has committed the offence defined in this section.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable —Triable by Court of Session—Non-compoundable.

Para II

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

Para III

Punishment—Death, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

2. Ins. by Act 27 of 1870, sec. 11.

3. Ins. by Act 12 of 1891, sec. 2 and Sch. II.

Section 308. Attempt to commit culpable homicide

Whoever does any Act with such intention or knowledge and under such circumstances that, if he by that Act caused death, he would be guilty of culpable homicide not amount to murder, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both, and if hurt is caused to any person by such Act, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

Illustration

A, on grave and sudden provocation, fires a pistol at Z, under such circumstances that if he thereby caused death he would be guilty of culpable homicide not amounting to murder. A has committed the offence defined in this section.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 3 years, or fine, or both—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

Para II
Punishment—Imprisonment for 7 years, or fine, or both Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

Section 309. Attempt to commit suicide
Whoever attempts to commit suicide and does any act towards the commission of such offence, shall be punished with simple imprisonment for term which may extend to one year [1][or with fine, or with both].

CLASSIFICATION OF OFFENCE
Punishment—Simple imprisonment for 1 year, or fine or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

1. Subs. by Act 8 of 1882, sec. 7, for "and shall also be liable to fine".

Section 310. Thug
Whoever, at any time after the passing of this act, shall have been habitually associated with any other or others for the purpose of committing robbery or child-stealing by means of or accompanied with murder, is a thug.

Section 311. Punishment
Whoever is a thug, shall be punished with [1][imprisonment for life] and shall also be liable to fine.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for life and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 312. Causing miscarriage
Whoever voluntarily causes a woman with child to miscarry, shall, if such miscarriage be not caused in good faith for the purpose of saving the life of the woman, be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both, and, if the woman be quick with child, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

Explanation

A woman who causes herself to miscarry, is within the meaning of this section.

CLASSIFICATION OF OFFENCE
Para I
Punishment—Imprisonment for 3 years, or fine or both—Non-cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Para II
Punishment—Imprisonment for 7 years and fine—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 313. Causing miscarriage without woman's consent
Whoever commits the offence defined in the last preceding section without the consent of the woman, whether the woman is quick with child or not, shall be punished with '[imprisonment for life] or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE
Para I
Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 314. Death caused by act done with intent to cause miscarriage-
Whoever, with intent to cause the miscarriage of woman with child, does any act which causes the death of such woman, shall be punished with imprisonment of either description for a term may extend to ten years, and shall also be liable to fine.

If act done without woman's consent.— And if the act is done without the consent of the woman, shall be punished either with '[imprisonment for life] or with the punishment above mentioned
Explanation

It is not essential to this offence that the offender should know that the act is likely to cause death.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable —Triable by Court of Session—Non-compoundable.

Para II

Punishment—Imprisonment for life, or as above—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 315. Act done with intent to prevent child being born alive or to cause it to die after birth

Whoever before the birth of any child does any act with the intention of thereby preventing that child from being born alive or causing it to die after its birth, and does by such act prevent that child from being born alive, or causes it to die after its birth, shall, if such act be not caused in good faith for the purpose of saving the life of the mother, be punished with imprisonment of either description for a term which may extend to ten years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years, or fine, or both—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

Section 316. Causing death of quick unborn child by act amounting to culpable homicide

Whoever does any act under such circumstances, that if he thereby caused death he would be guilty of culpable homicide, and does by such act cause the death of a quick unborn child, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

Illustration

A, knowing that he is likely to cause the death of a pregnant woman, does an act which, if it caused the death of the woman, would amount to culpable homicide. The woman is injured, but does not die, but the death of an unborn quick child with which she is pregnant is thereby caused. A is guilty of the offence defined in this section.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable —Triable by Court of Session—Non-compoundable.

Section 317. Exposure and abandonment of child under twelve years, by parent or person having care of it.

Whoever being the father or mother of a child under the age of twelve years, having the care of such child, shall expose or leave such child in any place with the intention of wholly abandoning such child, shall be punished with imprisonment of either description for a term which may extend to seven years; or with fine, or with both.

Explanation

This section is not intended to prevent the trial of the offender for murder or culpable homicide, as the case may be, if the child dies in consequence of the exposure.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 318. Concealment of birth by secret disposal of dead body.

Whoever, by secretly burying or otherwise disposing of the death body of a child whether such child die before or after or during its birth, intentionally conceals or endeavours to conceal the birth of such child, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 319. Hurt.

Whoever causes bodily pain, disease or infirmity to any person is said to cause hurt.

Section 320. Grievous hurt.

The following kinds of hurt only are designated as “grievous”:

First.— Emasculation.

Secondly.—Permanent privation of the sight of either eye.

Thirdly.— Permanent privation of the hearing of either ear,

Fourthly.—Privation of any member or joint.

Fifthly.— Destruction or permanent impairing of the powers of any member or joint.

Sixthly.— Permanent disfiguration of the head or face.

Seventhly.—Fracture or dislocation of a bone or tooth.

Eighthly.—Any hurt which endangers life or which causes the sufferer to be during the space of twenty days in severe bodily pain, or unable to follow his ordinary pursuits.

Section 321. Voluntarily causing hurt.
Whoever does any act with the intention of thereby causing hurt to any person, or with the knowledge that he is likely thereby to cause hurt to any person, and does thereby cause hurt to any person, is said "voluntarily to cause hurt".

Section 322. Voluntarily causing grievous hurt
Whoever voluntarily causes hurt, if the hurt which the intends to cause or knows himself to be likely to cause is grievous hurt, and if the hurt which he causes is grievous hurt, is said "voluntarily to cause grievous hurt".

Explanation

A person is not said voluntarily to cause grievous hurt except when he both causes grievous hurt and intends or knows himself to be likely to cause grievous hurt. But he is said voluntarily to cause grievous hurt, if intending or knowing himself to be likely to cause grievous hurt of one kind; he actually causes grievous hurt of another kind.

Illustration
A, intending or knowing himself to be likely permanently to disfigure Z's face, gives Z a blow which does not permanently disfigure Z's face, but which cause Z to suffer severe bodily pain for the space of twenty days. A has voluntarily caused grievous hurt.

Section 323. Punishment for voluntarily causing hurt

Whoever, except in the case provided for by section 334,voluntarily causes hurt, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 1 year, or fine of 1,000 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Compounded by the person to whom the hurt is caused.

Section 324. Voluntarily causing hurt by dangerous weapons or means

Whoever, except in the case provided for by section 334, voluntarily causes hurt by means of any instrument for shooting, stabbing or cutting, or any instrument which, used as weapon of offence, is likely to cause death, or by means of fire or any heated substance, or by means of any poison or any corrosive substance, or by means of any explosive substance or by means of any substance which it is deleterious to the human body to inhale, to swallow, or to receive into the blood, or by means of any animal, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years, or fine, or both—Cognizable—Non-Bailable—Triable by any Magistrate—Compoundable by the person to whom hurt is caused with the permission of the court.

Section 325. Punishment for voluntarily causing grievous hurt

Whoever, except in the case provided for by section 335, voluntarily causes grievous hurt, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years, and fine—Cognizable—Bailable—Triable by any Magistrate—Compoundable by the person to whom hurt is caused with the permission of the court.

Section 326. Voluntarily causing grievous hurt by dangerous weapons or means

Whoever, except in the case provided for by section 335, voluntarily causes grievous hurt by means of any instrument for shooting, stabbing or cutting, or

any instrument which, used as a weapon of offence, is likely to cause death, or by means of fire or any heated substance, or by means of any poison or any corrosive substance, or by means of any explosive substance, or by means of any substance which it is deleterious to the human body inhale, to swallow, or to receive into the blood, or by means of any animal, shall be punished with ¹[imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

1[326A. Whoever causes permanent or partial damage or deformity to, or burns or maims or disfigures or disables, any part or parts of the body of a person or causes grievous hurt by throwing acid on or by administering acid to that person, or by using any other means with the intention of causing or with the knowledge that he is likely to cause such injury or hurt, shall be punished with imprisonment of either description for a term which shall not be less than ten years but which may extend to imprisonment for life, and with fine: Provided that such fine shall be just and reasonable to meet the medical expenses of the treatment of the victim:

Provided further that any fine imposed under this section shall be paid to the victim.

1. Whoever throws or attempts to throw acid on any person or attempts to administer acid to any person, or attempts to use any other means, with the intention of causing permanent or partial damage or deformity or burns or maiming or disfigurement or disability or grievous hurt to that person, shall be punished with imprisonment of either description for a term which shall not be less than five years but which may extend to seven years, and shall also be liable to fine.

.—For the purposes of section 326A and this section, "acid" includes any substance which has acidic or corrosive character or burning nature, that is capable of causing bodily injury leading to scars or disfigurement or temporary or permanent disability.

. For the purposes of section 326A and this section, permanent or partial damage or deformity shall not be required to be irreversible.]

1 Inserted by Section 5 of 'The Criminal Law (Amendment) Act, 2013'

Section 327. Voluntarily causing hurt to extort property, or to constrain to an illegal act
Whoever voluntarily causes hurt, for the purpose of extorting from the sufferer, or from any person interested in the sufferer, any property or valuable security, or of constraining the sufferer or any person interested in such sufferer to do anything which is illegal or which may facilitate the commission of an offence, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable —Triable by Magistrate of the first class—Non-compoundable.

Section 328. Causing hurt by means of poison, etc., with intent to commit an offence
Whoever administers to or causes to be taken by any person any poison or any stupefying, intoxicating or unwholesome drug, or other thing with intent to cause hurt such person, or with intent to commit or to facilitate the commission of an offence or knowing in to be likely that he will thereby cause hurt, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable —Triable by Court of Session—Non-compoundable.

Section 329. Voluntarily causing grievous hurt to extort property, or to constrain to an illegal act
Whoever voluntarily causes grievous hurt for the purpose of extorting from the sufferer or from any person interested in the sufferer any property or valuable security, or of constraining the sufferer or any person interested in such sufferer to do anything that is illegal or which may facilitate the commission of an offence, shall be punished with '[imprisonment for life], or imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 330. Voluntarily causing hurt to extort confession, or to compel restoration of property

Whoever voluntarily causes hurt for the purpose of extorting from the sufferer or from any person interested in the sufferer, any confession or any information which may lead to the detection of an offence or misconduct, or for the purpose of constraining the sufferer or any person interested in the sufferer to restore or to cause the restoration of any property or valuable security or to satisfy any claim or valuable security, shall be punished with imprisonment of either description for a term which may extend to seven years, shall also be liable to fine.

Illustrations

(a) A, a police-officer, tortures Z in order to induce Z to confess that he committed a crime. A guilty of an offence under this section.

(b) A, a police officer, tortures B to induce him to point out where certain stolen property is deposited. A is guilty of an offence under this section.

(c) A, a revenue officer, tortures Z in order to compel him to pay certain arrears of revenue due from Z. A is guilty of an offence under this section.

(d) A, a zamindar, tortures a raiyat in order to compel him to pay his rent. A is guilty of an offence under this section.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 331. Voluntarily causing grievous hurt to extort confession, or to compel restoration of property

Whoever voluntarily causes grievous hurt for the purpose of extorting from the sufferer or from any person interested in the sufferer any confession or any information which may lead to the detection of an offence or misconduct, or for the purpose of constraining the sufferer or any person interested in the sufferer to restore or to cause the restoration of any property or valuable security, or to satisfy any claim or demand or to give information which may lead to the restoration of any property or valuable security, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable —Triable by Court of Session—Non-compoundable.

Section 332. Voluntarily causing hurt to deter public servant from his duty

Whoever voluntarily causes hurt to any person being a public servant in the discharge of his duty as such public servant, or with intent to prevent or deter that person or any other public servant from discharging his duty as such public servant, or in consequence of anything done or attempted to be done by that person in the lawful discharge of his duty as such public servant, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years, or fine, or both—Cognizable—Non-Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 333. Voluntarily causing grievous hurt to deter public servant from his duty

Whoever voluntarily causes grievous hurt to any person being a public servant in the discharge of his duty as such public servant, or with intent to prevent or deter that person or any other public servant from discharging his duty as such public servant, or in consequence of anything done or attempted to be done by that person in the lawful discharge of his duty as such public servant, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

Section 334. Voluntarily causing hurt on provocation

Whoever voluntarily causes hurt on grave and sudden provocation, if he neither intends nor knows himself to be likely to cause hurt to any person other than the person who gave the provocation, shall be punished with imprisonment of either description for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 1 month, or fine of 500 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Compoundable by the person to whom the hurt is caused.

Section 335. Voluntarily causing grievous hurt on provocation

Whoever '[voluntarily] causes grievous hurt on grave and sudden provocation, if he neither intends nor knows himself to be likely to cause grievous hurt to

any person other than the person who gave the provocation, shall be punished with imprisonment of either description for a term which may extend to four years or with fine which may extend to two thousand rupees, or with both Explanation

The last two sections are subject to the same provisos as Explanation 1, section 300.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 4 years, or fine of 2000 rupees, or both—Cognizable-Bailable—Triable by Magistrate of the first class—Compoundable by the person to whom hurt is caused with the permission of the court.

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1. Ins. by Act 8 of 1882, sec. 8.

Section 336. Act endangering life or personal safety of others

Whoever does any act so rashly or negligently as to endanger human life or the personal safety of others, shall be punished with imprisonment of either description for term which may extend to three months, or with fine which may extend to two hundred and fifty rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 months, or fine of 250 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 337. Causing hurt by act endangering life or personal safety of others

Whoever causes hurt to any person by doing any act so rashly or negligently as to endanger human life, or the personal safety of others, shall be punished with imprisonment of either description for term which may extend to six months, or with fine which may extend to five hundred rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 6 months, or fine of 500 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Compoundable by the person to whom hurt is caused with the permission of the court.

Section 338. Causing grievous hurt by act endangering life or personal safety of others

Whoever causes grievous hurt to any person by doing any act so rashly or negligently as to endanger human life, or the personal safety of others, shall be

punished with imprisonment of either description for a term which may extend to two years, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine of 1,000 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Compoundable by the person to whom hurt is caused with the permission of the court.

Section 339. Wrongful restraint

Whoever voluntarily obstructs any person so as to prevent that person from proceeding in any direction in which that person has right to proceed, is said wrongfully to restrain that person.

Exception: – The obstruction of a private way over land or water which a person in good faith believes himself to have lawful right to obstruct, is not an offence within the meaning of this section.

Illustration

A obstructs a path along which Z has a right to pass. A not believing in good faith that he has a right to stop the path. Z is thereby prevented from passing. A wrongfully restrains Z.

Section 340. Wrongful confinement.

Whoever wrongfully restrains any person in such a manner as to prevent that person from proceedings beyond certain circumscribing limits, is said "wrongfully to confine" that person.

Illustrations

(a) A causes Z to go within a walled space, and locks Z in. A is thus prevented from proceeding in any direction beyond the circumscribing line of wall. A wrongfully confines Z.

(b) A places men with firearms at the outlets of a building, and tells Z that they will fire at Z if Z attempts to leave the building. A wrongfully confines Z.

Section 341. Punishment for wrongful restraint

Whoever wrongfully restrains any person shall be punished with simple imprisonment for a term, which may extend to one month, or with fine which may extend to five hundred rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Simple imprisonment for 1 month, or fine of 500 rupees, or both —Cognizable—Bailable—Triable by any Magistrate—Compoundable by the person restrained or confined.

Section 342. Punishment for wrongful Confinement

Whoever wrongfully confines any person shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 1 year, or fine of 1,000 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Compoundable by the person restrained or confined.

Section 343. Wrongful confinement for three or more days

Whoever wrongfully confines any person for three days, or more, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Compoundable by the person confined with the permission of the court.

Section 344. Wrongful confinement for ten or more days

Whoever wrongfully confines any person for ten days, or more, shall be punished with imprisonment of either description for a term which any extend to three years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years and fine—Cognizable—Bailable—Triable by any Magistrate—Compoundable by the person confined with the permission of court.

Section 345. Wrongful confinement of person for whose liberation writ has been issued

Whoever keeps any person in wrongful confinement, knowing that a writ for the liberation of that person has been duly issued, shall be punished with imprisonment of either description for a term which may extend to two years in addition to any term of imprisonment to which he may be liable under any other section of this chapter.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years in addition to imprisonment under any other section—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 346. Wrongful confinement in secret

Whoever wrongfully confines any person in such manner as to indicate an intention that the confinement of such person may not be known to any person interested in the person so confined, or to any public servant, or that the place of such confinement may not be known to or discovered by any such person or public servant as hereinbefore mentioned, shall be punished with imprisonment of either description for a term which may extend to two years in addition to any other punishment to which he may be liable for such wrongful confinement.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, in addition to imprisonment under any other section—Cognizable—Bailable—Triable by Magistrate of the first class—Compoundable by the person confined with the permission of the court.

Section 347. Wrongful confinement to extort property, or constrain to illegal act

Whoever wrongfully confines any person for the purpose of extorting from the person confined, or from any person interested in the person confined, any property or valuable security or of constraining the person confined or any person interested in such person to do anything illegal or to give any information which may facilitate the commission of an offence, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years and fine—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 348. Wrongful confinement to extort confession, or compel restoration of property

Whoever wrongfully confines any person for the purpose of extorting from the person confined or any person interested in the person confined any confession or any information which may led to the detection of an offence or misconduct, or for the purpose of constraining the person confined or any person interested in the person confined to restore or to cause the restoration

of any property or valuable security or to satisfy any claim or demand, or to give information which may lead to the restoration of any property or valuable security, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years and fine—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 349. Force

A person is said to use force to another if he causes motion, change of motion, or cessation of motion to that other, or if he causes to any substance such motion, or change of motion, or cessation of motion as brings that substance into contact with any part of that other's body, or with anything which that other is wearing or carrying, or with anything so situated that such contact affects that other's sense of feeling: Provided that the person causing the motion, or change of motion, or cessation of motion, causes that motion, change of motion, or cessation of motion in one of the three ways hereinafter described.

First.— By his own bodily power.

Secondly.—By disposing any substance in such a manner that the motion or change or cessation of motion takes place without any further act on his part, or on the part of any other person.

Thirdly.— By inducing any animal to move, to change its motion, or to cease to move.

Section 350. Criminal force

Whoever intentionally uses force to any person, without that person's consent, in order to the committing of any offence, or intending by the use of such force to cause, or knowing it to be likely that by the use of such force he will cause injury, fear or annoyance to the person to whom the force is used, is said to use criminal force to that other.

Illustrations

(a) Z is sitting in a moored boat on a river. A unfastens the moorings, and thus intentionally causes the boat to drift down the stream. Here A intentionally causes motion to Z, and he does this by disposing substances in such a manner that the motion is produced without any other act on any person's part, A has

therefore intentionally used force to Z; and if he has done so without Z's consent, in order to the committing of any offence, or intending or knowing in to be likely that this use of force will cause injury, fear or annoyance to Z, A has used criminal force to Z.

(b) Z is reading in a chariot. A lashes Z's horses, and thereby causes them to quicken there pace. Here Z has caused change of motion to Z by inducing the animals to change their motion. A has therefore used force to Z; and if A has done this without Z's consent, intending or knowing it to be likely that he may thereby injure, frighten or annoy Z, A has used criminal force to Z.

(c) Z is riding in a palanquin. A, intending to rob Z, seizes the pole and stops the palanquin. Here A has caused therefore used force to Z; and as A has acted thus intentionally, without Z's consent, in order to the commission of an offence. A has used criminal force to Z.

(d) A intentionally pushes against Z in the street. Here A has by his own bodily power moved his own person so as to bring it into contact with Z. He has therefore intentionally used force to Z; and if he has done so without Z's consent, intending or knowing it to be likely that he may thereby injure, frighten or annoy Z, he has used criminal force to Z.

(e) A throws a stone intending or knowing it to be likely that the stone will be thus brought in to contact with Z, or with Z's clothes, or with something carried by Z, or that it will strike water and dash up the water against Z's clothes or something carried by Z. Here, if the throwing of the stone produce the effect of causing any substance to come into contact with Z, or Z's clothes. A has used force to Z; and if he did so without Z's consent, intending thereby to injure, frighten or annoy Z, he has criminal force by Z.

(f) A intentionally pulls up a woman's veil. Here A intentionally uses force to her, and if he does so without her consent intending or knowing it to be likely that he may thereby injure, frighten or annoy her, he has used criminal force to her.

(g) Z is bathing, A pours into the bath water which he knows to be boiling. Here A intentionally by his own bodily power causes such motion in the boiling water as brings that water into contact with Z, or with that water so situated that such contact must affect Z's sense of feeling; A has therefore intentionally used force to Z; and he has done this without Z's consent intending or knowing it to be likely that he may thereby cause injury, fear, or annoyance to Z, A has used criminal force.

(h) A incites a dog to spring upon Z, without Z; s consent. Here, if A intends to cause injury, fear or annoyance to Z, he uses criminal force to Z.

Section 351. Assault

Whoever makes any gesture, or any preparation intending or knowing it to be likely that such gesture or preparation will cause any person present to apprehend that he who makes that gesture or preparation is about to use criminal force to that person, is said to commit as assault.

Explanation

Mere words do not amount to an assault. But the words which a person uses may give to his gestures or preparation such a meaning as may make those gestures or preparations amount to an assault.

Illustrations

(a) A shakes his fist at Z, intending or knowing it to be likely that he may thereby cause Z to believe that A is about to strike Z, A has committed an assault.

(b) A begins to unloose the muzzle of a ferocious dog, intending or knowing it to be likely that he may thereby cause Z to believe that he is about to cause the dog to attack Z. A has committed an assault upon Z.

(c) A takes up a stick, saying to Z, “I will give you a beating” Here, though the words used by A could in no case amount to an assault, and though the mere gesture, unaccompanied by any other circumstances, might not amount to an assault, the gesture explained by the words may amount to an assault.

Section 352. Punishment for assault or criminal force otherwise than on grave provocation

Whoever assaults or uses criminal force to any person otherwise than on grave and sudden provocation given by that person, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to five hundred rupees, or with both.

Explanation

Grave and sudden provocation will not mitigate the punishment for an offence under this section. If the provocation is sought or voluntarily provoked by the offender as an excuse for the offence, or

if the provocation is given by anything done in obedience to the law, or by a public servant, in the lawful exercise of the powers of such public servant, or

if the provocation is given by anything done in the lawful exercise of the right of private defence.

Whether the provocation was grave and sudden enough to mitigate the offence, is a question of fact.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 3 months, or fine of 500 rupees, or both—Non-Cognizable—Bailable—Triable by any Magistrate—Compoundable by the person assaulted or to whom criminal force is used.

Section 353. Assault or criminal force to deter public servant from discharge of his duty
Whoever assaults or uses criminal force to any person being a public servant in the execution of his duty as such public servant, or with intent to prevent or deter that person from discharging his duty as such public servant, or in consequence of anything done or attempted to be done by such person in the lawful discharge of his duty as such public servant, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Non-Bailable—Triable by any Magistrate—Non-compoundable.

Section 354. Assault or criminal force to woman with intent to outrage her modesty
Whoever assaults or uses criminal force to any woman, intending to outrage or knowing it to be likely that he will thereby outrage her modesty, 1[shall be punished with imprisonment of either description for a term which shall not be less than one year but which may extend to five years, and shall also be liable to fine.]

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

State Amendments
Andhra Pradesh
For section 354, the following section shall be substituted, namely
354. Assault or criminal force to woman with intent to outrage her modesty.—

Whoever assaults or uses criminal force to any woman intending to outrage or knowing it to be likely that he will thereby outrage her modesty, shall be punished with imprisonment of either description for a term which shall not be less than five years but which may extend to seven years and shall also be liable to fine:

Provided that the court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment of either description for a term which may be less than five years but which shall not be less than two years.

[Vide Andhra Pradesh Act 6 of 1991].

Madhya Pradesh

After section 354, the following new section shall be inserted, namely

354A. Assault or use Criminal force to woman with intent to disrobe her.—Whoever assaults or uses criminal force to any woman or abets or conspires to assault or uses such criminal force to any woman intending to outrage or knowing it to be likely that by such assault, he will thereby outrage or causes to be outraged the modesty of the woman by disrobing or compel her to be naked on any public place, shall be punished with imprisonment of either description for a term which shall not be less than one year but which may extend to ten years and shall also be liable to fine.".

[Vide Madhya Pradesh Act 14 of 2004, sec. 3 (w.e.f. 2-12-2004)].

Orissa

In the First Schedule to the Code of Criminal Procedure, 1973 in the entry under column 5 relating to section 354 of the Indian Penal Code 1860 for the word 'bailable' the word 'non-bailable' shall be substituted.

[Vide Orissa Act 6 of 1995, sec. 3 (w.e.f. 10-3-1995)].

1. Inserted by Section 7 of 'The Criminal Law (Amendment) Act, 2013′

Section 355. Assault or criminal force with intent to dishonour person, otherwise than on grave provocation

Whoever assaults or uses criminal force to any person, intending thereby to dishonour that person, otherwise than on grave and sudden provocation given by that person, shall be punished with imprisonment for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Non-Cognizable—Bailable—Triable by any Magistrate—Compounded by the person assaulted or to whom criminal force is used.

State Amendment
Andhra Pradesh
Offence under section 355 is non-cognizable, bailable and triable by any Magistrate.

[Vide Andhra Pradesh Act 3 of 1992, sec. 2 (w.e.f. 15-2-1992)].

Section 356. Assault or criminal force in attempt to commit theft of property carried by a person
Whoever assault or uses criminal force to any person, in attempting to commit theft on any property which that person is then wearing or carrying, shall be punished with imprisonment of either description for a term which may extend to two years, with fine, or with both.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 357. Assault or criminal force in attempt wrongfully to confine a person
Whoever assaults or uses criminal force to any person, in attempting wrongfully to confine that person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 1 year, or fine of 1,000 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Compoundable by the person assaulted or to whom the force was used with the permission of the court.

Section 358. Assault or criminal force on grave provocation
Whoever assaults or uses criminal force to any person on grave and sudden provocation given by that person, shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to two hundred rupees, or with both.

Explanation

The last section is subject to the same Explanation as section 352.

CLASSIFICATION OF OFFENCE

Punishment—Simple imprisonment for one month, or fine of 200 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Compoundable by the person assaulted or to whom criminal force is used.

Section 359. Kidnapping

Kidnapping is of two kinds: kidnapping from [1][India], and kidnapping from lawful guardianship.

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1. The words “British India” have successively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch. to read as above.

Section 360. Kidnapping from India

Whoever conveys any person beyond the limits of [1][India] without the consent of that person, or of some person legally authorised to consent on behalf of that person, is said to kidnap that person from [1][India].

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1. The words “British India” have successively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch. to read as above.

Section 361. Kidnapping from lawful guardianship

Whoever takes or entices any minor under [1][sixteen] years of age if a male, or under [2][eighteen] years of age if a female, or any person of unsound mind, out of the keeping of the lawful guardian of such minor or person of unsound mind, without the consent of such guardian, is said to kidnap such minor or person from lawful guardianship.

Explanation

The words “lawful guardian” in this section include any person lawfully entrusted with the care or custody of such minor or other person.

Exception

This section does not extend to the act of any person who in good faith believes himself to be the father of an illegitimate child, or who in good faith believes himself to be entitled to lawful custody of such child, unless such act is committed for an immoral or unlawful purpose.

STATE AMENDMENT
Manipur
In section 361 for the words ‘eighteen’ substitute the word ‘fifteen’.

[Vide Manipur Act 30 of 1950, sec. 3 (w.e.f. 16-4-1950), read with Act 81 of 1971, sec. 3 (w.e.f. 25-1-1972)].

1. Subs. by Act 42 of 1949, sec. 2, for “fourteen”.

2. Subs. by Act 42 of 1949, sec. 2, for “sixteen”.

Section 362. Abduction

Whoever by force compels, or by any deceitful means induces, any person to go from any place, is said to abduct that person.

Section 363. Punishment for kidnapping

Whoever kidnaps any person from '[India] or from lawful guardianship, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 7 years and fine—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

State Amendment
Uttar Pradesh
In Uttar Pradesh the offence under section 363, I.P.C. is non-bailable.

[Vide Uttar Pradesh Act 1 of 1984, sec. 12 (w.e.f. 1-5-1984)].

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1. The words “British India” have successively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch., to read as above.

Section 363A. Kidnapping or maiming a minor for purposes of begging

'[363A. Kidnapping or maiming a minor for purposes of begging.—(1) Whoever kidnaps any minor or, not being the lawful guardian of a minor, obtains the custody of the minor, in order that such minor may be employed or used for the purpose of begging shall be punishable with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

(2) Whoever maims any minor in order that such minor may be employed or used for the purposes of begging shall be punishable with imprisonment for life, and shall also be liable to fine.

(3) Where any person, not being the lawful guardian of a minor, employs or uses such minor for the purposes of begging, it shall be presumed, unless the contrary is proved, that he kidnapped or otherwise obtained the custody of that minor in order that the minor might be employed or used for the purposes of begging.

(4) In this section,
(a) 'begging' means
(i) soliciting or receiving alms in a public place, whether under the pretence of singing, dancing, fortune-telling, performing tricks or selling articles or otherwise;

(ii) entering on any private premises for the purpose of soliciting or receiving alms;

(iii) exposing or exhibiting, with the object of obtaining or extorting alms, any sore, wound, injury, deformity or disease, whether of himself or of any other person or of an animal;

(iv) using a minor as an exhibit for the purpose of soliciting or receiving alms;

(b) 'minor' means
(i) in the case of a male, a person under sixteen years of age; and

(ii) in the case of a female, a person under eighteen years of age.]

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable —Triable by Magistrate of the first class—Non-compoundable.

Para II

Punishment—Imprisonment for life and fine—Cognizable—Non-bailable— Triable by Court of Session—Non-compoundable.

1. Ins. by Act 52 of 1959, sec. 2 (w.e.f. 15-1-1960).

Section 364. Kidnapping or abducting in order to murder

Whoever kidnaps or abducts any person in order that such person may be murdered or may be so disposed of as to be put in danger of being murdered, shall be punished with ¹[imprisonment for life] or rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

Illustrations

(a) A kidnaps Z from [2][India], intending or knowing it to be likely that Z may be sacrificed to an idol. A has committed the offence defined in this section.
(b) A forcibly carries or entices B away from his home in order that B may be murdered. A has committed the offence defined in this section..

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or rigorous imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

2. The words "British India" have successively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch. to read as above.

Section 364A. Kidnapping for ransom, etc.

[1][364A. Kidnapping for ransom, etc.—Whoever kidnaps or abducts any person or keeps a person in detention after such kidnapping or abduction and threatens to cause death or hurt to such person, or by his conduct gives rise to a reasonable apprehension that such person may be put to death or hurt, or causes hurt or death to such person in order to compel the Government or [2][any foreign State or international inter-governmental organization or any other person] to do or abstain from doing any act or to pay a ransom, shall be punishable with death, or imprisonment for life, and shall also be liable to fine].

Classification of Offence

Punishment—Death, or imprisonment for life and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Ins. by Act 42 of 1993, sec. 2 (w.e.f. 22-5-1993).

2. Subs. by Act 24 of 1995, for "any other person" (w.e.f. 26-5-1995).

Section 365. Kidnapping or abducting with intent secretly and wrongfully to confine person

Whoever kidnaps or abducts any person with intent to cause that person to be secretly and wrongfully confined, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 366. Kidnapping, abducting or inducing woman to compel her marriage, etc.

Whoever kidnaps or abducts any woman with intent that she may be compelled, or knowing it to be likely that she will be compelled, to marry any person against her will, or in order that she may be forced or seduced to illicit intercourse, or knowing it to be likely that she will be forced or seduced to illicit intercourse shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine; [1][and whoever, by means of criminal intimidation as defined in this Code or of abuse of authority or any other method of compulsion, induces any woman to go from any place with intent that she may be, or knowing that it is likely she will be, forced or seduced to illicit intercourse with another person shall be punished as aforesaid].

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Added by Act 20 of 1923, sec. 2.

Section 366A. Procreation of minor girl

[1][366A. procreation of minor girl.—Whoever, by any means whatsoever, induces any minor girl under the age of eighteen years to go from any place or to do any act with intent that such girl may be, or knowing that it is likely that she will be, forced or seduced to illicit intercourse with another person shall be punishable with imprisonment which may extend to ten years, and shall also be liable to fine.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Ins. by Act 20 of 1923, sec. 3.

Section 366B. Importation of girl from foreign country

[1][366B. Importation of girl from foreign country.—Whoever imports into [2][India] from any country outside India [3][or from the State of Jammu and Kashmir] any girl under the age of twenty-one years with intent that she may be, or knowing it to be likely that she will be, forced or seduced to illicit intercourse with another person, [4][***] shall be punishable with imprisonment which may extend to ten years and shall also be liable to fine.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable —Triable by Court of Session—Non-compoundable.

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1. Ins. by Act 20 of 1923, sec. 3.

2. The words “British India” have successively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch., to read as above.

3. Ins. by Act 3 of 1951, sec. 3 and Sch.

4. Certain words omitted by Act 3 of 1951, sec. 3 and Sch.

Section 367. Kidnapping or abducting in order to subject person to grievous hurt, slavery, etc.

Whoever kidnaps or abducts any person in order that such person may be subjected, or may be so disposed of as to be put in danger of being subject to grievous hurt, or slavery, or to unnatural lust of any person, or knowing it to be likely that such person will be so subjected or disposed of, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable —Triable by Court of Session—Non-compoundable.

Section 368. Wrongfully concealing or keeping in confinement, kidnapped or abducted person

Whoever, knowing that any person has been kidnapped or has been abducted, wrongfully conceals or confines such person, shall be punished in the same

manner as if he had kidnapped or abducted such person with the same intention or knowledge, or for the same purpose as that with or for which he conceals or detains such person in confinement.

CLASSIFICATION OF OFFENCE

Punishment—Punishment for kidnapping or abduction—Cognizance—Non-bailable—Triable by court by which the kidnapping or abduction is triable—Non-compoundable.

Section 369. Kidnapping or abducting child under ten years with intent to steal from its person

Whoever kidnaps or abducts any child under the age of ten years with the intention of taking dishonestly any movable property from the person of such child, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 370. Substitution of new sections 370 and 370A for section 370.

1[370. ( ) Whoever, for the purpose of exploitation, ( ) recruits, ( ) transports,

( ) harbours, ( ) transfers, or ( ) receives, a person or persons, by

.— using threats, or

1. — using force, or any other form of coercion, or
2. — by abduction, or
3. — by practising fraud, or deception, or
4. — by abuse of power, or

.— by inducement, including the giving or receiving of payments or benefits, in order to achieve the consent of any person having control over the person recruited, transported, harboured, transferred or received, commits the offence of trafficking.

.— The expression “exploitation” shall include any act of physical exploitation or any form of sexual exploitation, slavery or practices similar to slavery, servitude, or the forced removal of organs

.— The consent of the victim is immaterial in determination of the offence of trafficking.

( ) Whoever commits the offence of trafficking shall be punished with rigorous imprisonment for a term which shall not be less than seven years, but which may extend to ten years, and shall also be liable to fine.

( ) Where the offence involves the trafficking of more than one person, it shall be punishable with rigorous imprisonment for a term which shall not be less than ten years but which may extend to imprisonment for life, and shall also be liable to fine.
( ) Where the offence involves the trafficking of a minor, it shall be punishable with rigorous imprisonment for a term which shall not be less than ten years, but which may extend to imprisonment for life, and shall also be liable to fine.
( ) Where the offence involves the trafficking of more than one minor, it shall be punishable with rigorous imprisonment for a term which shall not be less than fourteen years, but which may extend to imprisonment for life, and shall also be liable to fine.
( ) If a person is convicted of the offence of trafficking of minor on more than one occasion, then such person shall be punished with imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, and shall also be liable to fine.
( ) When a public servant or a police officer is involved in the trafficking of any person then, such public servant or police officer shall be punished with imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, and shall also be liable to fine.
370A. ( ) Whoever, knowingly or having reason to believe that a minor has been trafficked, engages such minor for sexual exploitation in any manner, shall be punished with rigorous imprisonment for a term which shall not be less than five years, but which may extend to seven years, and shall also be liable to fine.
( ) Whoever, knowingly by or having reason to believe that a person has been trafficked, engages such person for sexual exploitation in any manner, shall be punished with rigorous imprisonment for a term which shall not be less than three years, but which may extend to five years, and shall also be liable to fine.]
1. Inserted by Section 8 of 'The Criminal Law (Amendment) Act, 2013'

Section 371. Habitual dealing in slaves

Whoever habitually imports, exports, removes, buys, sells, traffics or deals in slaves, shall be punished with '[imprisonment for life] or with imprisonment of either description for a term not exceeding the years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 10 years, and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 372. Selling minor for purposes of prostitution, etc.

Whoever sells, lets to hire, or otherwise disposes of any [1][person under the age of eighteen years with intent that such person shall at any age be employed or used for the purpose of prostitution or illicit intercourse with any person or for any unlawful and immoral purpose, or knowing it to be likely that such person will at any age be] employed or used for any such purpose, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall be liable to fine.

[2][Explanation I

When a female under the age of eighteen years sold, let for hire, or otherwise disposed of to a prostitute or to any person who keeps or manages a brothel, the person so disposing of such female shall, until the contrary is proved, be presumed to have disposed of her with the intent that she shall be used for the purpose of prostitution.

Explanation II

For the purposes of this section “illicit intercourse” means sexual intercourse between persons not united by marriage or by any union or tie which, though not amounting to a marriage, is recognised by the personal law or custom of the community to which they belong or, where they belong to different communities, of both such communities, as constituting between them a quasi -marital relation].

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable —Triable by Court of Session—Non-compoundable.

1. Subs. by Act 18 of 1924, sec. 2, for certain words.

2. Ins. by Act 18 of 1924, sec. 3.

Section 373. Buying minor for purposes of prostitution, etc.

Whoever buys, hires or otherwise obtains possession of any [1][person under the age of eighteen years with intent that such person shall at any age be employed or used for the purpose of prostitution or illicit intercourse with any person or for any unlawful and immoral purpose, of knowing it to be likely that such person will at any age be] employed or used for any purpose, shall be punished

with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.
[2][Explanation I
Any prostitute or any person keeping or managing a brothel, who buys, hires or otherwise obtains possession of a female under the age of eighteen years shall, until the contrary is proved, be presumed to have obtained possession of such female with the intent that she shall be used for the purpose of prostitution.

Explanation II

"Illicit intercourse" has the same meaning as in section 372.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable —Triable by Court of Session—Non-compoundable.

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1. Subs. by Act 18 of 1924, sec. 2, for certain words.

2. Ins. by Act 18 of 1924, sec. 4.

Section 374. Unlawful compulsory labour

Whoever unlawfully compels any person to labour against the will of that person, shall be punished with imprisonment of either description for a term which may extend to one year, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 1 year, or fine, or both—Cognizable—Bailable —Triable by any Magistrate—Non-compoundable.

Section 375. Rape

[1][375. A man is said to commit "rape" if he
( ) penetrates his penis, to any extent, into the vagina, mouth, urethra or anus of a woman or makes her to do so with him or any other person; or
( ) inserts, to any extent, any object or a part of the body, not being the penis, into the vagina, the urethra or anus of a woman or makes her to do so with him or any other person; or
( ) manipulates any part of the body of a woman so as to cause penetration into the vagina, urethra, anus or any part of body of such woman or makes her to do so with him or any other person; or

( ) applies his mouth to the vagina, anus, urethra of a woman or makes her to do so with him or any other person, under the circumstances falling under any of the following seven descriptions:

1. —Against her will.
2. —Without her consent.
3. —With her consent, when her consent has been obtained by putting her or any person in whom she is interested, in fear of death or of hurt.
4. —With her consent, when the man knows that he is not her husband and that her consent is given because she believes that he is another man to whom she is or believes herself to be lawfully married.
5. —With her consent when, at the time of giving such consent, by reason of unsoundness of mind or intoxication or the administration by him personally or through another of any stupefying or unwholesome substance, she is unable to understand the nature and consequences of that to which she gives consent.
6. —With or without her consent, when she is under eighteen years of age.

.—When she is unable to communicate consent.

.—For the purposes of this section, “vagina” shall also include .

.—Consent means an unequivocal voluntary agreement when the woman by words, gestures or any form of verbal or non-verbal communication, communicates willingness to participate in the specific sexual act:

Provided that a woman who does not physically resist to the act of penetration shall not by the reason only of that fact, be regarded as consenting to the sexual activity.

.—A medical procedure or intervention shall not constitute rape.

.—Sexual intercourse or sexual acts by a man with his own wife, the wife not being under fifteen years of age, is not rape.]

–

1. Inserted by Section 9 of ‘The Criminal Law (Amendment) Act, 2013′

Section 376. Punishment for rape

'[376. ( ) Whoever, except in the cases provided for in sub-section ( ), commits rape, shall be punished with rigorous imprisonment of either description for a term which shall not be less than seven years, but which may extend to imprisonment for life, and shall also be liable to fine.

( ) Whoever,

( ) being a police officer, commits rape

( ) within the limits of the police station to which such police officer is appointed; or

( ) in the premises of any station house; or

( ) on a woman in such police officer's custody or in the custody of a police officer subordinate to such police officer; or
( ) being a public servant, commits rape on a woman in such public servant's custody or in the custody of a public servant subordinate to such public servant; or
( ) being a member of the armed forces deployed in an area by the Central or a State Government commits rape in such area; or
( ) being on the management or on the staff of a jail, remand home or other place of custody established by or under any law for the time being in force or of a women's or children's institution, commits rape on any inmate of such jail, remand home, place or institution; or
( ) being on the management or on the staff of a hospital, commits rape on a woman in that hospital; or
( ) being a relative, guardian or teacher of, or a person in a position of trust or authority towards the woman, commits rape on such woman; or
( ) commits rape during communal or sectarian violence; or
( ) commits rape on a woman knowing her to be pregnant; or
( ) commits rape on a woman when she is under sixteen years of age;
Or

( ) commits rape, on a woman incapable of giving consent; or
( ) being in a position of control or dominance over a woman, commits rape on such woman; or
( ) commits rape on a woman suffering from mental or physical disability; or
( ) while committing rape causes grievous bodily harm or maims or disfigures or endangers the life of a woman; or
( ) commits rape repeatedly on the same woman, shall be punished with rigorous imprisonment for a term which shall not be less than ten years, but which may extend to imprisonment for life, which shall mean imprisonment for the remainder of that person's natural life, and shall also be liable to fine.
.—For the purposes of this sub-section,
( ) "armed forces" means the naval, military and air forces and includes any member of the Armed Forces constituted under any law for the time being in force, including the paramilitary forces and any auxiliary forces that are under the control of the Central Government or the State Government;
( ) "hospital" means the precincts of the hospital and includes the precincts of any institution for the reception and treatment of persons during convalescence or of persons requiring medical attention or rehabilitation;
( ) "police officer" shall have the same meaning as assigned to the expression "police" under the Police Act, 1861;

( ) “women’s or children’s institution” means an institution, whether called an orphanage or a home for neglected women or children or a widow’s home or an institution called by any other name, which is established and maintained for the reception and care of women or children.]
–

1. Inserted by Section 9 of ‘The Criminal Law (Amendment) Act, 2013′.

Section 376A. Intercourse by a man with his wife during separation

'[376A. Whoever, commits an offence punishable under sub-section ( ) or subsection
( ) of section 376 and in the course of such commission inflicts an injury which causes the death of the woman or causes the woman to be in a persistent vegetative state, shall be punished with rigorous imprisonment for a term which shall not be less than twenty years, but which may extend to imprisonment for life, which shall mean imprisonment for the remainder of that person’s natural life, or with death.]
——

1.Inserted by Section 376A of ‘The Criminal Law (Amendment) Act, 2013′.

Section 376B. Intercourse by public servant with woman is his custody

1[376B. Whoever has sexual intercourse with his own wife, who is living separately, whether under a decree of separation or otherwise, without her consent, shall be punished with imprisonment of either description for a term which shall not be less than two years but which may extend to seven years, and shall also be liable to fine.

1. —In this section, “sexual intercourse” shall mean any of the acts mentioned in clauses ( ) to ( ) of section 375.]

——

1. Inserted by Section 9 of ‘The Criminal Law (Amendment) Act, 2013′.

Section 376C. Intercourse by superintendent of jail, remand home, etc.

'[376C. Whoever, being
( ) in a position of authority or in a fiduciary relationship; or
( ) a public servant; or
( ) superintendent or manager of a jail, remand home or other place of custody established by or under any law for the time being in force, or a women’s

or children's institution; or

( ) on the management of a hospital or being on the staff of a hospital, abuses such position or fiduciary relationship to induce or seduce any woman either in his custody or under his charge or present in the premises to have sexual intercourse with him, such sexual intercourse not amounting to the offence of rape, shall be punished with rigorous imprisonment of either description for a term which shall not be less than five years, but which may extend to ten years, and shall also be liable to fine.

.—In this section, "sexual intercourse" shall mean any of the acts mentioned in clauses ( ) to ( ) of section 375.

. —For the purposes of this section, to section 375 shall also be applicable.

.—"Superintendent", in relation to a jail, remand home or other place of custody or a women's or children's institution, includes a person holding any other office in such jail, remand home, place or institution by virtue of which such person can exercise any authority or control over its inmates.

.—The expressions "hospital" and "women's or children's institution" shall respectively have the same meaning as in to sub-section ( ) of section 376.]

——

1. Inserted by Section 9 of 'The Criminal Law (Amendment) Act, 2013'.

Section 376D. Intercourse by any member of the management or staff of a hospital with any woman in that hospital

'[376D. Where a woman is raped by one or more persons constituting a group or acting in furtherance of a common intention, each of those persons shall be deemed to have committed the offence of rape and shall be punished with rigorous imprisonment for a term which shall not be less than twenty years, but which may extend to life which shall mean imprisonment for the remainder of that person's natural life, and with fine:

Provided that such fine shall be just and reasonable to meet the medical expenses and rehabilitation of the victim:

Provided further that any fine imposed under this section shall be paid to the victim.]

——

1. Inserted by Section 9 of 'The Criminal Law (Amendment) Act, 2013'.

1[376E. Whoever has been previously convicted of an offence punishable under section 376 or section 376A or section 376D and is subsequently convicted of an offence punishable under any of the said sections shall be punished with imprisonment for life which shall mean imprisonment for the remainder of that person's natural life, or with death.']

1. Inserted by Section 9 of 'The Criminal Law (Amendment) Act, 2013'.

Section 377. Unnatural offences

Whoever voluntarily has carnal intercourse against the order of nature with any man, woman or animal, shall be punished with '[imprisonment for life], or with imprisonment of either description for term which may extend to ten years, and shall also be liable to fine.

Explanation

Penetration is sufficient to constitute the carnal intercourse necessary to the offence described in this section.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-Bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 378. Theft

Whoever, intending to take dishonestly any moveable property out of the possession of any person without that person's consent, moves that property in order to such taking, is said to commit theft.

Explanation 1

A thing so long as it is attached to the earth, not being movable property, is not the subject of theft; but it becomes capable of being the subject of theft as soon as it is severed from the earth.

Explanation 2

A moving effected by the same act which affects the severance may be a theft.

Explanation 3

A person is said to cause a thing to move by removing an obstacle which prevented it from moving or by separating it from any other thing, as well as by actually moving it.

Explanation 4

A person, who by any means causes an animal to move, is said to move that animal, and to move everything which, in consequence of the motion so caused, is moved by that animal.

Explanation 5

The consent mentioned in the definition may be express or implied, and may be given either by the person in possession, or by any person having for that purpose authority either express or implied.

Illustrations

(a) A cuts down a tree on Z's ground, with the intention of dishonestly taking the tree out of Z's possession without Z's consent. Here, as soon as A has severed the tree in order to such taking, he has committed theft.

(b) A puts a bait for dogs in his pocket, and thus induces Z's dog to follow it. Here, if A's intention be dishonestly to take the dog out of Z's possession without Z's consent. A has committed theft as soon as Z's dog has begun to follow A.

(c) A meets a bullock carrying a box of treasure. He drives the bullock in a certain direction, in order that he may dishonestly take the treasure. As soon as the bullock begins to move, A has committed theft of the treasure.

(d) A, being Z's servant, and entrusted by Z with the care of Z's plate, dishonestly runs away with the plate, without Z's consent. A has committed theft.

(e) Z, going on a journey, entrusts his plate to A, the keeper of the warehouse, till Z shall return. A carries the plate to a goldsmith and sells it. Here the plate was not in Z's possession. It could not therefore be taken out of Z's possession, and A has not committed theft, though he may have committed criminal breach of trust.

(f) A finds a ring belonging to Z on a table in the house which Z occupies. Here the ring is in Z's possession, and if A dishonestly removes it, A commits theft.

(g) A finds a ring lying on the highroad, not in the possession of any person. A by taking it, commits no theft, though he may commit criminal misappropriation of property.

(h) A sees a ring belonging to Z lying on a table in Z's house. Not venturing to misappropriate the ring immediately for fear of search and detection, A hides the ring in a place where it is highly improbable that it will ever be found by Z, with the intention of taking the ring from the hiding place and selling it when the loss is forgotten. Here A, at the time of first moving the ring, commits theft.

(i) A delivers his watch to Z, a jeweller, to be regulated. Z carries it to his shop. A, not owing to the jeweller any debt for which the jeweller might lawfully detain the watch as a security, enters the shop openly, takes his watch by force out of Z's hand, and carries it away. Here A, though he may have committed criminal trespass and assault, has not committed theft, in as much as what he did was not done dishonestly.

(j) If A owes money to Z for repairing the watch, and if Z retains the watch lawfully as a security for the debt, and A takes the watch out of Z's possession, with the intention of depriving Z of the property as a security for his debt, he commits theft, in as much as he takes it dishonestly.

(k) Again, if A, having pawned his watch to Z, takes it out of Z's possession without Z's consent, not having paid what he borrowed on the watch, he commits theft, though the watch is his own property in as much as he takes it dishonestly.

(l) A takes an article belonging to Z out of Z's possession, without Z's consent, with the intention of keeping it until he obtains money from Z as a reward for its restoration. Here A takes dishonestly; A has therefore committed theft.

(m) A, being on friendly terms with Z, goes into Z's library in Z's absence, and takes away a book without Z's express consent for the purpose merely of reading it, and with the intention of returning it. Here, it is probable that A may have conceived that he had Z's implied consent to use Z's book. If this was A's impression, A has not committed theft.

(n) A asks charity from Z's wife. She gives A money, food and clothes, which A knows to belong to Z her husband. Here it is probable that A may conceive

that Z's wife is authorised to give away alms. If this was A's impression, A has not committed theft.

(o) A is the paramour of Z's wife. She gives a valuable property, which A knows to belong to her husband Z, and to be such property as she has no authority from Z to give. If A takes the property dishonestly, he commits theft.

(p) A, in good faith, believing property belonging to Z to be A's own property, takes that property out of B's possession. Here, as A does not take dishonestly, he does not commit theft.

Section 379. Punishment for theft

Whoever commits theft shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years, or fine, or both—Cognizable—Non-bailable—Triable by any Magistrate—Compoundable by the owner of the property stolen with the permission of the court.

Section 380. Theft in dwelling house, etc

Whoever commits theft in any building, tent or vessel, which building, tent or vessel is used as a human dwelling, or used for the custody of property, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by any Magistrate—Non-compoundable.

STATE AMENDMENT

Tamil Nadu

Section 380 shall be renumbered as sub-section (1) of that section and after sub-section (1) as so renumbered, the following sub-section shall be added, namely:

"(2) Whoever commits theft in respect of any idol or icon in any building used as a place of worship shall be punished with rigorous imprisonment for a term which shall not be less than two years but which may extend to three years and with fine which shall not be less than two thousand rupees:

Provided that the court may, for adequate and special reasons to be mentioned in the judgment impose a sentence of imprisonment for a term of less than two years."

[Vide Tamil Nadu Act 28 of 1993, sec. 2 (w.e.f. 13-7-1993)].Section 381. Theft by clerk or servant of property in possession of master

Whoever, being a clerk or servant, or being employed in the capacity of a clerk or servant, commits theft in respect of any property in the possession of his master or employer, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by any Magistrate—Compounded by the owner of the property stolen with the permission of the court.

Section 382. Theft after preparation made for causing death, hurt or restraint in order to the committing of the theft

Whoever commits theft, having made preparation for causing death, or hurt, or restrain, or fear of death, or of hurt, or of restraint, to any person, in order to the committing of such theft, or in order to the effecting of his escape after the committing of such theft, or in order to the retaining of property taken by such theft, shall be punished with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

Illustrations

(a) A commits theft on property in Z's possession; and, while committing this theft, he has a loaded pistol under his garment, having provided this pistol for the purpose of hurting Z in case Z should resist. A has committed the offence defined in this section.

(b) A picks Z's pocket, having posted several of his companions near him, in order that they may restrain Z, if Z should perceive what is passing and should resist, or should attempt to apprehend A. A has committed the offence defined in this section

CLASSIFICATION OF OFFENCE

Punishment—Rigorous imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 383. Extortion

Whoever intentionally puts any person in fear of any injury to that person, or to any other, and thereby dishonestly induces the person so put in fear to deliver to any property or valuable security, or anything signed or sealed which may be converted into a valuable security, commits “extortion”.

Illustrations

(a) A threatens to publish a defamatory libel concerning Z unless Z give him money. He thus induces Z to give him money. A has committed extortion.

(b) A threatens Z that he will keep Z’s child in wrongful confinement, unless Z will sign and deliver to A promissory note binding Z to pay certain monies to A. Z signs and delivers the note. A has committed extortion.

(c) A threatens to send club-men to plough up Z’s field unless Z will sign and deliver to B bond binding Z under a penalty to deliver certain produce to B, and thereby induces Z to sing and deliver the bond. A has committed extortion.

(d) A, by putting Z in fear of grievous hurt, dishonestly induces Z to sign or affix his seal to a blank paper and deliver it to A. Z signs and delivers the paper to A. Here, as the paper so signed may be converted into a valuable security. A has committed extortion.

Section 384. Punishment for extortion

Whoever commits extortion shall be punished with imprisonment of either description for a term which may extend to three years, or with fine or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years, or fine, or both—Cognizable—Non-bailable—Triable by any Magistrate—Non-compoundable.

Section 385. Putting person in fear of injury in order to commit extortion

Whoever, in order to the committing of extortion, puts any person in fear, or attempts to put any person in fear, of any injury, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 386. Extortion by putting a person in fear of death or grievous hurt

Whoever commits extortion by putting any person in fear of death or of grievous hurt o that person or to any other, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable —Triable by Magistrate of the first class—Non-compoundable.

Section 387. Putting person in fear of death or of grievous hurt, in order to commit extortion

Whoever, in order to the committing of extortion, puts or attempts to put any person in fear of death or of grievous hurt to that person or to any other, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 388. Extortion by threat of accusation of an offence punishable with death or imprisonment for life, etc.

Whoever commits extortion by putting any person in fear of an accusation against that person or any other, of having committed or attempted to commit any offence punishable with death, or with '[imprisonment for life], or with imprisonment for a term which may extend to ten years or of having attempted to induce any other person to commit such offence, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine; and, if the offence be one punishable under section 377 of this Code, may be punished with '[imprisonment for life].

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 389. Putting person in fear of accusation of offence, in order to commit extortion

Whoever, in order to the committing of extortion, puts or attempts to put any person in fear of an accusation, against that person or any other, of having committed, or attempted to commit an offence punished with death or with ¹[imprisonment for life], or with imprisonment for a term which may extend to ten years, shall be punished with imprisonment of either description for term which may extend to ten years, and shall also be liable to fine; and, if the offence be punished under section 377 of this Code, may be punished with ¹[imprisonment for life].

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable —Triable by Magistrate of the first class—Non-compoundable.

Para II

Punishment—Imprisonment for life—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 390. Robbery

In all robbery there is either theft or extortion.

When theft is robbery.—Theft is “robbery” if, in order to the committing of the theft, or in committing the theft, or in carrying away or attempting to carry away property obtained by the theft, the offender, for that end, voluntarily causes or attempts to cause to any person death or hurt or wrongful restraint, or fear of instant death or of instant hurt, or of instant wrongful restraint.

When extortion is robbery.—Extortion is “robbery” if the offender, at the time of committing the extortion, is in the presence of the person put in fear, and commits the extortion by putting that person in fear of instant death, of instant hurt, or of instant wrongful restraint to that person or to some other person, and, by so putting in fear, induces the person so put in fear then and there to deliver up the thing extorted.

Explanation

The offender is said to be present if he is sufficiently near to put the other person in fear of instant death, of instant hurt, or of instant wrongful restraint.

Illustrations

(a) A holds Z down and fraudulently takes Z's money and jewels from Z's clothes without Z's consent. Here A has committed theft, and in order to the committing of that theft, has voluntarily caused wrongful restraint to Z. A has therefore committed robbery.

(b) A meets Z on the high roads, shows a pistol, and demands Z's purse. Z in consequence, surrenders his purse. Here A has extorted the purse from Z by putting him in fear of instant hurt, and being at the time of committing the extortion in his presence. A has therefore committed robbery.

(c) A meets Z and Z's child on the high road. A takes the child and threatens to fling it down a precipice, unless Z delivers his purse. Z, in consequence delivers his purse. Here A has extorted the purse from Z, by causing Z to be in fear of instant hurt to the child who is there present. A has therefore committed robbery on Z.

(d) A obtains property from Z by saying—"Your child is in the hands of my gang, and will be put to death unless you send us ten thousand rupees". This is extortion, and punishable as such; but it is not robbery, unless Z is put in fear of the instant death of his child.

Section 391. Dacoity

When five or more persons conjointly commit or attempt to commit a robbery, or where the whole number of persons conjointly committing or attempting to commit a robbery, and persons present and aiding such commission or attempt, amount to five or more, every person so committing, attempting or aiding, is said to commit "dacoity".

Section 392. Punishment for robbery

Whoever commits robbery shall be punished with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine; and, if the robbery be committed on the highway between sunset and sunrise, the imprisonment may be extended to fourteen years.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Rigorous imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Para II

Punishment—Rigorous imprisonment for 14 years, and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 393. Attempt to commit robbery

Whoever attempts to commit robbery shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Rigorous imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 394. Voluntarily causing hurt in committing robbery

If any person, in committing or in attempting to commit robbery, voluntarily causes hurt, such person, and any other person jointly concerned in committing or attempting to commit such robbery, shall be punished with '[imprisonment for life], or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or rigorous imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 395. Punishment for dacoity

Whoever commits dacoity shall be punished with '[imprisonment for life], or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or rigorous imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec.117 and sch., for “transportation for life” (w.e.f.1-1-1956).

Section 396. Dacoity with murder

If any one of five or more persons, who are conjointly committing dacoity, commits murder in so committing dacoity, every one of those persons shall be

punished with death, or [1][imprisonment for life], or rigorous imprisonment for term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Death, imprisonment for life, or rigorous imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 397. Robbery, or dacoity, with attempt to cause death or grievous hurt

If, at the time of committing robbery or dacoity, the offender uses any deadly weapon, or causes grievous hurt to any person, or attempts to cause death or grievous hurt to any person, the imprisonment with which such offender shall be punished shall not be less than seven years.

CLASSIFICATION OF OFFENCE

Punishment—Rigorous imprisonment for not less than 7 years—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

Section 398. Attempt to commit robbery or dacoity when armed with deadly weapon

If, at the time of attempting to commit robbery or dacoity, the offender armed with any deadly weapon, the imprisonment with which such offender shall be punished shall not be less than seven years.

CLASSIFICATION OF OFFENCE

Punishment—Rigorous imprisonment for not less than 7 years—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

Section 399. Making preparation to commit dacoity

Whoever makes, any preparation for committing dacoity, shall be punished with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Rigorous imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

Section 400. Punishment for belonging to gang of dacoits

Whoever, at any time after the passing of this Act, shall belong to a gang of persons associated for the purpose of habitually committing dacoity, shall be

punished with [1][imprisonment for life], or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or rigorous imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 401. Punishment for belonging to gang of thieves

Whoever, at any time after the passing of this Act, shall belong to any wandering or other gang of persons associated for the purpose of habitually committing theft or robbery, and not being a gang of thugs or dacoits, shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Rigorous imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 402. Assembling for purpose of committing dacoity

Whoever, at any time after the passing of this Act, shall be one of five or more persons assembled for the purpose of committing dacoity, shall be punished with rigorous imprisonment for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Rigorous imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

Section 403. Dishonest misappropriation of property

Whoever dishonestly mis-appropriates or converts to his own use any movable property, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

Illustrations

(a) A takes property belonging to Z out of Z's possession, in good faith, believing, at any time when he takes it, that the property belongs to himself. A

is not guilty of theft; but if A, after discovering his mistake, dishonestly appropriates the property to his own use, he is guilty of an offence under this section.

(b) A, being on friendly terms with Z, goes into Z's library in Z's absence, and takes away a book without Z's express consent. Here, if A was under the impression that he had Z's implied consent to take the book for the purpose of reading it, A has not committed theft. But, if A afterwards sells the book for his own benefit, he is guilty of an offence under this section.

(c) A and B, being joint owners of a horse, A takes the horse out of B's possession, intending to use it. Here, as A has a right to use the horse, he does not dishonestly misappropriate it. But, if A sells the horse and appropriates the whole proceeds to his own use, he is guilty of an offence under this section.

Explanation I

A dishonest misappropriation for a time only is a misappropriation with the meaning of this section.

Illustration
A finds a Government promissory note belonging to Z, bearing a blank endorsement. A, knowing that the note belongs to Z, pledges it with a banker as a security for a loan, intending at a future time to restore it to Z. A has committed an offence under this section.

Explanation 2

A person who finds property not in the possession of any other person, and takes such property for the purpose of protecting if for, or of restoring it to, the owner does not take or misappropriate it dishonestly, and is not guilty of an offence; but he is guilty of the offence above defined, if he appropriates it to his own use, when he knows or has the means of discovering the owner, or before he has used reasonable means to discover and give notice to the owner and has kept the property a reasonable time to enable the owner to claim it.

What are reasonable means or what is a reasonable time in such a case, is a question of fact.

It is not necessary that the finder should know who is the owner of the property, or that any particular person is the owner of it; it is sufficient if, at the time of appropriating it, he does not believe it to be his own property, or in good faith believe that the real owner cannot be found.

Illustrations

(a) A finds a rupee on the high road, not knowing to whom the rupee belongs. A picks up the rupee. Here A has not committed the offence defined in this section.

(b) A finds a letter on the road, containing a bank note. From the direction and contents of the letter he learns to whom the note belongs. He appropriates the note. He is guilty of an offence under this section.

(c) A finds a cheque payable to bearer. He can form no conjecture as to the person who has lost the cheque. But the name of the person, who has drawn the cheque, appears. A knows that this person can direct him to the person in whose favour the cheque was drawn. A appropriates the cheque without attempting to discover the owner. He is guilty of an offence under this section.

(d) A sees Z drop his purse with money in it. A picks up the purse with the intention of restoring it to Z, but afterwards appropriates it to his own use. A has committed an offence under this section.

(e) A finds a purse with money, not knowing to whom it belongs; he afterwards discovers that it belongs to Z, and appropriates it to his own use. A is guilty of an offence under this section.

(f) A finds a valuable ring, not knowing to whom it belongs. A sells it immediately without attempting to discover the owner. A is guilty of an offence under this section.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Compoundable by the owner of the property misappropriated with the permission of the court.

Section 404. Dishonest misappropriation of property possessed by deceased person at the time of his death

Whoever dishonestly misappropriates or converts to his own use property, knowing that such property was in the possession of a deceased person at the time of that person's decease, and has not since been in the possession of any person legally entitled to such possession, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine; and if the offender at the time of such

person's decease was employed by him as a clerk or servant, the imprisonment may extend to seven years.

Illustration
Z dies in possession of furniture and money. His servant A, before the money comes into the possession of any person entitled to such possession, dishonestly misappropriates it. A has committed the offence defined in this section.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 3 years and fine—Non-Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

If by clerk or person employed by deceased:

Punishment—Imprisonment for 7 years and fine—Non-Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 405. Criminal breach of trust
Whoever, being in any manner entrusted with property, or with any dominion over property, dishonestly misappropriates or converts to his own use that property, or dishonestly uses or disposes of that property in violation of any direction of law prescribing the mode in which such trust is to be discharged, or of any legal contract, express or implied, which he has made touching the discharge of such trust, or willfully suffers any other person so to do, commits "criminal breach of trust".

[1][Explanation [2][1]
A person, being an employer [3][of an establishment whether exempted under section 17 of the Employees' Provident funds and Miscellaneous Provisions Act, 1952 (19 of 1952), or not] who deducts the employee's contribution from the wages payable to the employee for credit to a Provident Fund or Family Pension Fund established by any law for the time being in force, shall be deemed to have been entrusted with the amount of the contribution so deducted by him and if he makes default in the payment of such contribution to said Fund in violation of the said law, shall be deemed to have dishonestly used the amount of the said contribution in violation of a direction of law as aforesaid.]
[1][Explanation 2
A person, being an employer, who deducts the employees' contribution from the wages payable to the employee for credit to the Employees' State Insurance Fund held and administered by the Employees' State Insurance

Corporation established under the Employees' State Insurance Act, 1948 (34 of 1948), shall be deemed to have been entrusted with the amount of the contribution so deducted by him and if he makes default in the payment of such contribution to the said Fund in violation of the said Act, shall be deemed to have dishonestly used the amount of the said contribution in violation of a direction of law as aforesaid.]

Illustrations

(a) A, being executor to the will of a deceased person, dishonestly disobeys the law which directs him to divide the effects according to the will, and appropriate them to his own use. A has committed criminal breach of trust.

(b) A is a warehouse-keeper. Z gong on a Journey, entrusts his furniture to A, under a contract that it shall be returned on payment of a stipulated sum for warehouse room. A dishonestly sells the goods. A has committed criminal breach of trust.

(c) A, residing in Calcutta, is agent for Z, residing at Delhi. There is an express or implied contract between A and Z, that all sums remitted by Z to A shall be invested by A, according to Z's direction. Z remits a lakh of rupees to A, with directions to A to invest the same in Company's paper. A dishonestly disobeys the direction and employs the money in his own business. A has committed criminal breach of trust.

(d) But if A, in the last illustration, not dishonestly but in good faith, believing that it will be more for Z's advantage to hold shares in the Bank of Bengal, disobeys Z's directions, and buys shares in the Bank of Bengal, for Z, instead of buying Company's paper, here, though Z should suffer loss, and should be entitled to bring a civil action against A, on account of that loss, yet A, not having acted dishonestly, has not committed criminal breach of trust.

(e) A, a revenue-officer, is entrusted with public money and is either directed by law, or bound by a contract, express or implied, with the Government, to pay into a certain treasury all the public money which he holds. A dishonestly appropriates the money. A has committed criminal breach of trust.

(f) A, a carrier, is entrusted by Z with Property to be carried by land or by water. A dishonestly misappropriates the property. A has committed criminal breach of trust.

1. Ins. by Act 40 of 1973, sec. 9 (w.e.f. 1-11-1973).

2. Explanation renumbered as Explanation 1 by Act 38 of 1975, sec. 9 (w.e.f. 1-9-1975).

3. Ins. by Act 33 of 1988, sec. 27 (w.e.f. 1-8-1988).

4.Ins. by Act 38 of 1975, sec. 9 (w.e.f. 1-9-1975).

Section 406. Punishment for criminal breach of trust

Whoever commits criminal breach of trust shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years and fine, or both—Cognizable—Non-bailable—Triable by Magistrate of the first class—Compoundable by the owner of the property in respect of which breach of trust has been committed, with the permission of the court.

Section 407. Criminal breach of trust by carrier, etc.

Whoever, being entrusted with property as a carrier, wharfinger or warehouse-keeper, commits criminal breach of trust in respect of such property, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Compoundable by the owner of the property in respect of which the breach of trust has been committed with the permission of the court.

Section 408. Criminal breach of trust by clerk or servant

Whoever, being a clerk or servant or employed as a clerk or servant, and being in any manner entrusted in such capacity with property, or with any dominion over property, commits criminal breach of trust in respect of that property, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Compounded by the owner of the

property in respect of which the breach of trust has been committed with the permission of the court.

Section 409. Criminal breach of trust by public servant, or by banker, merchant or agent
Whoever, being in any manner entrusted with property, or with any dominion over property in his capacity of a public servant or in the way of his business as a banker, merchant, factor, broker, attorney or agent, commits breach of trust in respect of that property, shall be punished with [1][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 410. Stolen Property
Property, the possession whereof has been transferred by theft, or by extortion, or by robbery, and property which has been criminally misappropriated or in respect of which [1][***] criminal breach of trust has been committed, is designed as "stolen property", [2][whether the transfer has been made, or the misappropriation or breach of trust has been committed, within or without [3][India]]. But, if such property subsequently comes into the possession of a person legally entitled to the possession thereof, it then ceases to be stolen property.
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1. The words "the" and "offence of" rep. by Act 12 of 1891, sec. 2 and Sch. I and Act 8 of 1882, sec. 9, respectively.

2. Ins. by Act 8 of 1882, sec. 9.

3. The words "British India" have successively been subs. by the A.O. 1948, the A.O. 1950 and Act 3 of 1951, sec. 3 and Sch., to read as above.

Section 411. Dishonestly receiving stolen property
Whoever dishonestly receives or retains any stolen property, knowing or having reason to believe the same to be stolen property, shall be punished with

imprisonment of either description for a term which may extend to three years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years, or fine, or both—Cognizable—Non-bailable—Triable by any Magistrate—Compoundable by the owner of the property stolen with the permission of the court.

STATE AMENDMENT

Tamil Nadu:

Section 411 shall be renumbered as sub-section (1) of that section and after sub-section (1) as so renumbered, the following sub-section shall be added, namely:

"(2) Whoever dishonestly receives or retains any idol or icon stolen from any building used as a place of worship knowing or having reason to believe the same to be stolen property shall, notwithstanding anything contained in sub-section (1), be punished with rigorous imprisonment which shall not be less than two years but which shall not be less than two thousand rupees:

Provided that the court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment for a term of less than two years.".

[Vide Tamil Nadu Act 28 of 1993, sec. 3 (w.e.f. 13-7-1993)].

Section 412. Dishonestly receiving property stolen in the commission of a dacoity

Whoever dishonestly receives or retains any stolen property, the possession whereof he knows or has reason to believe to have been transferred by the commission of dacoity, or dishonestly receives from a person, whom he knows or has reason to believe to belong or to have belonged to a gang of dacoity, property which he knows or has reason to believe to have been stolen, shall be punished with [1][imprisonment for life], or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or rigorous imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 413. Habitually dealing in stolen property

Whoever habitually receives or deals in property which he knows or has reason to believe to be stolen property, shall be punished with [1][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 414. Assisting in concealment of stolen property

Whoever voluntarily assists in concealing or disposing of or making away with property which he knows or has reason to believe to be stolen property, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years, or fine, or both—Cognizable—Non-bailable—Triable by any Magistrate—Compounded by the owner of the property stolen with the permission of the court.

Section 415. Cheating

Whoever, by deceiving any person, fraudulently or dishonestly induces the person so deceived to deliver any property to any person, or to consent that any person shall retain any property, or intentionally induces the person so deceived to do or omit to do anything which he would not do or omit if he were not so deceived, and which act or omission causes or is likely to cause damage or harm to that person in body, mind, reputation or property, is said to "cheat".

Explanation

A dishonest concealment of facts is deception within the meaning of this section.

Illustrations

(a) A, by falsely pretending to be in the Civil Service, intentionally deceives Z, and thus dishonestly induces Z to let him have on credit goods for which he does not mean to pay. A cheats.

(b) A, by putting a counterfeit make on an article, intentionally deceives Z into a belief that this article was made by a certain celebrated manufacturer, and thus dishonestly induces Z to buy and pay for the article. A cheats.

(c) A, by exhibiting to Z a false sample of an article, intentionally deceives Z into believer that the article corresponds with the sample, and thereby, dishonestly induces Z to buy and pay for the article. A cheats.

(d) A, by tendering in payment for an article a bill on a house with which A keeps on money, and by which A expects that the will be dishonored, intentionally deceives Z, and thereby dishonestly induces Z to deliver the article, intending not to pay for it. A cheats.

(e) A, by pledging as diamonds article which he knows are not diamonds, intentionally deceives Z, and thereby dishonestly induces Z to lend money. A cheats.

(f) A intentionally deceives Z into a belief that A means to repay any money that Z may led to him and thereby dishonestly induces Z to lend him money. A not intending to repay it A cheats.

(g) A intentionally deceives Z into a belief that A means to deliver to Z a certain quantity of indigo plant which he does not intend to deliver and thereby dishonestly induces Z to advance money upon the faith of such deliver. A cheats; but if A, at the of obtaining the money, intends to deliver the indigo plant, and afterwards breaks his contract and does not deliver it, he does not cheat, but is liable only to a civil action for breach of contract.

(h) A intentionally deceives Z into a belief that A has performed A's part of a contract made with Z, which he has not performed, and thereby dishonestly induces Z to pay money. A cheats.

(i) A sells and coveys an estate to B.A, knowing that in consequence of such sale he has no right to the property, sells or mortgages the same to Z, without disclosing the fact of the previous sale and conveyance to B, and receives the purchase or mortgage money for Z. A cheats.

Section 416. Cheating by personation

A person is said to "cheat by personation" if he cheats by pretending to be some other person, or by knowingly substituting one person for another, or representing that he or any other person is a person other than he or such other person really is.

Explanation

The offence is committed whether the individual personated is a real or imaginary person.

Illustration
(a) A cheats by pretending to be a certain rich banker of the same name. A cheats by personation.

(b) A cheats by pretending to be B, a person who is deceased. A cheats by personation.

Section 417. Punishment for cheating
Whoever cheats shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 1 year, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Compoundable by the person cheated with the permission of the court.

Section 418. Cheating with knowledge that wrongful loss may ensue to person whose interest offender is bound to protect
Whoever cheats with the knowledge that he is likely thereby to cause wrongful loss to a person whose interest in the transaction to which the cheating relates, he was bound, either by law, or by a legal contract, to protect, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 3 years, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Compoundable by the person cheated with the permission of the court.

Section 419. Punishment for cheating by personation
Whoever cheats by personation shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Compoundable by the person cheated with the permission of the court.

Section 420. Cheating and dishonestly inducing delivery of property

Whoever cheats and thereby dishonestly induces the person deceived any property to any person, or to make, alter or destroy the whole or any part of a valuable security, or anything which is signed or sealed, and which is capable of being converted into a valuable security, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Compoundable by the person cheated with the permission of the court.

Section 421. Dishonest or fraudulent removal or concealment of property to prevent distribution among creditors

Whoever dishonestly or fraudulently removes, conceals or delivers to any person, or transfer or causes to be transferred to any person, without adequate consideration, any property, intending thereby to prevent, or knowing it to be likely that he will thereby prevent, the distribution of that property according to law among his creditors or the creditors of any other person, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Compoundable by the creditor who are affected thereby with the permission of the court.

Section 422. Dishonestly or fraudulently preventing debt being available for creditors

Whoever dishonestly or fraudulently prevents any debt or demand due to himself or to any other person from being made available according to law for payment of his debts or the debts of such other person, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Compoundable by the creditors who are affected thereby with the permission of the court.

Section 423. Dishonest or fraudulent execution of deed of transfer containing false statement of consideration

Whoever dishonestly or fraudulently signs, executes or becomes a party to any deed or instrument which purports to transfer or subjects to any charge any property , or any interest therein, and which contains any false statement relating to the consideration for such transfer or charge, or relating to the person or persons for whose use or benefit it is really intended to operate, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine , or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Compoundable by the person affected thereby with the permission of the court.

Section 424. Dishonest or fraudulent removal or concealment of property

Whoever dishonestly or fraudulently conceals or removes any property of himself or any other person, or dishonestly or fraudulently assists in the concealment or removal thereof, or dishonestly releases any demand or claim to which he is entitled, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Compoundable by the person affected thereby with the permission of the court.

Section 425. Mischief

Whoever with intent to cause, or knowing that he is likely to cause, wrongful loss or damage to the public or to any person, cause the destruction of any property, or any such change in any property or in the situation thereof as destroys or diminishes its value or utility, or affects it injuriously, commits “mischief”.

Explanation 1

It is not essential to the offence of mischief that the offender should intend to cause loss or damage to the owner of the property injured or destroyed. It is sufficient if he intends to cause, or knows that he is likely to cause, wrongful loss or damage to any person by injuring any property, whether it belongs to that person or not.

Explanation 2

Mischief may be committed by an act affecting property belonging to the person who commits the act, or to that person and others jointly.

Illustrations

(a) A voluntarily burns a valuable security belonging to Z intending to cause wrongful loss to Z. A has committed mischief.

(b) A introduces water into an ice-house belonging to Z and thus causes the ice to melt, intending wrongful loss to Z. A has committed mischief.

(c) A voluntarily throws into a river a ring belonging to Z, with the intention of thereby causing wrongful loss to Z. A has committed mischief.

(d) A, knowing that his effects are about to be taken in execution in order to satisfy a debt due from him to Z, destroys those effects, with the intention of thereby preventing Z from obtaining satisfaction of the debt, and of thus causing damage to Z. A has committed mischief.

(e) A, having insured a ship, voluntarily causes the same to be cast away, with the intention of causing damage to the under-writers. A has committed mischief.

(f) A causes a ship to be cast away, intending thereby to cause damage to Z who has lent money on bottomry on the ship. A has committed mischief.

(g) A, having joint property with Z in a horse, shoots the horse, intending thereby to cause wrongful loss to Z. A has committed mischief.

(h) A causes cattle to enter upon a field belonging to Z, intending to cause and knowing that he is likely to cause damage to Z's crop. A has committed mischief.

Section 426. Punished for mischief

Whoever commits mischief shall be punished with imprisonment of either description for a term which may extend to three months, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 months, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Compoundable by the person to whom the loss or damage is caused.

Section 427. Mischief causing damage to the amount of fifty rupees

Whoever commits mischief and thereby causes loss or damage to the amount of fifty rupees or upwards, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Compoundable by the person to whom the loss or damage is caused.

Section 428. Mischief by killing or maiming animal of the value of ten rupees

Whoever commits mischief by killing, poisoning, maiming or rendering useless any animal or animals of the value of ten rupees or upwards, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Compoundable by the owner of the animal with the permission of the court.

Section 429. Mischief by killing or maiming cattle, etc., of any value or any animal of the value of fifty rupees

Whoever commits mischief by killing, poisoning, maiming or rendering useless, any elephant, camel, horse, mule, buffalo, bull, cow or ox, whatever may be the value thereof, or any other animal of the value of fifty rupees or upwards, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 5 years, or fine, or both—Cognizable—Bailable—Triable by any Magistrate of the first class—Compoundable by the owner of the cattle or animal with the permission of the court.

Section 430. Mischief by injury to works of irrigation or by wrongfully diverting water

Whoever commits mischief by doing any act which causes, or which he knows to be likely to cause, a diminution of the supply of the water for agricultural purposes, or for food or drink for human beings or for animals which are property, or for cleanliness or for carrying on any manufacture, shall be punished with imprisonment of either description far a term which may extend to five years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 5 years, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Compoundable by the person to whom the loss or damage is caused with the permission of the court.

Section 431. Mischief by injury to public road, bridge, river or channel

Whoever commits mischief by doing any act which renders or which he knows to be likely to render any public road, bridge, navigable river or navigable channel, natural or artificial, impassable or less safe for traveling or conveying property, shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 5 years, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 432. Mischief by causing inundation or obstruction to public drainage attended with damage

Whoever commits mischief by doing any act which causes or which he knows to be likely to cause an inundation or an obstruction to any public drainage attended with injury or damage, shall be punished with imprisonment of either description for term which may extend to five years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 5 years, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 433. Mischief by destroying, moving or rendering less useful a light-house or sea-mark

Whoever commits mischief by destroying or moving any light-house or other light used as a sea-mark or any sea-mark or buoy or other thing placed as a guide for navigators, or by any act which renders any such light-house, sea-mark, buoy or other such thing as aforesaid less useful as a guide for navigators, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 434. Mischief by destroying or moving, etc., a land- mark fixed by public authority

Whoever commits mischief by destroying or moving any land-mark fixed by the authority of a public servant, or by any act which renders such land-mark less useful as such, shall be punished with imprisonment of either description for a term which may extend to one years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 1 year, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 435. Mischief by fire or explosive substance with intent to cause damage to amount of one hundred or (in case of agricultural produce) ten rupees

Whoever commits mischief by fire or any explosive substance intending to cause, or knowing it to be likely that he will thereby cause, damage to any property to the amount of one hundred rupees or upwards ˈ[or(where the property is agricultural produce) ten rupees or upwards], shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

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1. Ins. by Act 8 of 1882, sec. 10.

Section 436. Mischief by fire or explosive substance with intent to destroy house, etc.
Whoever commits mischief by fire or any explosive substance, intending to cause, or knowing it to be likely that he will thereby cause, the destruction of any building which is ordinarily used as a place of worship or as a human dwelling or as a place for the custody of property, shall be punished with '[imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 437. Mischief with intent to destroy or make unsafe a decked vessel or one of twenty tons burden

Whoever commits mischief to any decked vessel or any vessel of a burden of twenty tons or upwards, intending to destroy or render unsafe, or knowing it to be likely that he will thereby destroy or render unsafe, that vessel, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

Section 438. Punishment for the mischief described in section 437 committed by fire or explosive substance

Whoever commits, or attempts to commit, by fire or any explosive substance, such mischief as is described in the last preceding section, shall be punished with '[imprisonment for life], or with imprisonment or either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 439. Punishment for intentionally running vessel aground or ashore with intent to commit theft, etc

Whoever intentionally runs any vessel aground or ashore, intending to commit theft of any property contained therein or to dishonestly misappropriate any such property, or with intent that such theft or misappropriation of property may be committed, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable —Triable by Court of Session—Non-compoundable.

Section 440. Mischief committed after preparation made for causing death or hurt

Whoever commits mischief having made preparation for causing to any person death, or hurt, or wrongful restraint, or fear of death or of hurt, or of wrongful restraint, shall be punished with imprisonment of either description for a term which may extend to five years and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 5 years and fine—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 441. Criminal trespass

Whoever enters into or upon property in the possession of another with intent to commit an offence or to intimidate, insult or annoy any person in possession of such property,

or having lawfully entered into or upon such property, unlawfully remains there with intent thereby to intimidate, insult or annoy any such person, or with intent to commit an offence, is said to commit “criminal trespass”.

STATE AMENDMENT

Orissa

For section 441, the following section shall be substituted, namely:
“441. Criminal Trespass.—Whoever enters into or upon property in possession of another with intent to commit an offence or to intimidate, insult or annoy any person in possession of such property,

or, having lawfully entered into or upon such property, unlawfully remains there with intent thereby to intimidate, insult or annoy any such person or with intent to commit an offence,

or having lawfully entered into or upon such property, remains there with the intention of taking unauthorised possession or making unauthorised use of such property and fails to withdraw such property or its possession or use, when called upon to do so by that another person by notice in writing, duly served on him, is said to have commit “criminal trespass.“

[Vide Orissa Act 22 of 1986, sec. 2 (w.e.f. 6-12-1986)].

Uttar Pradesh

For section 441, substitute the following:
“441. Criminal Trespass.—Whoever enters into or upon property in possession of another with intent to commit an offence or to intimidate, insult or annoy and person in possession of such property, or having lawfully entered into or upon such property, unlawfully remains therewith intent thereby to intimidate, insult or annoy any such person, or with intent to commit an offence,

or, having entered into or upon such property, whether before or after the coming into force of the Criminal Law (U.P. Amendment) Act, 1961, with the intention of taking unauthorised possession or making unauthorised use of such property fails to withdraw from such property or its possession or use, when called upon to do so by that another person by notice in writing, duly served upon him, by the date specified in the notice,

is said to commit “criminal trespass”.

[Vide Uttar Pradesh Act 31 of 1961, sec. 2 (w.e.f. 13-11-1961)].

Section 442. House trespass

Whoever commits criminal trespass by entering into or remaining in any building, tent or vessel used as a human dwelling or any building used as a place for worship, or as a place for the custody of property, is said to commit “house-trespass”.

Explanation

The introduction of any part of the criminal trespasser’s body is entering sufficient to constitute house-trespass.

Section 443. Lurking house-trespass

Whoever commits house-trespass having taken precautions to conceal such house-trespass from some person who has a right to exclude or eject the trespasser from the building, tent or vessel which is the subject of the trespass, is said to commit “lurking house-trespass”.

Section 444. Lurking house-trespass by night

Whoever commits lurking house-trespass after sunset and before sunrise, is said to commit “lurking house-trespass by night”.

Section 445. Housing breaking

A person is said to commit “house-breaking” who commits house-trespass if he effects his entrance into the house or any part of it in any of the six ways hereinafter described; or if, being in the house or any part of it for the purpose of committing an offence, or, having committed an offence therein, he quits the house or any part of it in any of such six ways, that is to say

First.—If he enters or quits through a passage by himself, or by any abettor of the house-trespass, in order to the committing of the house-trespass.

Secondly.—If he enters or quits through any passage not intended by any person, other than himself or an abettor of the offence, for human entrance; or through any passage to which he has obtained access by scaling or climbing over any wall or building.

Thirdly.—If he enters or quits through any passage which he or any abettor of the house-trespass has opened, in order to the committing of the house-trespass by any means by which that passage was not intended by the occupier of the house to be opened.

Fourthly.—If he enters or quits by opening any lock in order to the committing of the house-trespass, or in order to the quitting of the house after a house-trespass.

Fifthly.—If he effects his entrance or departure by using criminal force or committing an assault or by threatening any person with assault.

Sixthly.—If he enters or quits by any passage which he knows to have been fastened against such entrance or departure, and to have been unfastened by himself or by an abettor of the house-trespass.

Explanation

Any out-house or building occupied with a house, and between which and such house there is an immediate internal communication, is part of the house within the meaning of this section.

Illustrations

(a) A commits house-trespass by making a hole through the wall of Z's house, and putting his hand through the aperture. This is house-breaking.

(b) A commits house-trespass by creeping into a ship at a port-hole between decks. This is house-breaking.

(c) A commits house-trespass by entering Z's house through a window. This is house-breaking.

(d) A commits house-trespass by entering Z's house through the door, having opened a door which was fastened. This is house-breaking.

(e) A commits house-trespass by entering Z's house through the door, having lifted a latch by putting a wire through a hole in the door. This is house-breaking.

(f) A finds the key of Z's house door, which Z had lost, and commits house-trespass by entering Z's house, having opened the door with that key. This is house-breaking.

(g) Z is standing in his doorway. A forces a passage by knocking Z down, and commits house-trespass by entering the house. This is house-breaking.

(h) Z, the door-keeper of Y, is standing in Y's doorway. A commits house-trespass by entering the house, having deterred Z from opposing him by threatening to beat him. This is house-breaking.

Section 446. House-breaking by night

Whoever commits house-breaking after sunset and before sunrise, is said to commit "house-breaking by night".

Section 447. Punishment for criminal trespass

Whoever commits criminal trespass shall be punished with imprisonment of either description for a term which may extend to three months, with fine or which may extend to five hundred rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 months, or fine of 500 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Compoundable by the person in possession of the property trespassed upon.

Section 448. Punishment for house-trespass

Whoever commits house-trespass shall be punished with imprisonment of either description for a term which may extend to one year, or with fine or which may extend to one thousand rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for one year, or fine of 1,000 rupees, or both—Cognizable—Bailable—Triable by any Magistrate—Compoundable by the person in possession of the property trespassed upon.

Section 449. House-trespass in order to commit offence punishable with death

Whoever commits house-trespass in order to the committing of any offence punishable with death, shall be punishable with [1][imprisonment for life], or with rigorous imprisonment for a term not exceeding ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or rigorous imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 450. House-trespass in order to commit offence punishable with imprisonment for life

Whoever commits house-trespass in order to the committing of any offence punishable with [1][imprisonment for life], shall be punished with imprisonment of either description for a term not exceeding ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 451. House-trespass in order to commit offence punishable with imprisonment

Whoever commits house-trespass in order to the committing of any offence punishable with imprisonment, shall be punished with imprisonment of either description for a term which may extend to two years, and shall also be liable

to fine; and if the offence intended to be committed is theft, the term of the imprisonment may be extended to seven years.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 2 years and fine—Cognizable—Bailable—Triable by any Magistrate.

Para II

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by any Magistrate—Compoundable by the person in possession of the house trespassed upon with the permission of the court.

Section 452. House-trespass after preparation for hurt, assault or wrongful restraint

Whoever commits house-trespass, having made preparation for causing hurt to any person or for assaulting any person, or for wrongfully restraining any person, or for putting any person in fear of hurt, or of assault, or of wrongful restraint, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by any Magistrate—Non-compoundable.

Section 453. Punishment for lurking house-trespass or house-breaking

Whoever commits lurking house-trespass or house-breaking, shall be punished with imprisonment of either description for a term which may extend to two years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years and fine—Cognizable—Non-bailable—Triable by any Magistrate—Non-compoundable.

Section 454. Lurking house-trespass or house-breaking in order to commit offence punishable with imprisonment

Whoever commits lurking house-trespass or house-breaking, in order to the committing of any offence punishable with imprisonment, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine ; and if the offence intended to be committed is theft, the term of the imprisonment may be extended to ten years.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 3 years and fine—Cognizable—Non-bailable—Triable by any Magistrate—Non-compoundable.

Para II

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compounded.

STATE AMENDMENT

Tamil Nadu

Section 454 shall be renumbered as sub-section (1) of that section and after sub-section (1) as so renumbered, the following sub-section shall be added, namely:

"(2) Whoever commits lurking house-trespass or house-breaking in any building used as a place of worship, in order to the committing of the offence of theft of any idol or icon from such building, shall notwithstanding anything contained in sub-section (1), be punished with rigorous imprisonment which shall not be less than three years but which may extend to ten years and with fine which shall not be less than five thousand rupees:

Provided that the court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment for a term of less than three years."

[Vide Tamil Nadu Act 28 of 1993, sec. 4 (w.e.f. 13-7-1993)].

Section 455. Lurking house-trespass or house-breaking after preparation for hurt, assault or wrongful restraint

Whoever commits lurking house-trespass, or house-breaking, having made preparation for causing hurt to any person, or for assaulting any person, or for wrongfully restraining any person, or for putting any person in fear of hurt or of assault or of wrongful restraint, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 456. Punishment for lurking house-trespass or house-breaking by night

Whoever commits lurking house-trespass by night, or house-breaking by night, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years and fine—Cognizable—Non-bailable—Triable by any Magistrate—Non-compoundable.

Section 457. Lurking house trespass or house-breaking by night in order to commit offence punishable with imprisonment

Whoever commits lurking house-trespass by night, or house-breaking by night, in order to the committing of any offence punishable with imprisonment, shall be punished with imprisonment of either description for a term which may extend to five years, and shall also be liable to fine; and, if the offence intended to be committed is theft, the term of the imprisonment may be extended to fourteen years.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 5 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Para II

Punishment—Imprisonment for 14 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class.

STATE AMENDMENT

Tamil Nadu

Section 457 shall be renumbered as sub-section (1) of that section and after sub-section (1) as so renumbered, the following sub-section shall be added, namely:

"(2) Whoever commits lurking house-trespass by night or house-breaking by night in any building used as a place of worship, in order to the committing of the offence of theft of any idol or icon from such building, shall, notwithstanding anything contained in sub-section (1), be punished with rigorous imprisonment which shall not be less than three years but which may extend to fourteen years and with fine which shall not be less than five thousand rupees:

Provided that the court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment for a term of less than three years."

[Vide Tamil Nadu Act 28 of 1993, sec. 5 (w.e.f. 13-7-1993)].

Uttar Pradesh

Section 457 shall be renumbered as sub-section (1) of that section and after sub section (1) as so renumbered, the following sub-section shall be added namely

"(2) Whoever commits lurking house trespass by night or house breaking by night in any building used as a place of worship in order to the committing of the offence of theft of any idol or icon from such buildings shall notwithstanding any thing contained in sub-section (1) be punished with rigorous imprisonment which shall not be less than three years but which may extend to fourteen years and with fine which shall not be less than five thousand rupees:

Provided that the court may, for adequate and special reasons to be mentioned in the judgment, impose a sentence of imprisonment for a term of less than three years."

[Vide Uttar Pradesh Act 24 of 1995, sec. 11].

Section 458. Lurking house-trespass or house-breaking by night after preparation for hurt, assault, or wrongful restraint

Whoever commits lurking house-trespass by night, or house-breaking by night, having made preparation for causing hurt to any person or for assaulting any person, or for wrongfully restraining any person, or for putting any person in fear of hurt, or of assault, or of wrongful restraint, shall be punished with imprisonment of either description for a term which may extend to fourteen years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 14 years and fine—Cognizable—Non-bailable —Triable by Magistrate of the first class—Non-compoundable.

Section 459. Grievous hurt caused whilst committing lurking house trespass or house-breaking

Whoever, whilst committing lurking house-trespass or house-breaking, causes grievous hurt to any person or attempts to cause death or grievous hurt to any person, shall be punished with '[imprisonment for life], or imprisonment of

either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 460. All persons jointly concerned in lurking house-trespass or house-breaking by night punishable where death or grievous hurt caused by one of them

If, at the time of the committing of lurking house-trespass by night or house-breaking by night, any person guilty of such offence shall voluntarily cause or attempt to cause death or grievous hurt to any person, every person jointly concerned in committing such lurking house-trespass by night or house-breaking by night, shall be punished with '[imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 461. Dishonestly breaking open receptacle containing property

Whoever dishonestly or with intent to commit mischief, breaks open or unfastens any closed receptacle which contains or which be believes to contain property, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 462. Punishment for same offence when committed by person entrusted with custody

Whoever, being entrusted with any closed receptacle which contains or which he believes to contain property, without having authority to open the same, dishonestly, or with intent to commit mischief, breaks open or unfastens that receptacle, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 463. Forgery

[1][Whoever makes any false documents or false electronic record or part of a document or electronic record, with intent to cause damage or injury], to the public or to any person, or to support any claim or title, or to cause any person to part with property, or to enter into any express or implied contract, or with intent to commit fraud or that fraud may be committed, commits forgery.

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1. Subs. by Act 21 of 2000, sec. 91 and Sch. I, for certain words (w.e.f. 17-10-2000).

Section 464. Making a false document

[1][A person is said to make a false document or false electronic record

First—Who dishonestly or fradulently

(a) makes, signs, seals or executes a document or part of a document;

(b) makes or transmits any electronic record or part of any electronic record;

(c) affixes any [2]electronic signature on any electronic record;

(d) makes any mark denoting the execution of a document or the authenticity of the [2]electronic signature,

with the intention of causing it to be believed that such document or part of document, electronic record or electronic signature was made, signed, sealed, executed, transmitted or affixed by or by the authority of a person by whom or by whose authority he knows that it was not made, signed, sealed, executed or affixed; or

Secondly—Who, without lawful authority, dishonestly or fraudulently, by cancellation or otherwise, alters a document or an electronic record in any

material part thereof, after it has been made, executed or affixed with [3]electronic signature either by himself or by any other person, whether such person be living or dead at the time of such alteration; or

Thirdly—Who dishonestly or fraudulently causes any person to sign, seal, execute or alter a document or an electronic record or to affix his [3]electronic signature on any electronic record knowing that such person by reason of unsoundness of mind or intoxication cannot, or that by reason of deception practised upon him, he does not know the contents of the document or electronic record or the nature of the alteration.]

Illustrations

(a) A has a letter of credit upon B for rupees 10,000 written by Z. A, in order to defraud B, adds a cipher to the 10,000, and makes the sum 1,00,000 intending that it may be believed by B that Z so wrote the letter. A has committed forgery.

(b) A, without Z's authority, affixes Z's seal to a document purporting to be a conveyance of an estate from Z to A, with the intention of selling the estate to B, and thereby of obtaining from B the purchase-money. A has committed forgery.

(c) A picks up a cheque on a banker signed by B, payable to bearer, but without any sum having been inserted in the cheque. A fraudulently fills up the cheque by inserting the sum of ten thousand rupees. A commits forgery.

(d) A leaves with B, his agent, a cheque on a banker, signed by A, without inserting the sum payable and authorizes B to fill up the cheque by inserting a sum not exceeding ten thousand rupees for the purpose of making certain payment. B fraudulently fills up the cheque by inserting the sum of twenty thousand rupees. B commits forgery.

(e) A draws a bill of exchange on himself in the name of B without B's authority, intending to discount it as a genuine bill with a banker and intending to take up the bill on its maturity. Here, as A draws the bill with intent to deceive the banker by leading him to suppose that he had the security of B, and thereby to discount the bill, A is guilty of forgery.

(f) Z's will contains the these words—"I direct that all my remaining property be equally divided between A, B and C." A dishonestly scratches out B's name, intending that it may be believed that the whole was left to himself and C. A has committed forgery.

(g) A endorses a Government promissory note and makes it payable to Z or his order by writing on the bill the words “Pay to Z or his order” and signing the endorsement. B dishonestly erases the words “Pay to Z or his order”, and thereby converts the special endorsement into a blank endorsement. B commits forgery.

(h) A sells and conveys an estate to Z. A afterwards, in order to defraud Z of his estate, executes a conveyance of the same estate to B, dated six months earlier than the date of the conveyance to Z, intending it to be believed that he had conveyed the estate to B before he conveyed it to Z. A has committed forgery.

(i) Z dictates his will to A. A intentionally writes down a different legatee from the legatee named by Z, and by representing to Z that he has prepared the will according to his instructions, induces Z to sign the will. A has committed forgery.

(j) A writes a letter and signs it with B’s name without B’s authority, certifying that A is a man of good character and in distressed circumstances from unforeseen misfortune, intending by means of such letter to obtain alms from Z and other persons. Here, as A made a false document in order to induce Z to part with property. A has committed forgery.

(k) A without B’s authority writes a letter and signs it in B’s name certifying to A’s character, intending thereby to obtain employment under Z. A has committed forgery in as much as he intended to deceive Z by the forged certificate, and thereby to induce Z to enter into an express or implied contract for service.

Explanation 1

A man’s signature of his own name may amount to forgery.

Illustrations

(a) A signs his own name to a bill of exchange, intending that it may be believed that the bill was drawn by another person of the same name. A has committed forgery.

(b) A writes the word “accepted” on a piece of paper and signs it with Z’s name, in order that B may afterwards write on the paper a bill of exchange drawn by B upon Z, and negotiate the bill as though it had been accepted by Z. A is guilty of forgery; and if B, knowing the fact, draws the bill upon the paper pursuant to A’s intention, B is also guilty of forgery.

(c) A picks up a bill of exchange payable to the order of a different person of the same name. A endorses the bill in his own name, intending to cause it to be believed that it was endorsed by the person whose order it was payable; here A has committed forgery.

(d) A purchases an estate sold under execution of a decree against B. B, after the seizure of the estate, in collusion with Z, executes a lease of the estate of Z at a nominal rent and for a long period and dates the lease six months prior to the seizure, with intent to defraud A, and to cause it to be believed that the lease was granted before the seizure. B, though he executes the lease in his own name, commits forgery by antedating it.

(e) A, a trader, in anticipation of insolvency, lodges effects with B for A's benefit, and with intent to defraud his creditors; and in order to give a colour to the transaction, writes a promissory note binding himself to pay to B a sum for value received, and antedates the note, intending that it may be believed to have been made before. A was on the point of insolvency. A has committed forgery under the first head of the definition.

Explanation 2

The making of a false document in the name of a fictitious person, intending it to be believed that the document was made by a real person, or in the name of a deceased person, intending it to be believed that the document was made by the person in his lifetime, may amount to forgery.

Illustration
A draws a bill of exchange upon a fictitious person, and fraudulently accepts the bill in the name of such fictitious person with intent to negotiate it. A commits forgery.

[2][Explanation 3
For the purposes of this section, the expression "affixing [3]electronic signature" shall have the meaning assigned to it in clause (d) of sub-section (1) of section 2 of the Information Technology Act, 2000.]
1. Subs. by Act 21 of 2000, sec. 91 and Sch. I, for certain words (w.e.f. 17-10-2000).

2. Ins. by Act 21 of 2000, sec. 91 and Sch. I (w.e.f. 17-10-2000).

3. Subs by Act 10 of 2009, sec. 51(e), for "digital signature".

Section 465. Punishment for forgery

Whoever commits forgery shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 466. Forgery of record of court or of public register, etc.

'[Whoever forges a document or an electronic record], purporting to be a record or proceeding of or in a Court of Justice, or a register of birth, baptism, marriage or burial, or a register kept by a public servant as such, or a certificate or document purporting to be made by a public servant in his official capacity, or an authority to institute or defend a suit, or to take any proceedings therein, or to confess judgment, or a power of attorney, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

'[Explanation

For the purposes of this section, "register" includes any list, data or record of any entries maintained in the electronic form as defined in clause (r) of sub-section (1) of section 2 of the Information Technology Act, 2000.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Non-cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

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1. Subs. by Act 21 of 2000, sec. 91 and Sch. I, for "Whoever forges a document" (w.e.f. 17-10-2000).

Section 467. Forgery of valuable security, will, etc.

Whoever forges a document which purports to be a valuable security or a will, or an authority to adopt a son, or which purports to give authority to any person to make or transfer any valuable security, or to receive the principal, interest or dividends thereon, or to receive or deliver any money, moveable property, or valuable security, or any document purporting to be an acquittance or receipt acknowledging the payment of money, or an acquittance or receipt for the delivery of any moveable property or valuable security, shall be punished with '[imprisonment for life], or with imprisonment of either

description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Non-cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Para II

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 468. Forgery for purpose of cheating

Whoever commits forgery, intending that the ˈ[document or Electronic Record forged] shall be used for the purpose of cheating, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable —-Triable by Magistrate of the first class—Non-compoundable.

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1. Subs. by Act 21 of 2000, sec. 91 and Sch. I, for “document forged” (w.e.f. 17-10-2000).

Section 469. Forgery for purpose of harming reputation

Whoever commits forgery, ˈ[intending that the document or Electronic Record forged] shall harm the reputation of any party, or knowing that it is likely to used for that purpose, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years and fine—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Subs. by Act 21 of 2000, sec. 91 and Sch. I, for “intending that the document forged” (w.e.f. 17-10-2000).

Section 470. Forged document or electronic record

Forged '[document or electronic record].—A false '[document or electronic record] made wholly or in part by forgery is designated “a forged '[document or electronic record]”.

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1. Subs. by Act 21 of 2000, sec. 91 and Sch. I, for “document” (w.e.f. 17-10-2000).

Section 471. Using as genuine a forged document or electronic record

Using as genuine a forged '[document or electronic record].—Whoever fraudulently or dishonestly uses as genuine any '[document or electronic record] which he knows or has reason to believe to be a forged '[document or electronic record], shall be punished in the same manner as if he had forged such '[document or electronic record].

CLASSIFICATION OF OFFENCE

Punishment—Punishment for forgery of such document—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

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1. Subs. by Act 21 of 2000, sec. 91 and Sch. I, for “document” (w.e.f. 17-10-2000).

Section 472. Making or possessing counterfeit seal, etc., with intent to commit forgery punishable under section 467

Whoever makes or counterfeits any seal, plate or other instrument for making an impression, intending that the same shall be used for the purpose of committing any forgery which would be punishable under Section 467 of this Code, or, with such intent, has in his possession any such seal, plate or other instrument, knowing the same to be counterfeit, shall be punished with '[imprisonment for life], or with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 7 years and fine—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 473. Making or possessing counterfeit seal, etc., with intent to commit forgery punishable otherwise

Whoever makes or counterfeit any seal, plate or other instrument for making an impression, intending that the same shall be used for the purpose of committing any forgery which would be punishable under any section of this Chapter other than Section 467, or, with such intent, has in his possession any such seal, plate or other instrument, knowing the same to be counterfeit, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 474. Having possession of document described in Section 466 or 467, knowing it to be forged and intending to use it as genuine

[1][Whoever has in his possession any document or electronic record, knowing the same to be forged, and intending that the same shall fraudulently or dishonestly be used as genuine, shall, if the document or electronic record, is one of the description mentioned in section 466 of this Code], be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine; and if the document is one of the description mentioned in section 467, shall be punished with [2][imprisonment for life], or with imprisonment of either description, for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 7 years and fine—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Para II

Punishment—Imprisonment for life, or imprisonment for 7 years and fine—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Subs. by Act 21 of 2000, sec. 91 and Sch. I, for certain words (w.e.f. 17-10-2000).

2. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 475. Counterfeiting device or mark used for authenticating documents described in Section 467, or possessing counterfeit marked material

Whoever counterfeits upon, or in the substance of, any material, any device or mark used for the purpose of authenticating any document described in Section 467 of this Code, intending that such device or mark shall be used for the purpose of giving the appearance of authenticity to any document then forged or thereafter to be forged on such material, or who, with such intent, has in his possession any material upon or in the substance of which any such device or mark has been counterfeited, shall be punished with ˈ[imprisonment for life], or with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 7 years and fine—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 476. Counterfeiting device or mark used for authenticating documents other than those described in section 467, or possessing counterfeit marked material

Whoever counterfeits upon, or in the substance of, any material, any device or mark used for the purpose of authenticating ˈ[any document or electronic record] other than the documents described in section 467 of this Code, intending that such device or mark shall be used for the purpose of giving the appearance of authenticity to any document then forged or thereafter to be forged on such material, or who, with such intent, has in his possession any material upon or in the substance of which any such device or mark has been counterfeited, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Non-cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

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1. Subs. by Act 21 of 2000, sec. 91 and Sch. I, for “any document” (w.e.f. 17-10-2000).

Section 477. Fraudulent cancellation, destruction, etc., of will, authority to adopt, or valuable security

Whoever fraudulently or dishonestly, or with intent to cause damage or injury to the public or to any person, cancels, destroys or defaces, or attempts to cancel, destroy or deface, or secretes or attempts to secrete any document which is or purports to be a will, or an authority to adopt a son, or any valuable security, or commits mischief in respect of such document, shall be punished with [1][imprisonment for life], or with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 7 years and fine—Non-cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Subs. by Act 26 of 1955, sec. 117 and Sch., for “transportation for life” (w.e.f. 1-1-1956).

Section 477A. Falsification of accounts

[1][477A. Falsification of accounts.—Whoever, being a clerk, officer or servant, or employed or acting in the capacity of a clerk, officer or servant, wilfully, and with intent to defraud, destroys, alters, mutilates or falsifies any [2][book, electronic record, paper, writing], valuable security or account which belongs to or is in the possession of his employer, or has been received by him for or on behalf of his employer, or wilfully, and with intent to defraud, makes or abets the making of any false entry in, or omits or alters or abets the omission or alteration of any material particular from or in, any such [2][book, electronic record, paper, writing], valuable security or account, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

Explanation

It shall be sufficient in any charge under this section to allege a general intent to defraud without naming any particular person intended to be defrauded or specifying any particular sum of money intended to be the subject of the fraud, or any particular day on which the offence was committed.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years, or fine, or both—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

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1. Added by Act 3 of 1895, sec. 4.

2. Subs. by Act 21 of 2000, sec. 91 and Sch. I, for “book, paper, writing” (w.e.f. 17-10-2000).

Section 478. Trade marks
[Rep. by the Trade and Merchandise Marks Act, 1958 (43 of 1958, sec. 135 and Sch. (w.e.f. 25-11-1959).]

Section 479. Property mark
A mark used for denoting that moveable property belongs to a particular person is called a property mark.

Section 480. Using a false trade mark
[Rep. by the Trade and Merchandise Marks Act, 1958 (43 of 1958), s. 135 and Sch., (w.e.f. 25-11-1959).]

Section 481. Using a false property mark
Whoever marks any moveable property or goods or any case, package or other receptacle containing moveable property or goods, or uses any case, package or other receptacle having any mark thereon, in a manner reasonably calculated to cause it to be believed that the property or goods so marked, or any property or goods contained in any such receptacle so marked, belong to a person to whom they do not belong, is said to use a false property mark.

Section 482. Punishment for using a false property mark
Whoever uses ˈ[* * *] any false property mark shall, unless he proves that he acted without intent to defraud, be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both
CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 1 year, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Compoundable by the person to whom loss or injury is caused by such use with the permission of the court.

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1. The words “any false trade mark or” omitted by Act 43 of 1958, sec. 135 and Sch. (w.e.f. 25-11-1959).

Section 483. Counterfeiting a property mark used by another

Whoever counterfeits any [1][* * *] property mark used by any other person shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Compoundable by the person whose trade or property mark is counterfeited with the permission of the court.

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1. The words “trade mark or” omitted by Act 43 of 1958, sec. 135 and Sch. (w.e.f. 25-11-1959).

Section 484. Counterfeiting a mark used by a public servant

[1][484. Counterfeiting a mark used by a public servant.—Whoever counterfeits any property mark used by a public servant, or any mark used by a public servant to denote that any property has been manufactured by a particular person or at a particular time or place, or that the property is of a particular quality or has passed through a particular office, or that it is entitled to any exemption, or uses as genuine any such mark knowing the same to be counterfeit, shall be punished with imprisonment of either description for a term which may extend to three years, and shall also be liable to fine.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years and fine—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

1. Subs. by Act 4 of 1889, sec. 3, for the original section 484.

Section 485. Making or possession of any instrument for counterfeiting a property mark

[1][485. Making or possession of any instrument for counterfeiting a property mark.—Whoever makes or has in his possession any die, plate or other instrument for the purpose of counterfeiting a property mark, or has in his possession a property mark for the purpose of denoting that any goods belong to a person to whom they do not belong, shall be punished with imprisonment of either description for a term which may extend to three years or with fine, or with both.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years, or fine, or both—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

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1. Subs. by Act 43 of 1958, sec. 135 and Sch., for the original section 485 (w.e.f. 25-11-1959).

Section 486. Selling goods marked with a counterfeit property mark

[1][486. Selling goods marked with a counterfeit property mark.—[2][Whoever sells, or exposes, or has in possession for sale, any goods or things with a counterfeit property mark] affixed to or impressed upon the same or to or upon any case, package or other receptacle in which such goods are contained, shall, unless he proves

(a) that, having taken all reasonable precautions against committing an offence against this section, he had at the time of the commission of the alleged offence no reason to suspect the genuineness of the mark, and

(b) that, on demand made by or on behalf of the prosecutor, he gave all the information in his power with respect to the persons from whom he obtained such goods or things, or

(c) that otherwise he had acted innocently,

be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 1 year, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Compoundable by the person whose trade or property mark is counterfeited with the permission of the court.

1. Subs. by Act 4 of 1889, sec. 3, for the original section 486.

2. Subs. by Act 43 of 1958, sec. 135 and Sch., for certain words (w.e.f. 25-11-1959).

Section 487. Making a false mark upon any receptacle containing goods

[1][487. Making a false mark upon any receptacle containing goods.—Whoever makes any false mark upon any case, package or other receptacle containing goods, in a manner reasonably calculated to cause any public servant or any other person to believe that such receptacle contains goods which it does not contain or that it does not contain goods which it does contain, or that the goods contained in such receptacle are of a nature or quality different from the real nature or quality thereof, shall, unless he proves that he acted without intent to defraud, be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.]

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 3 years, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

1. Subs. by Act 4 of 1889, sec. 3, for the original section 487.

Section 488. Punishment for making use of any such false mark
[1][488. Punishment for making use of any such false mark.—Whoever makes use of any such false mark in any manner prohibited by the last foregoing section shall, unless he proves that he acted without intent to defraud, be punished as if he had committed an offence against that section.]
CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 3 years, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

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1. Subs. by Act 4 of 1889, sec. 3, for the original section 488.

Section 489. Tampering with property mark with intent to cause injury
[1][489. Tampering with property mark with intent to cause injury.—Whoever removes, destroys, defaces or adds to any property mark, intending or knowing it to be likely that he may thereby cause injury to any person, shall be punished with imprisonment of either description for a term which may extend to one year, or with fine, or with both.]
CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 1 year, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

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1. Subs. by Act 4 of 1889, sec. 3, for the original section 489.

Section 489A. Counterfeiting currency-notes or bank-notes
[1][489A. Counterfeiting currency-notes or bank-notes.—Whoever counter-feits, or knowingly performs any part of the process of counterfeiting, any currency-note or bank-note, shall be punished with [2][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.
Explanation

For the purposes of this section and of sections 489B, [3][489C, 489D and 489E], the expression "bank-note" means a promissory note or engagement for the payment of money to bearer on demand issued by any person carrying on the business of banking in any part of the world, or issued by or under the authority of any State or Sovereign Power, and intended to be used as equivalent to, or as a substitute for money.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Added by Act 12 of 1899, sec. 2.

2. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

3. Subs. by Act 35 of 1950, sec. 3 and Sch. II, for "489C and 489D".

Section 489B. Using as genuine, forged or counterfeit currency-notes or bank-notes

[1][489B. Using as genuine, forged or counterfeit currency-notes or bank-notes.—Whoever sells to, or buys or receives from, any other person, or otherwise traffics in or uses as genuine, any forged or counterfeit currency-note or bank-note, knowing or having reason to believe the same to be forged or counterfeit, shall be punished with [2][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

–

1. Added by Act 12 of 1899, sec. 2.

2. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 489C. Possession of forged or counterfeit currency-notes or bank-notes

[1][489C. Possession of forged or counterfeit currency-notes or bank-notes.—Whoever has in his possession any forged or counterfeit currency-note or bank-note, knowing or having reason to believe the same to be forged or

counterfeit and intending to use the same as genuine or that it may be used as genuine, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years, or fine, or both—Cognizable—Bailable—Triable by Court of Session—Non-compoundable.

1. Added by Act 12 of 1899, sec. 2.

Section 489D. Making or possessing instruments or materials for forgoing or counterfeiting currency-notes or bank-notes

[1][489D. Making or possessing instruments or materials for forging or counterfeiting currency-notes or bank-notes.—Whoever makes, or performs, any part of the process of making, or buys or sells or disposes of, or has in his possession, any machinery, instrument or material for the purpose of being used, or knowing or having reason to believe that it is intended to be used, for forging or counterfeiting any currency-note or bank-note, shall be punished with [2][imprisonment for life], or with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for life, or imprisonment for 10 years and fine—Cognizable—Non-bailable—Triable by Court of Session—Non-compoundable.

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1. Added by Act 12 of 1899, sec. 2.

2. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 489E. Making or using documents resembling currency-notes or bank-notes

[1][489E. Making or using documents resembling currency-notes or bank-notes.—(1) Whoever makes, or causes to be made, or uses for any purpose whatsoever, or delivers to any person, any document purporting to be, or in any way resembling, or so nearly resembling as to be calculated to deceive, any currency-note or bank-note shall be punished with fine which may extend to one hundred rupees.

(2) If any person, whose name appears on a document the making of which is an offence under sub-section (1), refuses, without lawful excuse, to disclose to a police-officer on being so required the name and address of the person by

whom it was printed or otherwise made, he shall be punished with fine which may extend to two hundred rupees.

(3) Where the name of any person appears on any document in respect of which any person is charged with an offence under sub-section (1) or on any other document used or distributed in connection with that document it may, until the contrary is proved, be presumed that person caused the document to be made.]

CLASSIFICATION OF OFFENCE

Punishment—Fine of 100 rupees—Non-Cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

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1. Ins. by Act 6 of 1943, sec. 2.

Section 490. Breach of contract of service during voyage or journey

[Rep. by the Workmen's Breach of Contract (Repealing) Act, 1925 (3 of 1925), sec. 2 and Sch.]

Section 491. Breach of contract to attend on and supply wants of helpless person

Whoever, being bound by a lawful contract to attend on or to supply the wants of any person who, by reason of youth, or of unsoundness of mind, or of a disease or bodily weakness, is helpless or incapable of providing for his own safety or of supplying his own wants, voluntarily omits so to do, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to two hundred rupees, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 months, or fine of 200 rupees, or both—Non-cognizable—Bailable—Triable by any Magistrate—Compoundable by the person with whom the offender has contracted.

Section 492. Breach of contract to serve at distant place to which servant is conveyed at master's expense

[Rep. by the workmen's Breach of Contract (Repealing) Act, 1925 (3 of 1925), sec. 2 and Sch.]

Section 493. Cohabitation caused by a man deceitfully inducing a belief of lawful marriage

Every man who by deceit causes any woman who is not lawfully married to him to believe that she is lawfully married to him and to cohabit or have sexual

intercourse with him in that belief, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Non-cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 494. Marrying again during lifetime of husband or wife

Whoever, having a husband or wife living, marries in any case in which such marriage is void by reason of its taking place during the life of such husband or wife, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

Exception.—This section does not extend to any person whose marriage with such husband or wife has been declared void by a Court of competent jurisdiction,

nor to any person who contracts a marriage during the life of a former husband or wife, if such husband or wife, at the time of the subsequent marriage, shall have been continually absent from such person for the space of seven years, and shall not have been heard of by such person as being alive within that time provided the person contracting such subsequent marriage shall, before such marriage takes place, inform the person with whom such marriage is contracted of the real state of facts so far as the same are within his or her knowledge.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Non-cognizable—Bailable—Triable by Magistrate of the first class—Compoundable by the husband or wife of the person so marrying with the permission of the court.

State Amendment

Andhra Pradesh

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

[Vide Andhra Pradesh Act 3 of 1992, sec. 2 (w.e.f. 15-2-1992)].

Section 495. Same offence with concealment of former marriage from person with whom subsequent marriage is contracted

Whoever commits the offence defined in the last preceding section having concealed from the person with whom the subsequent marriage is contracted, the fact of the former marriage, shall be punished with imprisonment of either description for a term which may extend to ten years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 10 years and fine—Non-cognizable—Bailable —Triable by Magistrate of the first class—Non-compoundable.

STATE AMENDMENT

Andhra Pradesh

Punishment—Imprisonment for 10 years and fine—Cognizable—Non-bailable —Triable by Magistrate of the first class—Non-compoundable.

[Vide Andhra Pradesh Act 3 of 1992, sec. 2 (w.e.f. 15-2-1992)]

Section 496. Marriage ceremony fraudulently gone through without lawful marriage

Whoever, dishonestly or with a fraudulent intention, goes through the ceremony of being married, knowing that he is not thereby lawfully married, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 7 years and fine—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

State Amendment

Andhra Pradesh

Punishment—Imprisonment for 7 years and fine—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

[Vide Andhra Pradesh Act 3 of 1992, sec. 2 (w.e.f. 15-2-1992)].

Section 497. Adultery

Whoever has sexual intercourse with a person who is and whom he knows or has reason to believe to be the wife of another man, without the consent or connivance of that man, such sexual intercourse not amounting to the offence of rape, is guilty of the offence of adultery, and shall be punished with imprisonment of either description for a term which may extend to five years, or with fine, or with both. In such case the wife shall not be punishable as an abettor.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 5 years, or fine, or both—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

STATE AMENDMENT

Andhra Pradesh

Punishment—Imprisonment for 5 years, or fine, or both—Cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

[Vide Andhra Pradesh Act 3 of 1992, sec. 2 (w.e.f. 15-2-1992)].

Section 498. Enticing or taking away or detaining with criminal intent a married woman

Whoever takes or entices away any woman who is and whom he knows or has reason to believe to be the wife of any other man, from that man, or from any person having the care of her on behalf of that man, with intent that she may have illicit intercourse with any person, or conceals or detains with that intent any such woman, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Compoundable by the person with whom the offender has contracted.

Section 498A. Husband or relative of husband of a woman subjecting her to cruelty

'[498A. Husband or relative of husband of a woman subjecting her to cruelty.—Whoever, being the husband or the relative of the husband of a woman, subjects such woman to cruelty shall be punished with imprisonment for a term which may extend to three years and shall also be liable to fine.

Explanation

For the purpose of this section, “cruelty” means

(a) any wilful conduct which is of such a nature as is likely to drive the woman to commit suicide or to cause grave injury or danger to life, limb or health (whether mental or physical) of the woman; or

(b) harassment of the woman where such harassment is with a view to coercing her or any person related to her to meet any unlawful demand for any property or valuable security or is on account of failure by her or any person related to her to meet such demand.]

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 3 years and fine-Cognizable if information relating to the commission of the offence is given to an officer in charge of a police station by the person aggrieved by the offence or by any person related to her by blood, marriage or adoption or if there is no such relative, by any public servant belonging to such class or category as may be notified by the State Government in this behalf—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 498A vis-a-vis section 113 of Evidence Act

Section 498A of the Indian Penal Code or section 113A of the Indian Evidence Act has not introduced invidious classification qua the treatment of a married woman by her husband or relatives of her husband vis-a-vis the other offenders. On the other hand, such women form a class apart whom from those who are married more than seven years earlier to the commission of such offence, because, with the passage of time after marriage and birth of children, there are remote chances of treating a married woman with cruelty by her husband or his relatives. Thus, the classification is reasonable and has close nexus with the object sought to be achieved, i.e., eradication of the evil of dowry in the Indian social set-up and to ensure that the married women live with dignity at their matrimonial homes; Krishan Lal v. Union of India, 1994 Cr LJ 3472.

Unhappiness between husband and wife

Where the prosecution relied only on incident of unhappiness of deceased with her husband and the allegation was only in form of suggestion, it does not establish criminal offence under either or both of the charges, hence conviction under section 498A is improper; State v. K. Sridhar, 2000 Cr LJ 328 (Kant).

Wilful Conduct

The allegations against the husband were that he abused and beat his wife, forced her to have a common kitchen with a harijan family, accused her of adultery and of carrying in her womb someone else's child, pressurizing her to agree for an abortion, and such other acts. This amounted to a wilful conduct of cruelty towards wife; Rishi Kumar v. State of Haryana, Criminal Appeal No. 335-B of 1985.

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1. Ins. by Act 46 of 1983, sec. 2 (w.e.f. 25-12-1983).

Section 499. Defamation

Whoever, by words either spoken or intended to be read, or by signs or by visible representations, makes or publishes any imputation concerning any person intending to harm, or knowing or having reason to believe that such imputation will harm, the reputation of such person, is said, except in the cases hereinafter expected, to defame that person.

Explanation 1

It may amount to defamation to impute anything to a deceased person, if the imputation would harm the reputation of that person if living, and is intended to be hurtful to the feelings of his family or other near relatives.

Explanation 2

It may amount to defamation to make an imputation concerning a company or an association or collection of persons as such.

Explanation 3

An imputation in the form of an alternative or expressed ironically, may amount to defamation.

Explanation 4

No imputation is said to harm a person's reputation, unless that imputation directly or indirectly, in the estimation of others, lowers the moral or intellectual character of that person, or lowers the character of that person in respect of his caste or of his calling, or lowers the credit of that person, or causes it to be believed that the body of that person is in a loathsome state, or in a state generally considered as disgraceful.

Illustrations

(a) A says—"Z is an honest man; he never stole B's watch"; intending to cause it to be believed that Z did steal B's watch. This is defamation, unless it fall within one of the exceptions.

(b) A is asked who stole B's watch. A points to Z, intending to cause it to be believed that Z stole B's watch. This is defamation unless it fall within one of the exceptions.

(c) A draws a picture of Z running away with B's watch, intending it to be believed that Z stole B's watch. This is defamation, unless it fall within one of the exceptions.

First Exception.—**Imputation of truth which public good requires to be made or published**.—It is not defamation to impute anything which is true concerning any person, if it be for the public good that the imputation should be made or published. Whether or not it is for the public good is a question of fact.

Second Exception.—**Public conduct of public servants**.—It is not defamation to express in a good faith any opinion whatever respecting the conduct of a public servant in the discharge of his public functions, or respecting his character, so far as his character appears in that conduct, and no further.

Third Exception.—**Conduct of any person touching any public question**.—It is not defamation to express in good faith any opinion whatever respecting the conduct of any person touching any public question, and respecting his character, so far as his character appears in that conduct, and no further.

Illustration

It is not defamation in A to express in good faith any opinion whatever respecting Z's conduct in petitioning Government on a public question, in signing a requisition for a meeting on a public question, in presiding or attending a such meeting, in forming or joining any society which invites the public support, in voting or canvassing for a particular candidate for any situation in the efficient discharges of the duties of which the public is interested.

Fourth Exception.—**Publication of reports of proceedings of Courts**.—It is not defamation to publish substantially true report of the proceedings of a Court of Justice, or of the result of any such proceedings.

Explanation

A Justice of the Peace or other officer holding an inquiry in open Court preliminary to a trial in a Court of Justice, is a Court within the meaning of the above section.

Fifth Exception.—**Merits of case decided in Court or conduct of witnesses and others concerned**.—It is not defamation to express in good faith any opinion whatever respecting the merits of any case, civil or criminal, which has been decided by a Court of Justice, or respecting the conduct of any person as a party, witness or agent, in any such case, or respecting the

character of such person, as far as his character appears in that conduct, and no further.

Illustrations

(a) A says—"I think Z's evidence on that trial is so contradictory that he must be stupid or dishonest". A is within this exception if he says this is in good faith, in as much as the opinion which he expresses respects Z's character as it appears in Z's conduct as a witness, and no further.

(b) But if A says—"I do not believe what Z asserted at that trial because I know him to be a man without veracity"; A is not within this exception, in as much as the opinion which he express of Z's character, is an opinion not founded on Z's conduct as a witness.

Sixth Exception.—**Merits of public performance**.—It is not defamation to express in good faith any opinion respecting the merits of any performance which its author has submitted to the judgment of the public, or respecting the character of the author so far as his character appears in such performance, and no further.

Explanation

A performance may be submitted to the judgment of the public expressly or by acts on the part of the author which imply such submission to the judgment of the public.

Illustrations

(a) A person who publishes a book, submits that book to the judgment of the public.

(b) A person who makes a speech in public, submits that speech to the judgment of the public.

(c) An actor or singer who appears on a public stage, submits his acting or signing in the judgment of the public.

(d) A says of a book published by Z—"Z's book is foolish; Z must be a weak man. Z's book is indecent; Z must be a man of impure mind". A is within the exception, if he says this in good faith, in as much as the opinion which he expresses of Z respects Z's character only so far as it appears in Z's book, and no further.

(e) But if A says—"I am not surprised that Z's book is foolish and indecent, for he is a weak man and a libertine". A is not within this exception, in as much as

the opinion which he expresses of Z's character is an opinion not founded on Z's book.

Seventh Exception.—**Censure passed in good faith by person having lawful authority over another**.—It is not defamation in a person having over another any authority, either conferred by law or arising out of a lawful contract made with that other, to pass in good faith any censure on the conduct of that other in matters to which such lawful authority relates.

Illustration

A Judge censuring in good faith the conduct of a witness, or of an officer of the Court; a head of a department censuring in good faith those who are under his orders; a parent censuring in good faith a child in the presence of other children; a school-master, whose authority is derived from a parent, censuring in good faith a pupil in the presence of other pupils; a master censuring a servant in good faith for remissness in service; a banker censuring in good faith the cashier of his bank for the conduct of such cashier as such cashier—are within this exception.

Eighth Exception.—**Accusation preferred in good faith to authorised person**.—It is not defamation to prefer in good faith an accusation against any person to any of those who have lawful authority over that person with respect to the subject-matter of accusation.

Illustration

If A in good faith accuse Z before a Magistrate; if A in good faith complains of the conduct of Z, a servant, to Z's master; if A in good faith complains of the conduct of Z, and child, to Z's father—A is within this exception.

Ninth Exception.—**Imputation made in good faith by person for protection of his or other's interests**.—It is not defamation to make an imputation on the character of another provided that the imputation be made in good faith for the protection of the interests of the person making it, or of any other person, or for the public good.

Illustrations

(a) A, a shopkeeper, says to B, who manages his business—"Sell nothing to Z unless he pays you ready money, for I have no opinion of his honesty". A is within the exception, if he has made this imputation on Z in good faith for the protection of his own interests.

(b) A, a Magistrate, in making a report of his own superior officer, casts an imputation on the character of Z. Here, if the imputation is made in good faith, and for the public good, A is within the exception.

Tenth Exception.—**Caution intended for good of person to whom conveyed or for public good**.—It is not defamation to convey a caution, in good faith, to one person against another, provided that such caution be intended for the good of the person to whom it is conveyed, or of some person in whom that person is interested, or for the public good.

Section 500. Punishment for defamation

Whoever defames another shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Simple imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by Court of Session—Compoundable by the person defamed.

Para II

Punishment—Simple imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by Magistrate of the first class—Compoundable by the person defamed with the permission of the court.

Section 501. Printing or engraving matter known to be defamatory

Whoever prints or engraves any matter, knowing or having good reason to believe that such matter is defamatory of any person, shall be punished with simple imprisonment for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Simple imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by Court of Session—Compoundable by the person defamed.

Para II

Punishment—Simple imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 502. Sale of printed or engraved substance containing defamatory matter

Whoever sells or offers for sale any printed or engraved substance containing defamatory matter, knowing that it contains such matter, shall be punished

with simple imprisonment for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Para I

Punishment—Simple imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by Court of Session—Compoundable by the person defamed.

Para II

Punishment—Simple imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 503. Criminal intimidation

Whoever threatens another with any injury to his person, reputation or property, or to the person or reputation of any one in whom that person is interested, with intent to cause alarm to that person, or to cause that person to do any act which he is not legally bound to do, or to omit to do any act which that person is legally entitled to do, as the means of avoiding the execution of such threat, commits criminal intimidation.

Explanation

A threat to injure the reputation of any deceased person in whom the person threatened is interested, is within this section.

Illustration

A, for the purpose of inducing B to desist from prosecuting a civil suit, threatens to burn B's house. A is guilty of criminal intimidation.

Section 504. Intentional insult with intent to provoke breach of the peace

Whoever intentionally insults, and thereby gives provocation to any person, intending or knowing it to be likely that such provocation will cause him to break the public peace, or to commit any other offence, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Compoundable by the person insulted.

Section 505. Statements conducing to public mischief

[1][505. Statements conducing to public mischief.—[2][(1)] Whoever makes, publishes or circulates any statement, rumour or report,

(a) with intent to cause, or which is likely to cause, any officer, soldier, [3][sailor or airman] in the Army, [4][Navy or Air Force] [5][of India] to mutiny or otherwise disregard or fail in his duty as such; or

(b) with intent to cause, or which is likely to cause, fear or alarm to the public, or to any section of the public whereby any person may be induced to commit an offence against the State or against the public tranquility; or

(c) with intent to incite, or which is likely to incite, any class or community of persons to commit any offence against any other class or community,

shall be punished with imprisonment which may extend to [6][three years], or with fine, or with both.

[7][(2) **Statements creating or promoting enmity, hatred or ill-will between classes**.—Whoever makes, publishes or circulates any statement or report containing rumour or alarming news with intent to create or promote, or which is likely to create or promote, on grounds of religion, race, place of birth, residence, language, caste or community or any other ground whatsoever, feelings of enmity, hatred or ill-will between different religious, racial, language or regional groups or castes or communities, shall be punished with imprisonment which may extend to three years, or with fine, or with both.

(3) **Offence under sub-section (2) committed in place of worship, etc**.—Whoever commits an offence specified in sub-section (2) in any place of worship or in an assembly engaged in the performance of religious worship or religious ceremonies, shall be punished with imprisonment which may extend to five years and shall also be liable to fine.]

Exception.—It does not amount to an offence, within the meaning of this section when the person making, publishing or circulating any such statement, rumour or report, has reasonable grounds for believing that such statement, rumour or report is true and makes, publishes or circulates it [8][in good faith and] without any such intent as aforesaid.]

CLASSIFICATION OF OFFENCE

Para I

Punishment—Imprisonment for 3 years, or fine, or both—Non-cognizable—Non-bailable—Triable by any Magistrate—Non-compoundable.

Para II

Punishment—Imprisonment for 3 years, or fine, or both—Cognizable—Non-bailable—Triable by any Magistrate—Non-compoundable.

Para III
Punishment—Imprisonment for 5 years and fine—Cognizable—Non-bailable—Triable by any Magistrate—Non-compoundable.

1. Subs. by Act 4 of 1898, sec. 6, for the original section 505.

2. Section 505 renumbered as sub-section (1) of that section by Act 35 of 1969, sec. 3.

3. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for "or sailor".

4. Subs. by Act 10 of 1927, sec. 2 and Sch. I, for "or Navy".

5. Subs. by A.O. 1950 for "of Her Majesty or in the Imperial Service Troops". The words "or in the Royal Indian Marine" occurring after the words "Majesty" were omitted by Act 35 of 1934, sec. 2 and Sch.

6. Subs. by Act 41 of 1961, sec. 4, for "two years" (w.e.f. 12-9-1961).

7. Ins. by Act 35 of 1969, sec. 3 (w.e.f. 4-6-1969).

8. Subs. by A.O. 1950 for "of Her Majesty or in the Imperial Service Troops". The words "or in the Royal Indian Marine" occurring after the words "Majesty" were omitted by Act 35 of 1934, sec. 2 and Sch.

Section 506. Punishment for criminal intimidation
Whoever commits, the offence of criminal intimidation shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both;

If threat be to cause death or grievous hurt, etc.—And if the threat be to cause death or grievous hurt, or to cause the destruction of any property by fire, or to cause an offence punishable with death or '[imprisonment for life], or with imprisonment for a term which may extend to seven years, or to impute, unchastity to a woman, shall be punished with imprisonment of either description for a term which may extend to seven years, or with fine, or with both.

CLASSIFICATION OF OFFENCE
Para I

Punishment—Imprisonment for 2 years, or fine, or both—Non-cognizable-Bailable—Triable by any Magistrate—Compoundable by the person intimidated.

Para II
Punishment—Imprisonment for 7 years, or fine, or both—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

State Amendment
Uttar Pradesh
Imprisonment of 7 years, or fine or both—Cognizable—Non-bailable—Triable by Magistrate of the first class—Non-compoundable.

Vide Notification No. 777/VIII 9-4(2)—87, dated 31st July, 1989, published in U.P. Gazette, Extra., Pt. A, Sec. (kha), dated 2nd August, 1989.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

Section 507. Criminal intimidation by an anonymous communication
Whoever commits the offence of criminal intimidation by an anonymous communication, or having taken precaution to conceal the name or abode of the person from whom the threat comes, shall be punished with imprisonment of either description for a term which may extend to two years, in addition to the punishment provided for the offence by the last preceding section.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for 2 years, in addition to the punishment under above section—Non-cognizable—Bailable—Triable by Magistrate of the first class—Non-compoundable.

Section 508. Act caused by inducing person to believe that he will be rendered an object of the Divine displeasure
Whoever voluntarily causes or attempts to cause any person to do anything which that person is not legally bound to do, or to omit to do anything which he is legally entitled to do, by inducing or attempting to induce that person to believe that he or any person in whom he is interested will become or will be rendered by some act of the offender an object of Divine displeasure if he does not do the thing which it is the object of the offender to cause him to do, or if

he does the thing which it is the object of the offender to cause him to omit, shall be punished with imprisonment of either description for a tem which may extend to one year, or with fine, or with both.

Illustrations

(a) A sits dharna at Z's door with the intention of causing it to be believed that, by so sitting, he renders Z an object of Divine displeasure. A has committed the offence defined in this section.

(b) A threatens Z that, unless Z performs a certain act, A will kill one of A's own children, under such circumstances that the killing would be believed to render Z an object of Divine displeasure. A has committed the offence defined in this section.

CLASSIFICATION OF OFFENCE

Punishment—Imprisonment for 1 year, or fine, or both—Non-cognizable—Bailable—Triable by any Magistrate—Compoundable by the person against whom the offence was committed.

Section 509. Word, gesture or act intended to insult the modesty of a woman

Whoever, intending to insult the modesty of any woman, utters any word, makes any sound or gesture, or exhibits any object, intending that such word or sound shall be heard, of that such gesture or object shall be seen, by such woman, or intrudes upon the privacy of such woman, 1[shall be punished with simple imprisonment for a term which may extend to three years, and also with fine.]

CLASSIFICATION OF OFFENCE

Punishment—Simple imprisonment for 1 year, or fine, or both—Cognizable—Bailable—Triable by any Magistrate—Compoundable by the woman whom it was intended to insult or whose privacy was intruded upon with the permission of the court.

1. Inserted by Section 509 of 'The Criminal Law (Amendment) Act, 2013'

Section 510. Misconduct in public by a drunken person

Whoever, in a state of intoxication, appears in any public place, or in any place, or in any place which it is a trespass in him to enter, and there conducts himself in such a manner as to cause annoyance to any person, shall be punished with simple imprisonment for a term which may extend to twenty-four hours, or with fine which may extend to ten rupees, or with both.

CLASSIFICATION OF OFFENCE
Punishment—Simple imprisonment for 24 hours, or fine of 10 rupees, or both —Non-cognizable—Bailable—Triable by any Magistrate—Non-compoundable.

Section 511. Punishment for attempting to commit offences punishable with imprisonment for life or other imprisonment

Whoever attempts to commit an offence punishable by this Code with [1][imprisonment for life] or imprisonment, or to cause such an offence to be committed, and in such attempts does any act towards the commission of the offence, shall, where no express provision is made by this Code for the punishment of such attempt, be punished with [2][imprisonment of any description provided for the offence, for a term which may extend to one-half of the imprisonment for life or, as the case may be, one-half of the longest term of imprisonment provided for that offence], or with such fine as is provided for the offence, or with both.

Illustrations

(a) A makes an attempt to steal some jewels by breaking open a box, and finds after so opening the box, that there is no jewel in it. He has done an act towards the commission of theft, and therefore is guilty under this section.

(b) A makes an attempt to pick the pocket of Z by thrusting his hand into Z's pocket. A fails in the attempt in consequence of Z's having nothing in his pocket. A is guilty under this section.

CLASSIFICATION OF OFFENCE
Punishment—Imprisonment for life or imprisonment not exceeding half of the longest term provided for the offence, or fine, or both—According as the offence is cognizable or non-cognizable—According as the offence attempted by the offender is bailable or not—Triable by the court by which the offence attempted is triable—Non-compoundable.

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1. Subs. by Act 26 of 1955, sec. 117 and Sch., for "transportation for life" (w.e.f. 1-1-1956).

2. Subs. by Act 26 of 1955, sec. 117 and Sch., for certain original words (w.e.f. 1-1-1956).

326A. Whoever causes permanent or partial damage or deformity to, or burns or maims or disfigures or disables, any part or parts of the body of a person or causes grievous hurt by throwing acid on or by administering acid to that

person, or by using any other means with the intention of causing or with the knowledge that he is likely to cause such injury or hurt, shall be punished with imprisonment of either description for a term which shall not be less than ten years but which may extend to imprisonment for life, and with fine:
Provided that such fine shall be just and reasonable to meet the medical expenses of the treatment of the victim:
Provided further that any fine imposed under this section shall be paid to the victim.
326B. Whoever throws or attempts to throw acid on any person or attempts to administer acid to any person, or attempts to use any other means, with the intention of causing permanent or partial damage or deformity or burns or maiming or disfigurement or disability or grievous hurt to that person, shall be punished with imprisonment of either description for a term which shall not be less than five years but which may extend to seven years, and shall also be liable to fine.
Explanation 1.—For the purposes of section 326A and this section, “acid” includes any substance which has acidic or corrosive character or burning nature, that is capable of causing bodily injury leading to scars or disfigurement or temporary or permanent disability.
Explanation 2.— For the purposes of section 326A and this section, permanent or partial damage or deformity shall not be required to be irreversible.